

National Aeronautics and
Space Administration

Lyndon B. Johnson Space Center
2101 NASA Parkway
Houston, Texas 77058-3696



March 24, 2026

Reply to Attn of: BL-26-019

TO: All Potential Offerors

SUBJECT: Draft Request for Proposal – Solicitation No. 80JSC026R0015 for the
Commercial Lunar Payload Services 2.0 (CLPS 2.0) Multiple Award Contract
(MAC) Indefinite Delivery Indefinite Quantity (IDIQ)

The National Aeronautics and Space Administration (NASA) is releasing this Draft Request for Proposal (DRFP) to obtain industry insight and feedback regarding the planned Commercial Lunar Payload Services 2.0 (CLPS 2.0) Multiple Award Indefinite Delivery/Indefinite Quantity (IDIQ) contract. The purpose of this contract is to support the rapid acquisition and delivery of lunar payloads that advance NASA's scientific and exploration objectives.

NASA requests industry participation during the draft solicitation phase to better understand how qualified contractors would perform CLPS 2.0 commercial missions, including the development, integration, and delivery of lunar landers and associated payloads. The feedback obtained will assist NASA in refining the final solicitation, validating the Statement of Work (SOW), and ensuring that delivery and task order (TO) structures appropriately support mission cadence, technical complexity, and programmatic requirements. This feedback will be instrumental in creating a fair and competitive environment for the final solicitation.

Scope of Work Under CLPS 2.0

The CLPS 2.0 Statement of Work includes three primary Contract Line Item Numbers (CLINs). CLIN 1 covers lunar payload delivery services, consistent with the scope previously established under CLPS 1.0. CLIN 2 introduces a new supply-based requirement in which contractors provide a fully delivered lunar lander directly to NASA. CLIN 3 includes non-mission-specific services such as feasibility studies, hardware development, and technology demonstrations, paralleling similar work authorized under CLPS 1.0. Together, these CLINs provide the structural framework for lunar delivery services, payload integration, lander development when required, and additional mission-support activities defined in the SOW.

NASA Requests Industry Feedback

NASA seeks industry feedback on several key elements of the CLPS 2.0 acquisition:

- Execution and implementation of the supply based CLIN 2 lunar lander requirement
- Use of enhanced insight at the delivery order (DO)/TO level based on NASA's assessment of payload risk

- Expanded use of Government resources, including up to 8,000 hours of NASA expertise per DO/TO
- Domestic sourcing requirements and increased ordering limitations
- Inclusion and structure of on ramp and off ramp provisions
- Considerations related to the Licenses, Permits, and Insurance clause
- Expansion and any potential impacts of allowable payload types to include classified and nuclear payloads
- Revised data rights approach emphasizing Government Purpose Rights under clause 52.227 14
- Offeror input on small business subcontracting goals

Industry participation during this draft solicitation phase will play an important role in shaping the final structure of the solicitation and ensuring the resulting MAC IDIQ contract effectively supports NASA's future lunar payload delivery needs. Written feedback responses to the DRFP should not exceed 40 pages. Additional information may be provided during the Question and Comment period and posted on SAM.gov.

All DRFP documents—including this letter, the draft solicitation, the example TO, attachments, amendments, and related reference materials—are available on SAM.gov. Industry is encouraged to monitor the site regularly for updates.

If an RFP is issued, it will result in a Multiple Award IDIQ with the ability to issue Firm-Fixed Price (FFP) TOs. The contract will have a base period of 10 years from the date of award, with the opportunity to exercise a 5 year option period as defined in the draft solicitation. Such contract is anticipated to be awarded 4Q FY2026, with an effective date of 4Q FY2026. There will be no phase-in period.

This DRFP is issued solely for planning and information-gathering purposes. It does not authorize work, nor does it obligate the Government to any contractual action. NASA is not requesting proposals at this time and reserves the right to modify or cancel the planned CLPS 2.0 acquisition.

During the contract period, the Government will issue Requests for Task Plan (RFTPs) to all IDIQ awardees for specific projects. The proposals will then be evaluated, if necessary negotiated, and issue individual FFP TOs to the selected contractor(s).

Questions regarding this DRFP should be submitted in writing electronically to: Aubrie Henspeter, Contracting Officer, at JSC-CLPS2@nasa.gov.

Aubrie
Henspeter

Digitally signed by
Aubrie Henspeter
Date: 2026.03.24
00:52:43 -04'00'

Aubrie L. Henspeter
Contracting Officer

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PART I – THE SCHEDULE**SECTION B – SUPPLIES OR SERVICES AND PRICES/COSTS****B.1 LISTING OF CLAUSES INCORPORATED BY REFERENCE****I. FAR Clauses Incorporated by Reference**

None Incorporated by Reference

II. NFS Clauses Incorporated by Reference

None Incorporated by Reference

(End of clause)

B.2 DESCRIPTION OF WORK

The Contractor shall provide all required services (except as may be expressly stated in this contract as furnished by the Government) necessary to successfully manage, deliver and/or perform, operate, maintain and provide all requirements in accordance with the Statement of Work (SoW) in Section C, as well as all Data Requirement Description (DRDs) provided in Section J, and all other requirements as specified throughout the contract.

(End of clause)

B.3 CONTRACT TYPE

The CLPS 2.0 contract is an Indefinite-Delivery/Indefinite-Quantity (IDIQ) contract. The Government will issue Firm-Fixed-Price (FFP) Delivery/Task Orders (DOs/TOs).

(End of clause)

B.4 SUPPLIES AND/OR SERVICES TO BE PROVIDED

CLIN	CLIN TITLE	CLIN CATEGORY	CONTRACT TYPE	SoW SECTIONS
CLIN 001	Lunar Payload Delivery Services	IDIQ	FFP	2-4
CLIN 002	Lunar Lander Delivery to NASA	IDIQ	FFP	2, 3, 5
CLIN 003	Non-Mission Specific Services	IDIQ	FFP	2, 3, 6

(End of clause)

B.5 1852.216-78 FIRM-FIXED-PRICE (DEC 2025) (Deviation)

The total firm-fixed-price of this contract is **\$TBD***.

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CLIN	CLIN TITLE	FFP TOTAL VALUE
CLIN 001	Lunar Payload Delivery Services	
CLIN 002	Lunar Lander Delivery to NASA	
CLIN 003	Non-Mission Specific Services	
TOTAL		

*This clause will be unilaterally updated periodically to reflect the total value of delivery/task orders issued.

(End of clause)

B.6 JSC 52.216-90 IDIQ MINIMUM AND MAXIMUM ORDERING LIMITS (NOV 2018)

In accordance with FAR 52.216-22, Indefinite Quantity, the contract guaranteed minimum amount* to be ordered under this contract is \$25,000 and the contract Not to Exceed (NTE) amount* which may be ordered under this contract is \$10,000,000,000. The Government is not obligated to order more than the minimum specified, but may order up to the NTE amount. The Contractor is obligated to fulfill orders issued, up to the NTE amount within the limits specified in FAR 52.216-19 Order Limitations.

* These values are based on US dollars. \$10,000,000,000 is the sum cumulative total of all contracts awarded under CLPS2.

(End of clause)

(End of section)

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SECTION C – DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

STATEMENT OF WORK CONTENTS

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- 5.0 LUNAR LANDER DELIVERY TO NASA (CLIN 2)
- 6.0 NON-MISSION SPECIFIC SERVICES (CLIN 3)

PART I – THE SCHEDULE

1.0 INTRODUCTION

1.1 SCOPE

The Contractor shall provide all resources and functions to perform the Commercial Lunar Payload Services (CLPS) requirements described in this Statement of Work (SoW) for the National Aeronautics and Space Administration (NASA). NASA requires rapid acquisition and delivery of lunar payloads that support and advance the Agency's scientific and exploration objectives. In fulfilling this requirement, the Contractor shall accommodate, transport, and deliver NASA-provided payloads to the lunar surface while using Contractor-provided assets.

2.0 USE OF IDIQ DELIVERY/TASK ORDERS

This is an Indefinite Delivery, Indefinite Quantity (IDIQ) type contract. This SoW defines, in general terms, the scope of activities to be purchased and specifications for the various services available under this contract. NASA requires the Contractor to provide payload delivery services to designated lunar destinations under Contract Line Item Number (CLIN 1), to deliver a lunar lander to NASA under CLIN 2, and Non-Mission Specific Services under CLIN 3.

Orders will be negotiated and issued for any items procured, in accordance with the Task Ordering Clause of this contract. Orders will reference this SoW for items to be procured, with additional details, delivery dates, NASA payload needs, payment milestones, and final negotiated prices to be included separately in each delivery/task order. Due to the anticipated varied nature of NASA payloads, and myriads of scenarios resulting from the Contractor's Mission Architecture and payload opportunities, NASA payload requirements will be provided in, and applied to, individual Delivery/Task Orders.

2.1 QUALIFICATION AND READINESS

Prior to performance of the CLPS SoW under any CLIN, the Contractor shall provide completed evidence of readiness to proceed with performing an initial, reliable landed mission under this contract. As primary evidence, each Contractor will be required to submit evidence of previous, relevant experience designing, fabricating, and operating a lunar lander. More specifically, the Contractor shall submit a report detailing the results from a previous flown mission or completion of an acceptance test campaign for a fully-integrated spacecraft developed to land on the lunar surface. The report shall include a description of tests and flight anomalies along and, if applicable, a plan to remediate the associated failure and anomalies.

3.0 GENERAL TASKS

NASA may provide facilities, functions, equipment, consultation/expertise, and technologies, as requested by and negotiated with the Contractor. The procedures and timing for handover of payload service responsibilities, or for concurrent coordinated operations, will be in accordance with the signed contract.

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The Contractor is responsible for timely performance and shall proactively and effectively mitigate and resolve any critical problem areas, such as supply chain issues during lander development, to minimize or eliminate schedule impacts.

Over the life of the contract, the complexity, size, and risk tolerance for NASA payloads will change. To maximize the likelihood of mission success, NASA may require additional evidence of readiness via the delivery/task order process. Evidence such as contractor documentation, formal briefings, design reviews, documented processes, facility readiness, and/or implementation materials may all be requested as part of a readiness assessment.

3.1 Capability Updates through Contract effective ordering period

Over the life of the contract, the Contractor shall provide projections of future mission capability.

3.2 NASA Enhanced Insight and Collaboration to Improve Mission Reliability

NASA may elect to implement various levels of insight into the performance of a delivery/task order based on an internal assessment of criticality and risk. As a result, the insight applied to each order may include any or all of the following:

1. NASA knowledge sharing from experience in the development and operation of mission critical spacecraft systems. The transfer of knowledge may occur via written correspondence of discussions between the Contractor(s) and NASA subject matter experts.
2. More frequent, and detailed, status reports.
3. NASA subject matter experts made available to support areas where a Contractor may have difficulty in the execution of a delivery/task order (i.e., descent and landing guidance, navigation, and control; thermal control; propulsion, etc.).
4. NASA may also choose to embed a NASA engineer at a Contractor's facility to help address, and resolve, performance concerns, to deploy subject matter experts as necessary to peer-review the Contractor's technical approach for mission-critical systems, etc.
5. NASA may elect to require fault tolerance approaches to spacecraft design.
6. Other insight identified to improve the likelihood of successful delivery

The level of insight required will be identified at the delivery/task order level.

4.0 LUNAR PAYLOAD DELIVERY SERVICES (CLIN 1)

The Contractor shall determine the overall Mission Architecture and provide the end-to-end service (e.g., Lunar Lander, Mission Design and Analysis, Ground Systems, and

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Lunar Payload Support). For lunar deliveries the Contractor shall be responsible for launch vehicle selection and associated operations, all taxes/tariffs, licenses, permits, and approvals necessary to perform the mission, including following Export Control and ITAR regulations when applicable.

Payload Support includes: any necessary analysis and physical integration of NASA-provided payloads, launch and transport of NASA-provided payloads to specified Lunar destinations, provision of resources (i.e. power, data, etc.) to the NASA-provided payloads, and other mutually agreed upon services such as the sale of non-NASA payload data to NASA.

There are several services that may result from NASA's payload delivery requirements which may include intact landing on the Moon, operation on the Lunar surface, impactor delivery, launch vehicle rideshare, lunar orbit insertion, and lunar flyby operations.

4.1 Destinations and Scenarios

This contract is for payload delivery services to Lunar destinations including the Lunar surface, Lunar orbit, Lunar Lagrangian points, and other destinations as defined by NASA. NASA payloads and/or acquired services may utilize any location or feature that the Contractor makes available including on:

1. Launch Vehicle stages
2. Spacecraft
3. Orbital transfer stages
4. Lunar Landers
5. Mobility systems such as rovers and hoppers
6. Sample or payload returns
7. Other supporting systems

There are other services that may be required from NASA's payload delivery requirements, including intact landing on the Moon, operation on the Lunar surface, impactor delivery, launch vehicle rideshare, lunar orbit insertion, and lunar flyby operations, as examples. NASA will define these other requirements in individual task orders.

4.2 Payload Accommodation Services

Payload accommodation services are those services described in paragraphs 4.3-4.7. These payload accommodation services are applicable to NASA payloads integrated onto the Contractor's spacecraft.

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4.3 Mission Integration

The Contractor shall perform mission analysis to support the Contractor's Mission Architecture that is developed to meet the payload delivery requirements. This includes:

- a. Providing a Contractor point of contact for each NASA payload
- b. Providing spacecraft-to-payload interface definition documents
- c. Providing operational details pertinent to the NASA payload(s)
- d. Organizing, and conducting, meetings with NASA payload representative(s)
- e. Identifying when NASA test support is required
- f. Identifying when NASA subject matter expertise is required in any technical discipline such as thermal control, guidance, navigation, and control, propulsion, etc.
- g. Planning and communicating spacecraft-to-payload test and integration activities

4.4 Analytical Integration

The Contractor shall perform analysis of the Contractor's mission architecture and the associated systems to confirm that the requirements specified in the Task Order are satisfied for the NASA payload. This includes:

- a. Performing analyses and assessments to confirm compliance with the NASA payload(s)' resource needs
- b. Providing NASA payload environments (i.e. thermal, structural, radiation, etc.)
- c. Ensuring non-interference (electromagnetic, cleanliness, etc.) of the spacecraft and non-NASA payloads with the NASA payload(s)
- d. Performing analysis to demonstrate NASA operational timelines are consistent within the Contractor's overall mission operational timelines
- e. Note: NASA will provide, to the Contractor, analytical models and products as needed as part of the task order execution process

4.5 Physical Integration

4.5.1 Launch Processing

The Contractor shall receive, handle, and process the NASA payload as specified in the Task Order. This includes all ground processing scenarios such as: standard installation, non-standard installation (e.g., installed at launch pad), and launch scrub turnaround.

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Processing could also include cleaning the NASA payload, performing health checkouts of the NASA payload, and other launch preparation processes.

4.5.2 Vehicle Integration

The Contractor shall integrate the NASA payload with the Contractor's spacecraft as specified in the Task Order. This will include: physical integration, establishment and integration of interfacing resources (e.g., electrical, transmission of vehicle commands and data, thermal control, cleanliness, etc.), performing post-installation, pre-flight performance checkouts, photography of the installed NASA payload, and any post integration access requirements.

4.6 Transport and Operation

The Contractor shall launch, transport, and possibly operate the payload at the specified destination (e.g. lunar surface, lunar orbit, lunar vicinity, etc.) in accordance with the task order. The Contractor's responsibilities for orbital debris and planetary protection, as applicable, will be specified in the task order. The Contractor shall be accountable for the NASA payload(s) from the time of delivery through launch. After launch, the Contractor shall be responsible for compliance with the interface requirements described as part of the task order through the end of the mission operations or as designated in the task order. Finally, the Contractor shall also be responsible for ensuring application of Export Control/ITAR regulations when in possession of NASA payloads.

4.6.1 Attached Landed NASA Payloads

The Contractor's responsibilities for landed NASA payloads shall end after the required Lunar surface duration expires as described in the task order requirements. The NASA payload may independently operate after the Contractor's spacecraft stops providing resources (e.g. data and power). In the event that the Contractor must purposefully terminate the mission prior to the duration specified in the task order, the Contractor shall negotiate termination operations with NASA personnel. Should NASA decide to terminate NASA payload operations prior to the expiration of required lunar surface operations, the Contractor will be relieved of all payload-related obligations.

4.6.2 Attached Non-Landed NASA Payloads

The Contractor's responsibility for attached non-landed NASA payloads shall end upon completing the operations required in the task order.

4.6.3 Deployed NASA Payloads

The Contractor's responsibilities for deployed NASA payloads shall end upon separation from the Contractor's spacecraft unless the NASA payload is dependent upon the Contractor's spacecraft after deployment (e.g., communications, data relay) as specified in the Task Order. The Contractor's system(s) shall issue the deployment command as specified in the Task Order. The deployment interface and/or use of a NASA or Contractor-furnished deployment mechanism shall be as specified in the Task Order.

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4.6.3.1 Deployed Non-NASA Payloads

The Contractor shall inform NASA of any Contractor or other non-NASA deployed payloads sharing a mission with a NASA payload. The Contractor shall manage the deployment of these such that they do not interfere with the NASA payloads.

4.6.4 NASA Payload Termination

When defined in the Task Order, the Contractor shall terminate NASA Payload operations. The Contractor shall have no Contract responsibilities after NASA Payload termination with exception of providing previously stored data that may still reside on Contractor's spacecraft.

4.7 Utilities Resources

The Contractor's spacecraft shall provide payload resources to the NASA payloads as specified in the task order. The Contractor shall specify and provide definitions for which payload resources are available from Contractor's systems on a specific mission. Typical payload resources may include, but are not limited to, structural attachment, geometrical volume, mass accommodation, center-of-gravity constraints, electrical power/characteristics, thermal control, telemetry, commanding, physical access, and operational constraints of these.

4.8 Environmental Considerations

The Contractor shall specify and provide definitions for environmental controls or passive protections available from the Contractor's spacecraft on a specific task order. These may include, but are not limited to, pressure, thermal, aerothermal, aerodynamic, plasma charging, radiation, magnetic field, lighting, and cleanliness. Payloads will be exposed to a variety of environment conditions that may affect the payload's ability to operate.

Some of these environmental conditions are inherent to the physical location (e.g. radiation), some may be a result of the transport spacecraft (e.g. vibrations or thermal load). Each Contractor shall offer specific mitigations in their spacecraft design to environmental conditions. The Contractor shall demonstrate compliance with the payload's environmental requirements during the execution of the task order.

4.9 Readiness Review

Prior to execution of lunar payload missions and services under this contract, the Contractor shall deliver information necessary to enable NASA payload integration planning and complete a readiness review to demonstrate the Contractor's ability to provide end-to-end payload delivery services.

4.10 Mission Data Provision

Mission data, including engineering data relevant to NASA payloads, timing of key events, and mission trajectory and location information during payload operations shall be

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provided to the NASA payload team as documented in the task order.

NASA Payload telemetry provided to the Contractor's spacecraft, including data relayed back to Earth will be delivered to NASA as specified in the Task Order.

4.11 Purchase of Payload Data and Functions

For Contractor or other non-NASA payloads, the Contractor may make available to NASA, data and/or functions produced by the payload. These data and/or function purchases, and any third party agreements, will be specified in the Task Order.

4.12 Other Mission Services

Other Mission Services, from the Contractor or NASA, that may become available during the Commercial Lunar Payload Services term and within the Commercial Lunar Payload Services scope, may be offered by the Contractor or NASA. Other Mission Services will be proposed, negotiated and defined in task orders.

Examples include:

- a. The use of radioisotopes (e.g. Radioactive Heating Units (RHU), Radioisotope Thermoelectric Generator (RTG), etc.) within NASA-provided payloads
- b. Sample handling and/or return services
- c. Survive the night and/or payload services through the lunar night
- d. Precision landing
- e. Synergistic opportunities between NASA payloads, non-NASA payloads, and the Contractor's spacecraft (e.g. a NASA payload providing data to a non-NASA payload or the Contractor's spacecraft)

5.0 LUNAR LANDER DELIVERY TO NASA (CLIN 2)

NASA may require delivery of a lunar lander to NASA for Government integration of payloads and encapsulation of the lunar lander onto a launch vehicle.

After launch, the Contractor may be required to operate the lunar lander after separation with the launch vehicle. Alternatively, the Contractor may be required to train NASA employees how to perform mission operations.

The Contractor shall provide instruction to NASA on how to handle the lunar lander and safely integrate payloads. The Contractor is required to deliver an Integration Users Guide (IUG) upon delivery of the lunar lander. The IUG would provide NASA with the handling instructions between delivery and launch vehicle encapsulation.

In addition, NASA requires Government Purpose Data Rights for execution of this CLIN as further defined at the delivery order level.

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The Contractor shall perform analysis of the Contractor's mission architecture and the associated systems to confirm that the requirements specified in the Delivery Order are satisfied. The analytical results, and models, must be provided to NASA when the lunar lander is delivered to NASA. This includes:

- a. Performing analyses and assessments to confirm compliance with the NASA payload(s)' resource needs
- b. Providing the NASA payload environments (i.e. thermal, structural, radiation, etc.)
- c. Ensuring non-interference (electromagnetic, cleanliness, etc.) of the spacecraft with the NASA payload(s)
- d. Note: NASA will provide, to the Contractor, analytical models and products as needed as part of the delivery order execution process

6.0 NON-MISSION SPECIFIC SERVICES (CLIN 3)

NASA may issue delivery/task orders that require special services. Examples include:

- a. Advance planning and feasibility studies in support of future contemplated missions
- b. Development, fabrication, and test of hardware/software to support planning studies, special tests, and/or flight equipment for NASA payloads
- c. The development of lunar payloads to perform technology demonstrations and/or scientific investigations.

(End of text)

(End of section)

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Section D - Packaging and Marking

D.1 LISTING OF CLAUSES INCORPORATED BY REFERENCE

I. FAR Clauses Incorporated by Reference

None Incorporated by Reference

II. NFS Clauses Incorporated by Reference

None Incorporated by Reference

Section is intentionally left blank

(End of section)

PART I – THE SCHEDULE**SECTION E – INSPECTION AND ACCEPTANCE****E.1 LISTING OF CLAUSES INCORPORATED BY REFERENCE****I. FAR Clauses Incorporated by Reference**

Number	Title	Date
52.246-2	Inspection of Supplies-Fixed-Price	Aug 1996
52.246-4	Inspection of Services-Fixed-Price	Aug 1996

II. NFS Clauses Incorporated by Reference

None Incorporated by Reference

(End of clause)

**E.2 MATERIAL INSPECTION AND RECEIVING REPORT (SEP 2025)
(DEVIATION)**

- (a) At the time of each delivery to the Government under this contract, the Contractor must prepare and furnish a Material Inspection and Receiving Report (DD Form 250 series). The forms must be prepared and distributed as follows:

The number of copies and distribution instructions will be provided in applicable task or delivery orders.

- (b) The Contractor must prepare the DD Form 250 in accordance with NASA FAR Supplement 1846.6. The Contractor must enclose the copies of the DD Form 250 in the package or seal them in a waterproof envelope, which must be securely attached to the exterior of the package in the most protected location.
- (c) When more than one package is involved in a shipment, the Contractor must list on the DD Form 250, as additional information, the quantity of packages and the package numbers. The Contractor must forward the DD Form 250 with the lowest numbered package of the shipment and print the words "CONTAINS DD FORM 250" on the package. (End of clause)

(End of clause)

(End of section)

PART I – THE SCHEDULE**SECTION F – DELIVERIES OR PERFORMANCE****F.1 LISTING OF CLAUSES INCORPORATED BY REFERENCE****I. FAR Clauses Incorporated by Reference**

Number	Title	Date
52.242-15	Stop-Work Order.	Aug 1989
52.242-17	Government Delay of Work.	Apr 1984

II. NFS Clauses Incorporated by Reference

None Incorporated by Reference

(End of clause)

F.2 PLACE OF PERFORMANCE

The services to be performed under this contract shall be performed at the following location(s): off-site at the contractor's facility and/or as identified by contractor and specified in delivery/task orders. Alternate places of performance may be specified in individual delivery/task orders issued.

F.3 SHIPPING INSTRUCTIONS

(APPLIES ONLY AT THE DELIVERY/TASK ORDER LEVEL ONLY)

All items shall be shipped to the following address:

Parcel Post Shipments and Freight Shipments

Ship to: Will be defined at the delivery/task order level and coordinated with the CO.

Mark for: Contracting Officer Representative
Contract Number: to be added upon award
For reissue to: JSC Industrial Property Officer
Mail code: JB31
Building 419 Rm: 161

(End of text)

PART I – THE SCHEDULE**F.4 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)**

- (a) The Government may extend the term of this contract by written notice to the Contractor within *1 day from the last day of the ordering period*; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least *7 days* before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed an ordering period of 15 years.
- (d) I.3, entitled “52.216-18 ORDERING,” will be modified to state:

“Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from *October 1, 2026* through *September 30, 2041.*”

(End of clause)

(End of section)

PART I – THE SCHEDULE**SECTION G – CONTRACT ADMINISTRATION DATA****G.1 LISTING OF CLAUSES INCORPORATED BY REFERENCE****I. FAR Clauses Incorporated by Reference**

Number	Title	Date
52.216-32	Task-Order and Delivery-Order Ombudsman.	Sep 2019

II. NFS Clauses Incorporated by Reference

None Incorporated by Reference

(End of clause)

G.2 ADMINISTRATION

Following award, this contract will be administered by the Office of Procurement. The address, telephone number, and email of the Contracting Officer are:

National Aeronautics Space Administration
 Lyndon B. Johnson Space Center (JSC)
 2101 E NASA Pkwy, Houston TX. 77058
 Contracting Officer: **TBD**
 Email: **TBD**
 Phone: **TBD**

- (a) The Contracting Officer is the only person authorized to approve changes or modify any of the requirements under this contract and notwithstanding any provisions contained elsewhere in this contract, the authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority, and no adjustment will be made in the contract price to cover any increase in cost incurred as a result thereof.
- (b) Contractual problems, of any nature, which might occur during the performance of the contract must be handled in accordance with very specific public laws and regulations (e.g. Federal Acquisition Regulation) and must be referred to the Contracting Officer for resolution. Therefore, the Contractor is directed to submit all such contractual problems to the immediate attention of the Contracting Officer.
- (c) Any request for contract changes/modifications shall be submitted to the Contracting Officer.

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- (d) All correspondence concerning this contract, such as requests for information, explanation of terms, and contract interpretations, shall be submitted to the Contracting Officer.

(End of clause)

NFS Clauses Incorporated by Full Text**G.3 52.216-19 ORDER LIMITATIONS (Oct 1995)**

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$25,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish those supplies or services under the contract.
- (b) Maximum order. The Contractor is not obligated to honor-
 - (1) Any order for a single item in excess of N/A;
 - (2) Any order for a combination of items in excess of \$1B; or
 - (3) A series of orders from the same ordering office within 365 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 5 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

G.4 1852.232-80 SUBMISSION OF VOUCHERS/INVOICES FOR PAYMENT (APR 2018)

- (a) The designated payment office is the NASA Shared Services Center (NSSC) located at FMD Accounts Payable, Bldg. 1111, Jerry Hlass Road, Stennis Space Center, MS 39529.
- (b) Except for classified vouchers, the Contractor shall submit all vouchers and

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invoices using the steps described at NSSC's Vendor Payment information Web site at: <https://www.nssc.nasa.gov/vendorpayment>. Please contact the NSSC Customer Contact Center at 1–877–NSSC123 (1–877–677–2123) with any additional questions or comments.

(c) *Payment requests.*

- (1) The payment periods are stipulated in the payment clause(s) contained in this contract.
- (2) Vouchers submitted under cost type contracts and invoices submitted under fixed-price contracts shall include the items delineated in RFO32.905(b) supported by relevant back-up documentation. Back-up documentation shall include at a minimum, the following information:

(i) *Vouchers.*

- (A) Breakdown of billed labor costs and associated contractor generated supporting documentation for billed direct labor costs to include rates used and number of hours incurred.
- (B) Breakdown of billed other direct costs (ODCs) and associated contractor generated supporting documentation for billed ODCs.
- (C) Indirect rate(s) used to calculate the amount of billed indirect expenses.
- (D) Progress reports, as required.

(ii) *Invoices.*

- (A) Description of goods and services delivered as part of the contract's terms and conditions, including the dates of delivery/performance.
- (B) Progress reports, as required.
- (C) Date goods and services were performed.

(iii) *Fee vouchers.*

- (A) Listing of all provisionally billed fee by period or date earned since contract award.
- (B) A reconciliation of all billed and earned fee.
- (C) A clear explanation of the fee calculations.

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- (d) *Non-electronic payment requests.* The Contractor may submit a non-electronic voucher/invoice using the steps for non-electronic payment requests described at:
- (1) The Contracting Officer administering the contract for payment has determined, in writing, that electronic submission would be unduly burdensome to the Contractor.
 - (2) The contract includes provisions allowing the contractor to submit vouchers or invoices using the steps for non-electronic payment. In such instances the Contractor agrees to submit non-electronic payment requests using the method or methods specified in Section G of the contract.
- (e) *Improper vouchers/invoices.* The NSSC Payment Office will notify the contractor of any apparent error, defect, or impropriety in a voucher/invoice within seven calendar days of receipt by the NSSC Payment Office. Inquiries regarding requests for payment should be directed to the NSSC as specified in paragraph (b) of this section.
- (f) *Other payment clauses.* In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.
- (g) In the event that amounts are withheld from payment in accordance with provisions of this contract, a separate payment request for the amount withheld will be required before payment for that amount may be made.

(End of clause)

G.5 1852.245-71 INSTALLATION-ACCOUNTABLE GOVERNMENT PROPERTY (DEC 2025) (DEVIATION)

- (a) The Government property described in paragraph (c) of this clause may be made available to the Contractor on a no-charge basis for use in performance of this contract. This property must be utilized only within the physical confines of the NASA installation that provided the property unless authorized by the Contracting Officer under (b)(1)(iv). Under this clause, the Government retains accountability for, and title to, the property, and the Contractor must comply with the following:

NASA Procedural Requirements (NPR) 4100.1F NASA Supply Support and Materiel Management.

NASA Procedural Requirements (NPR) 4200.1G, NASA Equipment Management Procedural Requirements.

NASA Procedural Requirement (NPR) 4300.1C, NASA Personal Property Disposal Procedural Requirements: [Insert any additional property management responsibilities].

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NASA Procedural Requirements (NPR) 4500.1A, Administration of Property in the Custody of Award Recipients: [Insert any additional property management responsibilities.

Property not recorded in NASA property systems must be managed in accordance with the requirements of the clause at FAR 52.245–1, as incorporated in this contract.

The Contractor must establish and adhere to a system of written procedures to assure continued, effective management control and compliance with these user responsibilities. In accordance with FAR 52.245-1(h)(1) the contractor must be liable for property lost, damaged, destroyed or stolen by the contractor or their employees when determined responsible by a NASA Property Survey Board, in accordance with the NASA guidance in this clause.

(b)

- (1) The official accountable recordkeeping, financial control, and reporting of the property subject to this clause must be retained by the Government and accomplished within NASA management information systems prescribed by the installation Supply and Equipment Management Officer (SEMO) and Financial Management Officer. If this contract provides for the Contractor to acquire property, title to which will vest in the Government, the following additional procedures apply:
 - (i) The Contractor's purchase order must enquire the vendor to deliver the property to the installation central receiving area.
 - (ii) The Contractor must all furnish a copy of each purchase order, prior to delivery by the vendor, to the installation central receiving area.
 - (iii) The Contractor must establish a record for Government titled property as required by FAR 52.245-1, as incorporated in this contract, and must maintain that record until accountability is accepted by the Government.
 - (iv) Contractor use of Government property at an off-site location and off- site subcontractor use requires advance approval of the Contracting Officer and notification of the Industrial Property Officer. The property must be considered Government furnished and the Contractor must assume accountability and financial reporting responsibility. The Contractor must establish records and property control procedures and maintain the property in accordance with the requirements of FAR 52.245–1, Government Property (as incorporated in this contract), until its return to the installation. NASA Procedural Requirements related to property loans must not apply to offsite use of property by contractors.

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- (2) After transfer of accountability to the Government, the Contractor must continue to maintain such internal records as are necessary to execute the user responsibilities identified in paragraph (a) of this clause and document the acquisition, billing, and disposition of the property. These records and supporting documentation must be made available, upon request, to the SEMO and any other authorized representatives of the Contracting Officer.

(c) The following property and services are provided if checked:

- ___(1) Office space, work area space, and utilities. Government telephones are available for official purposes only.
- ___(2) Office furniture.
- ___(3) Property listed in [Insert attachment number or “not applicable” if no equipment is provided].
- (i) If the Contractor acquires property, title to which vests in the Government pursuant to other provisions of this contract, this property also must become accountable to the Government upon its entry into Government records.
- (ii) The Contractor must not bring to the installation for use under this contract any property owned or leased by the Contractor, or other property that the Contractor is accountable for under any other Government contract, without the Contracting Officer’s prior written approval.
- ___(4) Supplies from stores stock.
- ___(5) Publications and blank forms stocked by the installation.
- ___(6) Safety and fire protection for Contractor personnel and facilities.
- ___(7) Installation service facilities: [Insert the name of the facilities or “none”].
- ___(8) Medical treatment of a first-aid nature for Contractor personnel injuries or illnesses sustained during on-site duty.
- ___(9) Cafeteria privileges for Contractor employees during normal operating hours.
- ___(10) Building maintenance for facilities occupied by Contractor personnel.
- ___(11) Moving and hauling for office moves, movement of large

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equipment, and delivery of supplies. Moving services may be provided on-site, as approved by the Contracting Officer.

(End of clause)

(End of section)

PART I – THE SCHEDULE**SECTION H – SPECIAL CONTRACT REQUIREMENTS****H.1 LISTING OF CLAUSES INCORPORATED BY REFERENCE****I. FAR Clauses Incorporated by Reference**

None Incorporated by Reference

II. NFS Clauses Incorporated by Reference

Number	Title	Date
1852.226-73, Alternate I	Major Breach of Safety or Security, Alternate I (Feb 2026)	Feb 2026
1852.226-74	Safety and Health (Short Form)	Feb 2026
1852.247-70	Protection of the Florida Manatee	Jun 2018

(End of clause)

NFS Clauses Incorporated by Full Text**H.2 1852.225-70 EXPORT LICENSES (DEC 2025)(DEVIATION)**

- (a) The contractor shall comply with all U.S. export control laws and regulations, including the International Traffic in Arms Regulations (ITAR), 22 CFR Parts 120 through 130, and the Export Administration Regulations (EAR), 15 CFR Parts 730 through 799, in the performance of this contract. In the absence of available license exemptions/exceptions, the contractor shall be responsible for obtaining the appropriate licenses or other approvals, if required, for exports of hardware, technical data, and software, or for the provision of technical assistance.
- (b) The contractor shall be responsible for obtaining export licenses, if required, before utilizing foreign persons in the performance of this contract, including instances where the work is to be performed on-site at Johnson Space Center (JSC), where the foreign person will have access to export-controlled technical data or software.
- (c) The contractor shall be responsible for all regulatory record keeping requirements associated with the use of licenses and license exemptions/exceptions.
- (d) The contractor shall be responsible for ensuring that the provisions of this clause apply to its subcontractors.

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(End of clause)

H.3 1852.232-77 LIMITATION OF FUNDS (FIXED-PRICE CONTRACT) (MAR 1989)

- (a) Of the total price of items defined in Delivery/Task Order(s), the sum of **STBD** is presently available for payment and allotted to this contract. It is anticipated that from time-to-time additional funds will be allocated to the contract in accordance with the following schedule, until the total price of said items is allotted:

SCHEDULE FOR ALLOTMENT OF FUNDS
Date
Amounts
As Defined in Delivery/Task Order (s)

- (b) The Contractor agrees to perform or have performed work on the items specified in paragraph (a) of this clause up to the point at which, if this contract is terminated pursuant to the Termination for Convenience of the Government clause of this contract, the total amount payable by the Government (including amounts payable for subcontracts and settlement costs) pursuant to paragraphs (f) and (g) of that clause would, in the exercise of reasonable judgment by the Contractor, approximate the total amount at the time allotted to the contract. The Contractor is not obligated to continue performance of the work beyond that point. The Government is not obligated in any event to pay or reimburse the Contractor more than the amount from time to time allotted to the contract, anything to the contrary in the Termination for Convenience of the Government clause notwithstanding.
- (c)
- (1) It is contemplated that funds presently allotted to this contract will cover the work to be performed.
 - (2) If funds allotted are considered by the Contractor to be inadequate to cover the work to be performed until that date, or an agreed date substituted for it, the Contractor shall notify the Contracting Officer (CO) in writing when within the next 60 days the work will reach a point at which, if the contract is terminated pursuant to the Termination for Convenience of the Government clause of this contract, the total amount payable by the Government (including amounts payable for subcontracts and settlement costs) pursuant to paragraphs (f) and (g) of that clause will approximate 75 percent of the total amount then allotted to the contract.
 - (3)
 - (i) The notice shall state the estimated date when the point referred to in paragraph (c)(2) of this clause will be reached and the estimated

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amount of additional funds required to continue performance to the date specified in paragraph (c)(1) of this clause, or an agreed date substituted for it.

- (ii) The Contractor shall, 60 days in advance of the date specified in paragraph (c)(1) of this clause, or an agreed date substituted for it, advise the CO in writing as to the estimated amount of additional funds required for the timely performance of the contract for a further period as may be specified in the contract or otherwise agreed to by the parties.
- (4) If, after the notification referred to in paragraph (c)(3)(ii) of this clause, additional funds are not allotted by the date specified in paragraph (c)(1) of this clause, or an agreed date substituted for it, the CO shall, upon the Contractor's written request, terminate this contract on that date or on the date set forth in the request, whichever is later, pursuant to the Termination for Convenience of the Government clause.
- (d) When additional funds are allotted from time to time for continued performance of the work under this contract, the parties shall agree on the applicable period of contract performance to be covered by these funds. The provisions of paragraphs (b) and (c) of this clause shall apply to these additional allotted funds and the substituted date pertaining to them, and the contract shall be modified accordingly.
- (e) If, solely by reason of the Government's failure to allot additional funds in amounts sufficient for the timely performance of this contract, the Contractor incurs additional costs or is delayed in the performance of the work under this contract, and if additional funds are allotted, an equitable adjustment shall be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the items to be delivered, or in the time of delivery, or both.
- (f) The Government may at any time before termination, and, with the consent of the Contractor, after notice of termination, allot additional funds for this contract.
- (g) The provisions of this clause with respect to termination shall in no way be deemed to limit the rights of the Government under the default clause of this contract. The provisions of this Limitation of Funds clause are limited to the work on and allotment of funds for the items set forth in paragraph (a). This clause shall become inoperative upon the allotment of funds for the total price of said work except for rights and obligations then existing under this clause.
- (h) Nothing in this clause shall affect the right of the Government to terminate this contract pursuant to the Termination for Convenience of the Government clause of this contract.

(End of clause)

PART I – THE SCHEDULE**H.4 CROSS-WAIVER OF LIABILITY FOR SCIENCE OR SPACE EXPLORATION ACTIVITIES UNRELATED TO THE INTERNATIONAL SPACE STATION (OCT 2012) (DEVIATED)**

- (a) Applicability: The purpose of this clause is to extend a cross-waiver of liability to NASA contracts for work done in support of Agreements between Parties involving Science or Space Exploration activities that are not related to the International Space Station (ISS) or Gateway but involve a launch. This cross-waiver of liability shall be broadly construed to achieve the objective of furthering participation in space exploration, use, and investment.
- (b) Definitions: As used in this clause, the term:
 - (1) “Agreement” refers to any contract or NASA Space Act agreement that contains the cross-waiver of liability provision authorized in 14 CFR Part 1266.104.
 - (2) "Damage" means:
 - (i) Bodily injury to, or other impairment of health of, or death of, any person;
 - (ii) Damage to, loss of, or loss of use of any property;
 - (iii) Loss of revenue or profits; or
 - (iv) Other direct, indirect, or consequential Damage;
 - (3) “Launch” means the intentional ignition of the first-stage motor(s) of the Launch Vehicle intended to place or try to place a Launch Vehicle (which may or may not include any Transfer Vehicle, Payload, or Crew) from Earth:
 - (i) in a suborbital trajectory;
 - (ii) in Earth orbit in outer space;
 - (iii) in lunar orbit; or
 - (iv) otherwise in outer space
 - (v) including Launch Services activities involved in the preparation of a Launch Vehicle, Transfer Vehicle, or Payloads for launch.
 - (4) “Launch Services” means:
 - (i) Activities involved in the preparations of a Launch Vehicle, Transfer Vehicle, Payload, or Crew (including Crew training), if any, for launch; and

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- (ii) The conduct of a Launch
- (5) “Launch Vehicle” means an object, or any part thereof, intended for launch, launched from Earth, or returning to Earth which carries Payloads or persons, or both.
- (6) "Party" means a party to an Agreement involving activities in connection with the Commercial Lunar Payload Services project, including the Parties to this contract.
- (7) "Payload" means all property to be flown or used on or in a Launch Vehicle, Transfer Vehicle, and/or element(s) thereof.
- (8) "Protected Space Operations" means all Launch or Transfer Vehicle activities and Payload activities on Earth, in outer space, or in transit between Earth and outer space in implementation of an Agreement for Science or Space Exploration activities unrelated to the ISS or Gateway that involves a launch.
 - (i) Protected Space Operations begins at the signature of the Agreement and ends when all activities done in implementation of the Agreement are completed. It includes, but is not limited to:
 - (A) Research, design, development, test, manufacture, assembly, integration, operation, or use of Launch or Transfer Vehicles, Payloads, or instruments, as well as related support equipment and facilities and services; and
 - (B) All activities related to ground support, test, training, simulation, or guidance and control equipment, and related facilities or services.
 - (ii) Protected Space Operations excludes:
 - (A) Activities on Earth which are conducted on return from space to develop further a payload's product or process other than for the activities within the scope of an Agreement; and-
 - (B) Activities on the Lunar Surface.
- (9) “Reentry” means to purposefully return or attempt to return, through completion of recovery, a Transfer Vehicle, Payload, or Crew from the Gateway, Earth Orbit, or outer space to Earth.
- (10) “Reentry Services” means:

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- (i) Activities involved in the preparation of a Transfer Vehicle, Payload, or crew (including Crew training), if any, for Reentry; and
 - (ii) The conduct of a Reentry through completion of recovery.
- (11) "Related entity" means:
 - (i) A contractor or subcontractor of a Party at any tier;
 - (ii) A user or customer of a Party at any tier; or
 - (iii) A contractor or subcontractor of a user or customer of a Party at any tier. The terms "contractors" and "subcontractors" include suppliers of any kind.
- (12) "Transfer Vehicle" means any vehicle that operates in space and transfers Payloads or persons or both between two different space objects, between two different locations on the same space object, or between a space object and the surface of a celestial body. A Transfer Vehicle also includes a vehicle that departs from and returns to the same location on a space object.
- (c) Cross-waiver of liability:
 - (1) The Contractor agrees to a waiver of liability pursuant to which it waives all claims against any of the entities or persons listed in paragraphs (c)(1)(i) through (c)(1)(iv) of this clause based on Damage arising out of Protected Space Operations. This cross-waiver shall apply only if the person, entity, or property causing the Damage is involved in Protected Space Operations and the person, entity, or property damaged is damaged by virtue of its involvement in Protected Space Operations. The waiver shall apply to any claims for Damage, whatever the legal basis for such claims, against—
 - (i) A Party;
 - (ii) A Party to another NASA Agreement or contract that includes flight on the same Launch Vehicle;
 - (iii) A Related Entity of any entity identified in paragraphs (c)(1)(i) or (c)(1)(ii) of this clause; or
 - (iv) The employees of any of the entities identified in (c)(1)(i) through (iii) of this clause.

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- (2) The Contractor agrees to extend the cross-waiver of liability as set forth in paragraph (c)(1) of this clause to its own subcontractors at all tiers by requiring them, by contract or otherwise, to:
 - (i) Waive all claims against the entities or persons identified in paragraphs (c)(1)(i) through (c)(1)(iv) of this clause; and
 - (ii) Require that their Related Entities waive all claims against the entities or persons identified in paragraphs (c)(1)(i) through (c)(1)(iv) of this clause.
- (3) For avoidance of doubt, this cross-waiver of liability includes a cross-waiver of claims arising from the *Convention on International Liability for Damage Caused by Space Objects*, entered into force on 1 September 1972, in which the person, entity, or property causing the Damage is involved in Protected Space Operations and the person, entity, or property damaged is damaged by virtue of its involvement in Protected Space Operations.
- (4) Notwithstanding the other provisions of this clause, this cross-waiver of liability shall not be applicable to:
 - (i) Claims between the Contractor and its own Related Entities or between its Related Entities;
 - (ii) Claims made by a natural person, his/her estate, survivors, or subrogees (except when a subrogee is a Party to an Agreement or is otherwise bound by the terms of this cross-waiver) for bodily injury to, or other impairment of health, or death of such person;
 - (iii) Claims for Damage caused by willful misconduct;
 - (iv) Intellectual property claims;
 - (v) Claims for damages resulting from a failure of the contractor to extend the cross-waiver of liability to its subcontractors and related entities, pursuant to paragraph (c)(2) of this clause; or
 - (vi) Claims by the Government arising out of or relating to a contractor's failure to perform its obligations under this contract.
- (5) *Basis for a claim or suit.* Nothing in this clause shall be construed to create the basis for a claim or suit where none would otherwise exist.
- (d) Waiver of claims between the Government and Contractor.
 - (1) This clause provides for a reciprocal waiver of claims between the government and the Contractor and their related Entities as described in

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paragraph (c) above. This reciprocal waiver of claims shall not apply to rights and obligations arising from the application of any of the other clauses in the contract or to rights and obligations arising from activities that are not within the scope of this contract.

- (2) Pursuant to paragraph (c)(2), the Contractor shall extend this waiver of claims to its Related Entities by requiring them, by contract or otherwise, to waive all claims against the Government and its Related Entities.
- (e) Exclusion of FAA-licensed activities. If the Contractor is required to obtain a Federal Aviation Administration (FAA) license in accordance with 51.U.S.C. 50901 et seq., for any Launch Services or Reentry Services performed under this contract, this waiver of claims shall not be applicable to activities under this contract that are subject to the FAA license.

(End of clause)

H.5 CROSS-WAIVER OF LIABILITY FOR PLANETARY SURFACE ACTIVITIES

- (a) As used in this clause—
 - (1) “Damage” means:
 - (i) Bodily injury to, impairment of health of, or death of, any person;
 - (ii) Damage to, loss of, or loss of use of, any property;
 - (iii) Loss of revenue or profits; or
 - (iv) Other direct, indirect, or consequential damage.
 - (2) “Lunar Surface Activities” means activities performed pursuant to this contract on the surface of the Moon. Lunar Surface Activities commence upon contact with the Lunar Surface and conclude with liftoff from the Lunar Surface.
 - (3) “Party” means either NASA or the Contractor, as appropriate (collectively, the “Parties”).
 - (4) “Related Entity” means:
 - (i) A Contractor or subcontractor of a Party at any tier;
 - (ii) A user or customer of a Party at any tier; or
 - (iii) A Contractor or subcontractor of a user or customer of a Party at any tier. The terms “Contractor” and “subcontractor” include suppliers of any kind.

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- (b) Each Party hereby waives any claim against the other Party, employees of the other Party, the other Party's Related Entities, or employees of the other Party's Related Entities, for Damage arising from or related to Lunar Surface Activities.
- (c) This reciprocal waiver of claims shall not apply to rights and obligations arising from the application of any of the other clauses in the contract or to rights and obligations arising from activities that are not within the scope of this Contract.
- (d) Each Party shall extend this cross-waiver to its Related Entities by requiring them, by contract or otherwise, to waive all claims against the other Party, Related Entities of the other Party, and employees of the other Party or of its Related Entities, for Damage arising from or related to Lunar Surface Activities.
- (e) Notwithstanding the other provisions of this clause, this cross-waiver of Liability shall not be applicable to:
 - (1) Claims between a Party and its own Related Entity or between its own Related Entities;
 - (2) Claims made by a natural person, his/her estate, survivors, or subrogees (except when a subrogee is a Party to this contract or is otherwise bound by the terms of this cross-waiver) for bodily injury, other impairment of health, or death of such natural person;
 - (3) Intellectual property claims;
 - (4) Claims for Damage caused by willful misconduct;
 - (5) Claims for Damage resulting from a failure of a Party to extend the cross-waiver of Liability to its Related Entities pursuant to paragraph (c) of this clause; or
 - (6) Claims by a Party arising out of or relating to the other Party's failure to perform its obligations under this contract.
- (f) Nothing in this clause shall be construed to create the basis for a claim or suit where none would otherwise exist.

(End of Clause)

H.6 ON-RAMP

- (a) The purpose of this on-ramp clause is (1) to ensure competition exists throughout the life of this contract and (2) to allow new qualified providers not originally accepted for award the opportunity to provide services/supplies.
- (b) The parties mutually agree that the original solicitation, as revised, shall remain active during the life of this contract and that NASA may award additional

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contracts for IDIQ requirements at any time.

- (c) Starting in calendar year 2028, potential new providers may only submit proposals between April 1 through April 30th each year. There is no fixed timeline for award; timelines will vary based on the volume of proposals received and are subject to resource availability.
- (d) Upon award of each additional contract, NASA shall notify all present Contractors of the award, and the new Contractor(s) shall thenceforth be eligible to compete on Delivery/Task Orders.
- (e) Contracts with existing Contractor(s) will be unaffected by the use of this On-Ramp provision and current contracts will remain active.
- (f) Contract ordering values:
 - (1) The guaranteed minimum order amount for IDIQ contracts awarded in accordance with the On-Ramp Clause will be \$25K.
 - (2) The maximum value of IDIQ contracts awarded in accordance with the On-Ramp Clause are subject to the limitations defined in Clause I.10 JSC 52.216-90 MINIMUM AND MAXIMUM ORDERING LIMITS.
 - (3) The Government reserves the right to unilaterally increase the IDIQ maximum value given in 52.216-90 MINIMUM AND MAXIMUM ORDERING LIMITS for all contracts, including current contractors and on-ramped contractors, if any.

(End of clause)

H.7 OFF RAMP (ADDENDUM TO 52.216-22(e))

- (a) The parties agree that a modification pursuant to this Off-Ramp Clause, either at the request of the Contractor or at the initiation of the Government, will be at no cost to the Government and will not be the basis for any Contractor request for equitable adjustment or dispute.
- (b) Off ramps may occur due to underperformance on awarded orders, failure to actively participate in order competitions, or if requested by the Contractor.
 - (1) *Underperformance on awarded orders.* The Government may off ramp a CLPS 2.0 contractor that is underperforming on awarded orders. For situations that would require repair or replacement of nonconforming supplies or reperformance of nonconforming services, NASA may initiate, and the Contractor may request to initiate an off ramp in lieu of requiring repair, replacement, or reperformance. This off ramp will additionally result in the termination of all of the Contractor's active delivery/task orders at no cost to the Government.

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- (2) *Contractor request for off ramp.* The Contractor may request an early end date of the Ordering Period of this contract per clause I.3, Ordering via mutual agreement of the parties, (i.e., Off-Ramp). Contractor(s) without active task orders, can, by written request to the Contracting Officer request an off ramp. Such an off ramp request may be granted at NASA's sole discretion by the Contracting Officer as a bilateral modification to the contract to end the contract at no cost to the Government.
- (3) *Failure to actively participate in order competitions.* Additionally, the Government may initiate an off ramp of a CLPS 2.0 contractor that is not actively competing or has not communicated and/or demonstrated clear plans to actively compete as a prime Contractor on order solicitations so long as the minimum order guarantee for their awarded IDIQ contract has been met and the Contractor does not have any active task orders. The Government's initiation of an off ramp under the provisions of this clause will not occur any earlier than 18-months after the period of performance end date of the Contractor's last open/active task order. This modification may be issued unilaterally by the Government, at no cost to the Government.
- (4) In the situation of a Failed Mission determination resulting from a loss of CLPS services, either the Government or the CLPS Contract Holder may initiate the off ramp in lieu of a second or subsequent unplanned launch of a replacement CLPS commercial mission, as required to meet the Contractor's re-performance obligations described in FAR 52.246-4 Inspection of Services-Fixed-Price – paragraph (e). This Off-Ramp process may begin sooner than 18-months after the completion of the Contractor's last open task order and will result in termination of all Master IDIQ Contract holder's active task orders.
- (c) The parties agree that a modification pursuant to this Off-Ramp Clause, either at the request of the Contractor or at the initiation of the Government, will be at no cost to the Government and will not be the basis for any Contractor request for equitable adjustment or dispute.

H.8 COMMUNICATIONS

- (a) The Contractor will work with NASA to execute NASA-initiated media events where NASA Office of Communications determines, after good faith consultation with the Contractor, that a media event is warranted the Contractor may, consistent with Federal law and this Contract, release general information regarding its activities conducted within the scope of the Contract. For purposes of this Communications clause, "NASA Communications" shall mean the Associate Administrator for the Office of Communication, or his/her designee as identified to the Contractor by the COR.

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- (1) The Contractor will coordinate with NASA Communications, or their designee, in advance of release of any media products for review and approval, including without limitation releases, advisories, contracts, web articles, media interviews, news conferences, contingency statements, media scouts, photo opportunities, and film crew activities regarding NASA efforts or activities in connection with the Contract. The coordination will be implemented in a timely manner prior to release with negotiations taking place at least five (5) business days before release.
- (2) The use of any direct media statement/quote by a NASA employee shall be submitted to the NASA-designated Communications Officers (Headquarters and appropriate Center) for NASA concurrence to ensure accuracy and appropriateness prior to its release.
- (3) NASA will coordinate, with the Contractor, public releases of information to obtain comments and technical corrections related to the Contractor's efforts or activities in connection with CLPS prior to NASA's release of information to the public with enough time for both parties to negotiate and review in advance. The Contractor shall use its best efforts to provide its review and comments back to NASA within five (5) business days of the request. If the Contractor does not provide comments within five (5) business days, the submitted content will be considered acceptable for release. For breaking news items, there may be a need for more timely release of information to the public in which case the NASA Communications team will coordinate with the Contractor for release.
- (4) For information and imagery related to CLPS that has been previously released or disclosed by NASA or approved for release by the CLPS Contractor and does not represent any new information that would impact NASA, the CLPS Contractor may furnish the information to NASA Communications three (3) business days in advance of planned publication to ensure a coordinated response, unless otherwise agreed to by both NASA and the CLPS Contractor.
- (5) The Contractor may also be requested to provide information to support the development of press kits, social media, and for NASA news events. Any concept imagery shall be submitted in a reasonable timeframe to NASA, and NASA shall have the right to use such imagery for U.S. Government purposes, and such imagery will be appropriately credited according to NASA policies. Imagery which features Contractor-owned Hardware may depict company logos as they appear in context on such Hardware, but the imagery provided to NASA should not contain any graphic overlays, including company logos.
- (6) Upon request, the Contractor shall assist HQ OCOMM in developing the mission commentary for NASA Television by furnishing background material.

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- (7) In the event, the CLPS Contractor plans to provide its own coverage of a CLPS awarded commercial mission, such coverage shall require coordination with NASA Communications. Any mission coverage that requires use of NASA resources will require coordination (Reference NASA Communications clause section 1(a)).
 - (8) Any media activity that requires use of NASA content shall follow the NASA Images and Media Usage Guidelines found at <https://www.nasa.gov/nasa-brand-center/images-and-media/>
 - (9) CLPS Contractor shall provide communications professional(s), as needed, to support prelaunch, launch, in-flight, landing, mission operations, and post mission operations phases where there are “company-specific” media inquiries.
 - (10) At a minimum of forty-five (45) business days in advance, or otherwise as expressly requested by HQ OCOMM, the Contractor shall work with the Contracting Officer Representative (“COR”) to coordinate any communications and branding requirements for any [Fill-in as appropriate, e.g., “launches, aircraft-take offs, landings, major milestones, and tests”. At a minimum, “major milestones” is likely appropriate.] under this Contract.
 - (11) If the Contractor has knowledge that the press is inquiring about an event that meets criteria set forth in NFS 1852.223-70 SAFETY AND HEALTH MEASURES AND MISHAP REPORTING (DEC 2015), the Contractor shall promptly notify the Contracting Officer, or designee, of the event. The Contracting Officer, or designee, will facilitate access to HQ OCOMM, or its designee. HQ OCOMM or its designee will work with the Contractor to generate a coordinated response to the Press and the public.
 - (12) When communicating its own general information to the public related to NASA missions, the Contractor shall reference NASA’s involvement in the funding and development of the Contractor’s commercial products or services that were developed in support of this Contract, if any.
- (b) For purposes of this clause, the term “Media” shall include, but not be limited to, audio, imagery, video, virtual or augmented reality, or other works of mass communications produced by Contractor under the Contract. The Government shall have the rights to use, disclose, reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so, any Media that does not disclose technical data with less than unlimited rights related to items, components, or processes. The Contractor shall have the rights to use, release to others, reproduce, distribute, or publish any Media released by the Government while adhering to the NASA Guidelines (e.g. Images and Media, located at <https://www.nasa.gov/nasa-brand-center/images-and-media/>, and Film and

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Documentary, located at <https://www.nasa.gov/nasa-brand-center/film-and-documentary-guidelines/>).

- (c) Consistent with Federal law and NASA policy, the Contractor shall coordinate with the NASA Communications to include the NASA Insignia, and any other NASA Identifier elements requested by NASA, on Contractor-owned Hardware, and buildings which are actually used in connection with a NASA instrument, or with providing a service to NASA, as applicable. For purposes of this Contract, “Hardware” includes equipment or property owned by the Contractor and used to provide service to NASA, such as, to the extent applicable, space vehicles, space transportation or demonstration vehicles, orbital and robotic spacecraft, component systems, equipment, landers, rovers, structures, and ground infrastructure. The following shall be applicable to such use of NASA Identifiers:
 - (1) The location, size, and exact use of the NASA Insignia (Meatball) must be approved by NASA Communications or designee and shall follow the guidelines set forth in the latest NASA Graphics Standards Manual.
 - a. Contractor trademarks, logos, or other markings, including those of a subcontractor, international partner contractor, or contract service provider, are permitted to appear on Hardware along with the NASA Insignia or other identifiers where such Hardware is owned by the Contractor (or contract service provider), and the Contractor is providing NASA a service, such as flying a payload, if approved in advance by the NASA Communications, with consideration given to whether such markings are appropriate given government requirements related to ethics, promotional appearances, and otherwise, and whether any such considerations may be mitigated by proper sizing or placement of such markings.
 - b. Notwithstanding the foregoing, prominent Contractor markings are not permitted to appear on Hardware when such Hardware is being worn, used or operated by a government astronaut. Whether or not a Contractor marking is prominent shall be determined by NASA in its sole discretion.
 - (2) The NASA Logotype (Worm) may NOT be substituted for the NASA Insignia (Meatball), as per NASA Graphics Standards Manual.
 - (3) Per the NASA Graphics Standards Manual, the NASA Logotype (Worm) may be used as a supporting graphic element with the NASA Insignia (Meatball). All such uses must be approved by HQ OCOMM.
 - (4) To the extent applicable, the NASA Insignia shall be displayed so that it is visible at launch, take-off (as is the case for aircraft), landing, and during other mission activities (i.e., on a lander or any place other partner logos are shown).

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- (5) In situations where NASA is one of many payloads on or users of Contractor-owned Hardware, use of NASA Insignia and Identifiers shall be appropriately sized with branding of similarly situated payload providers or users, with separation, sizing, placement or supporting language as reasonably requested by HQ OCOMM to address any NASA concerns regarding potential endorsement.
- (6) The NASA Insignia shall not be displayed next to “billboard” branding on commercial missions/projects. For purposes hereof, “‘billboard’ branding” shall mean logos, graphics, trademarks, trade dress or other branding elements of any entity other than Contractor and its subcontractors. To mitigate concerns regarding endorsement and other considerations, the following will be at the discretion of NASA after consultation with the Contractor:
 - a. Whether any particular branding is “billboard” branding;
 - b. Whether the Insignia or other NASA Identifiers may be permitted with any non-NASA branding, or,
 - c. Whether separation, sizing, placement or supporting language can be used with the Insignia and any non-NASA branding
- (7) When Contractor-owned hardware is used under Contract, no branding of any outside third-party partner, sponsor, advertiser, or other party shall appear on Hardware intended or expected to be worn, used, or operated by a government astronaut, pilot or other NASA employee.
- (d) The Contractor shall not use the words “National Aeronautics and Space Administration” or the letters “NASA” in connection with a product or service in a manner reasonably calculated to convey any impression that such product or service has the authorization, support, sponsorship, or endorsement of NASA, which does not, in fact, exist. Any partnerships the Contractor desires to make with a third party relating to NASA missions must be in accordance with NASA guidelines (media usage, advertising, merchandise, film, and documentary and partnerships) and requires HQ OCOMM review and approval. In addition, the Contractor shall submit to HQ OCOMM in advance any proposed public use of the NASA name or initials for NASA review and approval. NASA approval shall be based on applicable law and policy governing the use of the NASA name and initials. NASA’s approval will not be unreasonably withheld. Use of NASA emblems/devices (i.e., NASA Seal, NASA Insignia, NASA logotype, NASA Program Identifiers, and the NASA Flag) is governed by 14 C.F.R. Part 1221. The Contractor shall not publicly use such emblems/devices without prior NASA review and approval from NASA Communications in accordance with such regulations.

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- (e) NASA does not endorse any commercial product, service, or activity. NASA's certification of Hardware under this Contract, if applicable, means the Contractor's Hardware has met NASA's safety requirements and does not constitute certification or endorsement by NASA that the Hardware is safe for use. The Contractor agrees that nothing in this Contract will be construed to imply that NASA authorizes supports, endorses, or sponsors any product or service of the Contractor resulting from activities conducted under this Contract.
- (f) The Contractor shall include the terms of this clause in all subcontracts awarded under this contract.
- (g) Any exceptions to the above will be annotated at the delivery/task order level.

(End of clause)

H.9 LICENSES, PERMITS AND INSURANCE

- (a) The Contractor shall obtain and maintain the necessary licenses, permits and clearances that may be required by the Federal Aviation Administration, Department of Transportation, Department of Commerce, Federal Communications Commission, Food and Drug Administration, Department of Defense, NASA, or other Governmental agencies in order to provide services under this contract.
- (b) The Contractor shall meet all contract requirements, in addition to all requirements necessary to obtain and maintain licenses, permits and clearances. In the event conflicts arise, the Contractor is responsible for resolving the conflict and shall immediately notify the Contracting Officer of the conflict and shall describe the methods the Contractor used to try to resolve the conflict.
- (c) The Contractor shall obtain a Federal Aviation Administration (FAA) license or permit, in accordance with 51 U.S.C. Subtitle V, Chapter 509, Commercial Space Launch Activities, Title 51, National and Commercial Space Programs, Subtitle V, Programs Targeting Commercial Opportunities, for operations under this contract.
- (d) All costs and fees associated with obtaining licenses, permits and clearances shall be included in the applicable CLIN price.
- (e) The Contractor shall operate its vehicles in accordance with NPR 8715.6, NASA Procedural Requirements for Limiting Orbital Debris.
- (f) Any approvals required by the NASA Payloads are the responsibility of NASA.
- (g) In accordance with 51 U.S.C. § 50914, the Contractor shall obtain Liability insurance or demonstrate financial responsibility in amounts to compensate for the maximum probable loss from claims by:

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- (1) A third party for death, bodily injury, or property damage or loss arising in connection with the covered launch activities under this contract; and
- (2) The United States Government against a person for damage or loss to Government property arising in connection with the covered launch activities under this contract.
- (h) The Contractor shall provide NASA a copy of the Maximum Probable Loss (MPL) determination and certificate of such insurance once it has been obtained.
- (i) The foregoing insurance requirement does not preclude the Contractor from acquiring or continuing in effect any additional insurance to protect the interests of the Contractor or its Related Parties, such as Commercial General Liability coverage.

(End of Clause)

H.10 PLANETARY PROTECTION

The Contractor shall ensure that its operations are consistent with the Committee on Space Research (“COSPAR”) Planetary Protection Policy and Implementation Guidelines in accordance with NASA policies and directives and applicable U.S. Government regulations. The Contractor shall ensure that the Federal Aviation Administration (FAA) license application provides information on how the Contractor is preventing harmful contamination as referenced in the *NASA Examples of Information to Expedite Review of Commercial Operator Applications to Regulatory Agencies* [link: <https://www.nasa.gov/recommendations-commercial-space-operators/>]

This clause shall be flowed down and included in contracts with all subcontractors and third-party users.

(End of Clause)

H.11 MITIGATION OF ORGANIZATIONAL CONFLICTS OF INTEREST

- (a) Mitigation plan. The Organizational Conflicts of Interest (OCI) Plan and its obligations are hereby incorporated in contract **Attachment J-1, *Organizational Conflicts of Interest (OCI) Plan***.
- (b) Changes.
 - (1) Either the Contractor or the Government may propose changes to the OCI Plan. Such changes are subject to the mutual agreement of the parties and will become effective only upon incorporating the change into the plan by contract amendment.
 - (2) In the event that the Government and the Contractor cannot agree upon a mutually acceptable change, the Government reserves the right to make a

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unilateral change to the OCI Plan as necessary, with the approval of the head of the contracting activity, subject to Contractor appeal as provided in the Disputes clause.

- (c) Violation. The Contractor shall report any violation of the OCI Plan, whether by its own personnel or those of the Government or other Contractors, to the Contracting Officer. This report shall include a description of the violation and the actions the Contractor has taken or proposes to take to mitigate and avoid repetition of the violation. After conducting such further inquiries and discussions as may be necessary, the Contracting Officer and the Contractor shall agree on appropriate corrective action, if any, or the Contracting Officer shall direct corrective action.
- (d) Breach. Any breach of the above restrictions or any nondisclosure or misrepresentation of any relevant facts required regarding organizational conflicts of interest to be disclosed may result in termination of this contract for default or other remedies as may be available under law or regulation.
- (e) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (e), in subcontracts where the work includes or may include tasks related to the organizational conflicts of interest. The terms —Contractor and —Contracting Officer shall be appropriately modified to reflect the change in parties and to preserve the Government’s rights.

(End of Clause)

H.12 DISCLOSURE OF ORGANIZATIONAL CONFLICTS OF INTEREST (OCI) AFTER CONTRACT AWARD

- (a) If the Contractor identifies an actual or potential organizational conflict of interest (OCI) that has not already been adequately disclosed and resolved (or waived in accordance with FAR 9.503), the Contractor shall make a prompt and full disclosure in writing to the Contracting Officer. This disclosure shall include a description of the action the Contractor has taken or proposes to take in order to resolve the conflict. This reporting requirement also includes subcontractors’ actual or potential organizational conflicts of interest not adequately disclosed and resolved prior to award.
- (b) Mitigation plan. The Contractor shall periodically update the plan, based on changes such as changes to the legal entity, the overall structure of the organization, subcontractor arrangements, Contractor management, ownership, ownership relationships, or modification of the work scope.

(End of Clause)

H.13 DATA WITH AN INCORRECT NOTICE OR UNIDENTIFIED DATA CONTAINING RESTRICTIVE OR LIMITING MARKINGS AND WRITTEN JUSTIFICATION OF SUCH MARKINGS

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- (a) For purposes of this contract, "incorrect notice" means a marking placed on technical data or computer software delivered or otherwise furnished to the Government under this contract that is not in a format authorized by this contract.
- (b) "Unidentified data" are data containing a restrictive or limiting marking, whether or not authorized by this contract, and not previously identified in an existing Identification and Representation of Data with Restrictive or Limiting Markings table in accordance with the following applicable clause(s) of this contract: IDENTIFICATION AND REPRESENTATION OF DATA WITH RESTRICTIVE OR LIMITING MARKINGS.
- (c) Pursuant to FAR 52.227-14(e)(i), the Contractor's written justification to substantiate restrictive markings shall include historical documentary evidence that clearly identifies the stages of technical development and the source of funds at a lowest segregable level pertaining to an item, component, process, or computer software. Conclusory statements without supporting historical documentary evidence shall constitute a failure to provide written justification to substantiate the propriety of the markings.
- (d) If the Contracting Officer notifies the Contractor of an incorrect notice and the Contractor fails to respond by either removing or correcting the marking within 60 days after receipt of such notice, the Government, at the Contracting Officer's sole discretion, shall have the right to issue a decision pertaining to the validity of an asserted restriction and to correct the markings after said period, and the data will no longer be made subject to any disclosure prohibitions.
- (e) If the Contracting Officer notifies the Contractor of unidentified data delivered under this contract and the Contractor fails to
 - (1) provide written justification to substantiate the unidentified data are properly identified in an existing Identification and Representation of Data with Restrictive or Limiting Markings rights assertion table in accordance with the applicable IDENTIFICATION AND REPRESENTATION OF DATA WITH RESTRICTIVE OR LIMITING MARKINGS clause of this contract or
 - (2) provide a new Identification and Representation of Data with Limiting or Restrictive Markings table in accordance with the applicable IDENTIFICATION AND REPRESENTATION OF DATA WITH RESTRICTIVE OR LIMITING MARKINGS clause of this contract within 60 days after receipt of such notice, the Government shall have the right to cancel or ignore the markings after said period and the data will no longer be made subject to any disclosure prohibitions. The Government's right to cancel or ignore markings associated with unidentified data is subject to the unauthorized marking of data provision in FAR 52.227-14(e).

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- (f) Costs and expenses associated with correction of an incorrect notice or unidentified data containing a restrictive or limiting marking are unallowable costs under this contract. The Contractor shall be responsible for substantiating the markings at its own expense regardless if the markings originate from the Contractor or from a subcontractor.

(End of Clause)

H.14 IDENTIFICATION AND REPRESENTATION OF DATA WITH RESTRICTIVE OR LIMITING MARKINGS

- (a) This clause does not apply to restrictions based solely on copyright.
- (b) Consistent with FAR 52.227-15(b), Limited Rights Data, Restricted Computer Software, and other data with authorized restrictive or limiting markings to be delivered in performance of this contract will be identified and listed pursuant to this clause. The Contractor shall not deliver any data in performance of this contract with restrictive or limiting markings unless the data are listed herein or later identified and certified by the Contractor that such data qualify for restriction in accordance with the terms of Clause I.9, FAR 52.227-14, *Rights in Data – General (Deviated)*, of this contract, as specified in paragraph (c) or (d) of this clause.
- (c) Pre-Award Identification.

(Start of Identification and Representation)

The Contractor represents it has accurately identified, through recorded information, the stages of technical development and the source of funds at a lowest segregable level pertaining to an item, component, process, or computer software, and hereby certifies that the data related thereto and identified below	Basis for Representation***	Represented Rights Category****	Name of Person Representing Restrictions*****

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qualify for restriction in accordance with the terms of FAR 52.227-14 of this contract: Technical Data* or Computer Software** to be Furnished with Restrictions			
Offeror Fill-in *****	Offeror Fill-in *****	Offeror Fill-in *****	Offeror Fill-in *****

** A representation of restricted computer software is applicable to a lowest segregable level pertaining to computer software. Identify the lowest segregable level pertaining to computer software.

*** Generally, the development of an item, component, process, or computer software at private expense is the only basis for representing limited or restricted rights on the Government. If development was not at private expense, enter the specific reason for asserting that the Government's right should be limited or restricted.

**** Enter represented rights category (e.g., limited rights, restricted rights, SBIR rights, Government Purpose Rights).

***** Corporation, individual, or other person, as appropriate.

Date

Printed Name and Title

Signature

(End of Identification and Representation)

- (d) Post-Award Identification. In addition to the representations made within this clause before award, other representations may be made after award when based on new information or inadvertent omission unless the inadvertent omission would have materially affected the Government's source selection decision, a payment decision, or both. Such identification and representations may be made after award whereby the Contractor shall submit a request to the Contracting Officer as soon as practicable after initial identification in the following format and signed by an official authorized to obligate the Contractor. The Contracting Officer will consider such a request and determine whether or not to accept the request by incorporating it in a contract modification. Such post-award

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identification shall be made in the following format:

(Start of Identification and Representation)

Identification and Representation of Data with Restrictive or Limiting Markings

The Contractor asserts additional data not previously identified pursuant to the IDENTIFICATION AND REPRESENTATION OF DATA WITH RESTRICTIVE OR LIMITING MARKINGS clause of this contract and required to fulfill the data delivery requirements qualify as limited rights data, or restricted computer software, other authorized restrictive marking. The Contractor represents it has accurately identified, through recorded information, the stages of technical development and the source of funds at a lowest segregable level pertaining to an item, component, process, or computer software. Furthermore, the Contractor represents it has verified such recorded information and hereby certifies that the data identified below qualify for restriction in accordance with Clause I.9, FAR 52.227-14, *Rights in Data – General (Deviated)*, of this contract:

Technical Data* or Computer Software** to be Furnished with Restrictions	Basis for Representation** *	Represented Rights Category****	Name of Person Representing Restrictions**** *
Contractor Fill-in *****	Contractor Fill-in *****	Contractor Fill-in *****	Contractor Fill-in *****

* A representation of technical data asserted as limited rights data is applicable to a lowest segregable level pertaining to an item, component, or process. Identify the lowest segregable level pertaining to an item, component, or process.

** A representation of restricted computer software is applicable to a lowest segregable level pertaining to computer software. Identify the lowest segregable level pertaining to computer software.

*** A representation of other data shall be made at a lowest segregable level (i.e., broad descriptions are generally unacceptable due to indefiniteness). Generally, the development data entirely at private expense is the only basis for representing limited or restricted rights on the Government. If development was not at private expense, enter the specific reason for asserting that the Government's rights should be limited or restricted.

**** Enter represented rights category (e.g., limited rights, restricted rights, SBIR rights, Government Purpose Rights).

***** Corporation, individual, or other person, as appropriate.

***** Contractor fill-in after award as applicable.

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Date

Printed Name and Title

Signature

(End of Identification and Representation)

- (e) If requested by the Contracting Officer, the Contractor shall provide sufficient recorded information to justify the validity of the restriction asserted to the data identified in this clause. Such written justification shall include historical documentary evidence that clearly identifies the stages of technical development and the source of funds at a lowest segregable level pertaining to an item, component, process, or computer software. Conclusory statements without supporting historical documentary evidence shall constitute a failure to provide written justification to substantiate the propriety of the markings. Costs and expenses associated with providing sufficient recorded information to justify the validity of the restriction asserted to the data are unallowable costs under this contract. The Contractor shall substantiate its asserted restriction at its own expense.
- (f) Based on the Contractor's actions or deliberate inaction, an omission regarding failing to identify data or a failure by the Contractor to identify, analyze, or verify data as described in this clause may be deemed as an act in deliberate ignorance or reckless disregard of the truth or falsity of the information. The Contractor may not rely on past or commensurate actions or inactions by the Government regarding data not previously identified to the Government as limited rights data or restricted computer software yet delivered to the Government with restrictive or limiting markings and actually or constructively accepted by the Government.
- (g) Subcontracting. If applicable, the Contractor shall obtain from its subcontractors sufficient recorded information to justify the validity of the restriction asserted to the data identified in this clause necessary to fulfill the Contractor's obligation in paragraph (e) of this clause. If a subcontractor refuses to accept terms affording the Contractor to provide such sufficient recorded information to the Contracting Officer, the Contractor shall promptly notify the Contracting Officer of the refusal and shall not proceed with the subcontract award without authorization in writing from the Contracting Officer.
- (h) Any Pre-Award Identification and Post-Award Identification of this clause will be incorporated into Volume V (Model Contract) as **Attachment J-7, *Authorized Limited Rights and Restricted Rights Data***.

(End of Clause)

PART I – THE SCHEDULE**H.15 OUTER SPACE TREATY COMPLIANCE****(a) Debris Mitigation Clause**

The Contractor shall ensure that its operations are consistent with the Space Debris Mitigation Guidelines of the United Nations Committee on the Peaceful Uses of Outer Space, endorsed by the United Nations General Assembly in its Resolution 62/217 of December 22, 2007, and all applicable U.S. Government regulations, policies, and directives. Furthermore, the Contractor shall comply with the U.S. Government Orbital Debris Mitigation Standard Practices (2019) and meet the orbital debris requirements of all licensing authorities (including the Federal Aviation Administration (FAA) and the Federal Communications Commission (FCC)). For cislunar and beyond LEO activities, the Contractor shall provide ephemeris data to NASA or another authorized entity responsible for conjunction assessment and collision avoidance of spaceflight activities. This clause must be flowed down to any relevant contracts, subcontracts, and/or third-party agreements the Contractor enters into that involve missions to cis- lunar space. The Contractor should reference the Conjunction Assessment and Collision Avoidance Best Practices Handbook as a guide to follow.

https://nodis3.gsfc.nasa.gov/OCE_docs/OCE_50.pdf

Required Notification of Deviations to Activities

The Contractor shall ensure that NASA and any other required authority(ies) are promptly notified, regarding any changes to the proposed mission activities before execution of such changes during the time of transit to the Moon or use on the surface of the Moon. The proposed mission activities include NASA, Contractor, and any non- NASA activities. The Contractor shall also promptly notify NASA and any other required authority(ies) when the Contractor's lunar operations have concluded.

(b) Planetary Protection

The Contractor shall ensure that its operations are consistent with the Committee on Space Research ("COSPAR") Planetary Protection Policy and Implementation Guidelines in accordance with NASA policies and directives and applicable U.S. Government regulations and requirements. The Contractor shall ensure that the Federal Aviation Administration (FAA) license application provides information on how the Contractor is preventing harmful contamination as referenced in the NASA Examples of Information to Expedite Review of Commercial Operator applications to Regulatory Agencies

<https://www.nasa.gov/organizations/cara/nasa-examples-of-information-to-expedite-review-of-commercial-operator-applications-to-regulatory-agencies/>

This clause must be flowed down to any relevant contracts, subcontracts, and/or third-party agreements the Contractor enters into that involve missions to cis-

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lunar space.

(c) Preserving Lunar Heritage

As required by 3(a)(1) of the “One Small Step to Protect Human Heritage in Outer Space Act” Pub. L. 116-275, enacted on December 31, 2020, in carrying out the Contractor’s responsibilities, the Contractor shall comply with “NASA’s Recommendations to Space- Faring Entities: How to Protect and Preserve the Historic and Scientific Value of U.S. Government Lunar Artifacts,” issued by NASA on July 20, 2011, and updated on October 28, 2011. The Contractor also shall comply with any successor recommendations, guidelines, best practices, or standards relating to the principle of due regard and the limitation of harmful interference with Apollo landing site artifacts issued by NASA. This clause must be flowed down and included in contracts or agreements with all contractors, subcontractors, and third-party users.

(End of Clause)

H.16 DOMESTIC SOURCE REQUIREMENTS

(c) *Definitions.* As used in this clause, the following definitions apply.

- (1) “Components” means those materials and supplies directly incorporated into a domestic end product.
- (2) (2) “Controlling interest” means ownership of an amount of equity in such entity sufficient to direct management of the entity or to avoid transactions entered into by management. Ownership of at least fifty-one (51) percent of the equity in an entity creates a presumption that such an interest is controlling; however, the ultimate determination as to whether the interest is controlling resides with NASA.
- (3) “Domestic end product” means a product for which the cost of its components that are mined, produced, or manufactured in the United States exceed sixty five (65) percent of the cost of all of its components for items delivered in calendar years 2024 through 2028 and seventy five (75) percent starting in calendar year 2029. The cost of each component includes transportation costs to the place of incorporation into the product and any applicable duty (whether or not a duty-free entry certificate is issued). Assembly, integration, and testing would be necessarily included in the cost of manufacturing. The manufacturing costs of domestic end products, including all labor and services associated with such manufacturing, should be included in the overall calculation when determining if the cost of components exceed 65% in calendar years 2024 through 2028 (and 75% starting in calendar year 2029) of all components per the clause.

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- (4) “Space transportation services” means: the preparation of a space transportation vehicle and its Payloads for transportation to, from, or within outer space, or in suborbital trajectory, and the conduct of transporting a Payload to, from, or within outer space, or in suborbital trajectory and includes all services required in the performance of this Contract. This includes but is not limited to the launch of CLPS Payloads and other elements necessary for the performance of this contract, including transportation to and landing on the Lunar Surface.
 - (5) “Space transportation vehicle” means any vehicle constructed for the purpose of operating in, or transporting a Payload both to and within, space and transportation on the Lunar Surface.
 - (6) “United States commercial provider” means any corporation, partnership, joint venture, association, or other entity which is organized or existing under the laws of the United States or any State, and whose controlling interest is held by United States citizens or permanent residents.
- (b) *Domestic source restrictions.*
- (1) *Services.* In accordance with 51 U.S.C. § 50131, space transportation services shall be provided by United States commercial providers. The Contractor may utilize subcontractors for the performance of this work only if the total value of the space transportation services performed by non-United States commercial providers does not exceed 65% of the total price in calendar years 2024 through 2028 (and 75% starting in calendar year 2029) for space transportation services paid by the Government under this contract.
 - (2) *Vehicle composition.* In accordance with the National Transportation Space Policy, each space transportation vehicle utilized by the Contractor in performance of this contract, including but not limited to lunar landers, launch vehicles, and any other space transportation vehicle used to deliver lunar payloads to the lunar surface, shall be a domestic end product.
- (c) *Certification and materiality.*
- (1) *Certification.* Offerors must certify that they meet all requirements of this clause in responding to this solicitation. Offerors that fail to meet these requirements are ineligible for award.
 - (2) *(2) Materiality.* The Contractor’s compliance with this clause is a material condition of receiving contract payments. The Contractor shall comply with this clause at all times during contract performance. The Contractor’s failure to comply with the terms of this clause may result in the Government exercising its right to terminate the contract for default in accordance with FAR 52.249-8 and the applicable terms of this contract. The Government may choose not to exercise its right to terminate the

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contract; however, such an election is not a waiver of its right to do so in the future

(End of Clause)

H.17 APPLICABILITY OF RIGHTS IN DATA – SPECIAL WORKS

- (a) The clause FAR 52.227-17, *Rights in Data--Special Works*, as provided below in Section I, *Contract Clauses*, applies only to the portions of this contract that call for the production of data as set forth in subparagraphs (1) – (2) below in the performance of the contract, or as otherwise specified in this contract or agreed to by the Parties in writing. FAR 52.227-14, *Rights in Data -- General* (as modified by NFS 1852.227-14) (Deviation) (as provided below in Section I of the contract) applies to all other data.
 - (1) All data first produced in the performance of this contract on the Lunar Surface or onboard the CLPS lunar landers by assets used by or on behalf of the U.S. Government, including, but not limited to: NASA Sponsored Payloads on CLPS lunar landers and other future assets;
 - (2) All data first produced in the performance of this contract that include NASA assets in the content produced, such as in audio, video, or images, or other multi-media content gathered on or from the Lunar Surface.
- (b) Photos, video, other imagery, and sound first produced in the performance of this contract, when NASA-Sponsored Payloads are on the lunar surface, are subject to the applicability of FAR 52.227-17, *Rights in Data – Special Works* as specified herein, are not considered scientific and/or technical articles, and are subject to the prior written permission of the Contracting Officer before release, reproduction, distribution or publication of such data.

(End of Clause)

H.18 REQUIRED NOTIFICATION OF DEVIATIONS TO ACTIVITIES

The Contractor shall ensure that NASA and the relevant regulatory authority(ies) are promptly notified, consistent with the Statement of Work (SoW), regarding any changes to the proposed mission activities before execution of such changes during the time of transit to the Moon or use on the surface of the Moon. Per the CLPS 2.0 contract's SoW, the proposed mission activities include NASA, Contractor, and any non-NASA activities. The Contractor shall also promptly notify NASA and the relevant regulatory authority(ies) when the Contractor's lunar operations have been concluded.

(End of Clause)

H.19 NASA ENHANCED INSIGHT AND COLLABORATION

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- (a) NASA's monitoring of CLPS will be defined at the delivery/task order level and may be comprised of the following:
 - (1) NASA approval is defined as providing authority to proceed and/or formal acceptance of requirements, deliverables, plans, tests, or success criteria in specified areas. Where NASA approval is required, the Contractor shall submit the necessary documentation to the Contracting Officer and copies to the Contracting Officer's Representative (COR).
 - (2) NASA Insight is defined as gaining an understanding of the Contractor's activities and data through effective working relationships, interaction, watchful observation, documentation review, meeting attendance, reviews, tests, inspections and compliance evaluations without approval authority. Knowledge gained through insight allows NASA to assess the overall risk of the Contractor actions or lack thereof to perform on NASA's CLPS commercial missions. NASA Insight includes insight into the Contractor, subcontractor, and partner entities performing lander design, development, manufacturing, management, mission integration, vehicle integration, operations, medical and health, training and certification, hardware/software testing that could impact CLPS payload delivery requirements, interfaces, integration, and mission operations.
- (b) The Contractor shall provide the Government and its Support Service Contractors, under suitable, protective conditions, access to all data used in the performance of this contract including, but not limited to: data associated with areas of insight as identified in the Statement of Work, associated delivery/task orders, and this clause. At a minimum, access to the data is the ability for the Government and its support service Contractor personnel, both remotely and onsite at the Contractor's facilities, to locate and review all data as defined above in a usable and readable format. The Contractor shall provide the Government and its support service Contractor(s) access to all Contractor activities associated with CLPS commercial mission compatibility and safety certification under this contract. The Government reserves the right to audit any safety and/or quality assurance processes that affect safety critical items or the lander or payload interface. Compliance with this clause may require the Contractor to execute third-party data rights agreements with its suppliers, to provide adequate NASA Insight on hardware and services procured by the Contractor and shall be at no additional cost.
- (c) NASA will retain approval authority over portions of the CLPS commercial missions and mission phases that interface with and is used in integrated operations with and Payloads. NASA approval is defined as providing authority to proceed and/or formal acceptance of requirements, plans, tests, entrance and exit criteria for all milestones, and success criteria. Specific areas requiring NASA approval are related to compliance, noncompliance, or tailoring are cited in the SoW and at the delivery/task order level.

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- (d) The Contractor shall provide NASA an adequate level of insight into certain Contractor tasks and events in order to ensure all reasonable steps have been taken that result in the highest probability of CLPS mission success. This includes insight into any corporation, corporate divisions, subsidiaries, joint ventures, partner(s) and any other business entity performing CLPS systems manufacturing, management, data analysis, training, interface integration and verification, testing, and operations support. This also includes insight into certain major sub-Contractor tasks and events (e.g., sub-Contractors that perform major portions of manufacturing, management, data analysis, training, testing, integration, verification, testing, and operations support). Fulfillment of this clause could require the Contractor to execute third-party data rights agreements with its suppliers, as well as rights to information developed under other programs, to provide adequate NASA Insight on parts and services procured by the Contractor. The Contractor shall obtain signed commitments to comply with the terms of the Insight and Approval clause(s) and Performance Work Statement requirements from any major team member, subcontractor, sub-tier Contractor, or supplier with an estimated value in excess of \$10M or that will manufacture critical CLPS components (e.g., tanks, engines, etc.).
- (e) Where NASA Insight is required as defined in this clause, including (1) through (7) below, the Contractor shall notify the COR of meetings, reviews, or tests in sufficient time (including travel time) to permit NASA participation through the entire event. If the Contractor believes that NASA has a subject matter expert with experience and/or expertise on this contract, the Contractor may request that the COR notify the relevant individual and ensure appropriate NASA participation. The Contractor shall enable NASA Insight, as defined in SoW, as well as in areas that provide evidence of components including its subsystems, subcomponents, and integrated functions with software, are verified in a manner consistent with how they will be used in operations and training; have sufficient margin to its maximum expected environments; meet its minimum required performance, and are acceptable for in-space use.
- (1) CLPS Lander Design and Certification Insight.
- Design development, design trades, baseline design, changes from the baseline and Mission Unique CLPS lander system design, analyses, and configuration management, will be provided principally through design analyses cycles, requirement reviews, design and qualification/acceptance reviews, certification and delta-certification reviews. A planned evolution of the CLPS lander architecture is considered a change from the Baseline and must be presented to NASA prior to the first use or as soon as practical if based on post flight/mission assessment or real-time anomalies.
- (2) Reviews of the Contractor's Test Like You Fly and Qualification & Acceptance rationale for the CLPS lander including Payloads/Cargo and Delivery System Interfaces. If a system or component of a system is found to have caused a mission failure, the system shall be added to the

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areas of focused insight. Test Like You Fly is defined as testing of all critical mission-operations elements as they will be flown to greatly reduce the risk of encountering negative impacts upon Mission success from portion to full loss of mission capabilities. This approach comprehensively validates system functionality.

- (3) Deviations or changes to mission or ground operations is considered a change from the Baseline and must be presented to NASA prior to the first use or as soon as practical if based on post-flight/mission assessment or real-time anomalies.
- (4) Production progress through production reviews, plans, and schedules, including schedules for CLPS lander and integration with NASA or International Partners (IP) payloads, and schedule risk.
- (5) Safety and Mission Assurance compliance evaluations until AS9100-certified (prime, subcontractors and suppliers). Should approval or insight identify non-compliance with the terms and conditions of the contract, a difference in interpretation of test results, or disagreement with the Contractor technical directions, NASA will take appropriate action within the terms of the contract to ensure compliance via written direction to the Contractor.
- (6) Quality Assurance information such as Contractor's audit schedules, audit reports, Material Review Board (MRB) actions and minutes, non-conformances, discrepancy reports, test failure reports, system failure reports, anomalies, deviations and waivers, and supporting data.
- (7) Real-time status of Key Design Parameters (KDPs) which track the implementation of key requirements.
- (f) NASA will have insight into any Contractor-initiated CLPS lander(s) (across the entire customer base) changes or any changes that may affect CLPS commercial missions. This insight shall be accommodated with no increase in contract price.
- (g) The Contractor shall notify NASA of space operations, qualification, or test anomalies involving similar CLPS hardware, systems, subassemblies, and components as soon as feasible. The Contractor shall make available to NASA all problem reports or discrepancy reports on CLPS system's failures and anomalies. This shall include insight into fleet-wide problems, anomalies, Material Review Board actions, deviations or waivers to systems, subsystems, materials, processes, and test equipment including those used on non-NASA missions.
- (h) In the event of an CLPS system anomaly or failed mission, the Contractor shall support NASA's Failure Review Board (FRB), if activated, or shall allow NASA to participate in the Contractor's failure investigation board, including those for non-NASA missions. The purpose of either the NASA or Contractor's FRB shall be to determine the cause of the anomaly or failure and to identify any corrective

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actions needed to ensure the CLPS system meets all requirements and shall be completed entirely at the Contractor's expense. The FRB will evaluate all available data from the ground, on-orbit Crew, CLPS systems, host vehicle, space environment and other sources in order to determine if the mission failure was attributable to the CLPS systems or conditions which the Contractor is expected to control or avoid.

- (1) The Government may designate representatives to observe and participate in the Contractor's FRB.
 - (2) The Contractor shall present to the Government its findings resulting from the investigation and the proposed corrective actions, if any. The Contractor shall be responsible for the cost of the corrective action including Contractor's cost for re-acceptance for NASA missions.
 - (3) Based on the findings and recommendations of the investigation(s) (if applicable), NASA shall make the final determination as to Partial Mission Success or Failed Mission. If the Contractor disagrees with the determination, the decision shall be subject to the Disputes clause of this contract.
 - (4) This clause supplements paragraph (e) of FAR 52.246-4, *Inspection of Services-Fixed-Price*, in cases where the Government chooses to not require re-performance of the service.
- (i) NASA may elect to have representation as a resident office at the Contractor's major manufacturing and engineering facilities for the life of the contract. The Contractor shall provide accommodations and services, such as badging, furniture, telephones, and use of easily accessible scanners, printers, and copy machines for up to two residents at each location. A minimum of two telephone lines shall be provided. Electronic data transfer compatibility between the resident office and NASA institutions is required, as well as remote access for select NASA personnel at NASA centers to Contractor databases where electronic files are posted, and revisions maintained.
 - (j) Notwithstanding the insight and approvals set forth in this clause, the Contractor assumes full performance responsibility as set forth in this contract. Neither NASA's insight nor its approval under this clause relieves the Contractor from its obligation to ensure mission success and certification or failure or final acceptance or rejection of the certification of the CLPS lander.
 - (k) The Contractor shall provide safe and suitable access to NASA, its support services Contractor(s), IPs, and other Contractors participating in the Government's programs of which the specific contract is a part to all Contractor data and activities associated with performance of this contract.

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- (l) Additional requirements related to NASA Insight and Approval are included in Section C, *Statement of Work*, and may also be added, as needed per CLPS commercial mission, in each delivery/task order.
- (m) Government Quality Assurance (GQA) Functions
 - (1) The Government will perform the following quality assurance functions: Product Examination, Process Witnessing, Record Review, Surveillance, and Audit.
 - (2) GQA functions will be performed for all safety-critical items/processes/products identified by a risk-based analysis (RBA). An RBA is an iterative analysis based on a comprehensive understanding of the design, development, testing, critical manufacturing / assembly processes, and operations used to identify areas of risk. The Contractor shall support the RBA, by providing technical expertise, as required.
 - (3) The Contractor shall allow attendance of personnel, performing insight for this contract, from NASA, or NASA support Contractors at flight hardware acceptance reviews and make available all documentation associated with those reviews.

(End of Clause)

JSC Clauses Incorporated by Full Text

H.20 USE OF GOVERNMENT RESOURCES

- (a) General. While the majority of work to be completed under this contract shall be performed at Contractor or subcontractor facilities, and the responsibility for adequately staffing this contract and completing full contract performance resides solely with the Contractor, the Contractor may request the use of certain specified Government resources in accordance with this clause. This clause applies to the Contractor's use of those Government resources listed in **Attachment J-3, *Government Task Agreements***, including property, facilities, assets, information and data, or services, whether obtained from NASA or another Government Agency; it does not apply to Government Furnished property (GFP), equipment (GFE), or data (GFD) otherwise provided under this contract under **Attachment J-4, *Government Furnished Property and Data/Information***.
- (b) Use of NASA resources.
 - (1) Types of resources.
 - (i) NASA on-site resources. The Offeror/Contractor may propose to perform a portion of the work required under this contract using the property, facilities, assets, services, or other specialized resources uniquely available on-site (“on-site resources”) from a NASA

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Center, Component Facility, or the Jet Propulsion Laboratory (JPL) (any one of which is a “Performing Organization” hereafter in this clause). Such proposed requests must be within the scope of the contract and are subject to the availability of those resources and the Performing Organization’s ability and willingness to provide them. The Offeror/Contractor shall limit requests for the use of on-site resources to only those Performing Organization facilities, services, or other resources that are unique or not otherwise reasonably available commercially. The Offeror/Contractor shall document its planned use of or modifications to on-site resources through the execution and submission with proposal of one or more Government Task Agreements (GTAs). During contract performance, the Parties may agree to modify GTAs and/or execute additional GTAs if they mutually determine such agreements are necessary to respond to new or changed circumstances that arise during performance. GTA modifications are required when the requested scope is inconsistent with the original GTA Terms (e.g., more test runs are needed). The Contractor shall be responsible for the cost of any such new or modified GTA, and the Parties shall effectuate the addition of new or modified GTAs, and corresponding contract price adjustments, pursuant to FAR 52.243-1 *Changes - Fixed-Price* (ALT I) as incorporated herein. The Offeror/Contractor shall follow the instructions for use of GTAs as provided in solicitation **Attachment J-3, Government Task Agreements**. The Offeror shall contact the corresponding Center Partnership Office Point of Contact to negotiate the terms of each GTA. The Partnership Office Point of Contact shall provide a cost for each GTA, but the Offeror shall not include this cost in its proposed prices or NTEs. The total cost of all GTAs will be added to the Offeror’s Total Evaluated Price for proposal evaluation purposes only.

- (ii) NASA personnel. NASA has unique personnel and expertise that NASA is making available to the CLPS Contractor in accordance with the terms of this clause. During contract performance, at no cost to the Contractor, for each awarded delivery/task order the CLPS Contractor may request up to # of hours to be identified at the task order level hours of NASA personnel to provide specific areas of expertise in designated Collaboration roles during CLIN 1 and CLIN 2 activities only. GTAs are not required for this Collaboration effort. NASA personnel serving in Collaboration roles may also perform Insight and Approval functions. The Offeror shall document its initial requested approach to collaboration in its Insight and Collaboration Implementation Plan. During contract performance, the Contractor shall document its collaboration requests in writing to the Contracting Officer and Contracting Officer’s Representative (COR). The Contractor shall

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request specific areas of technical subject matter expertise (e.g., engineering, operations, or safety) and the duration and amount of the requested resources, but the Contractor shall not request specific personnel/full time equivalent (FTE) by name or title. NASA has the sole authority to determine whether it will provide any portion of the collaboration resources requested by the Contractor. During contract performance, NASA reserves the right to unilaterally change its approach to collaboration at any time, including the right to modify the specific FTEs offered to the Contractor and the amount, type, and/or duration of its support, and including the right to cease collaboration at any time. At all times during collaboration, the FTEs remain employed by, and under the supervisory control of, NASA. While collaborative communication between the Contractor and provided FTEs is expected in furtherance of the FTEs' advisory roles, the Contractor shall not direct or supervise the work of FTEs. NASA will use reasonable efforts to ensure equitable resources are provided to all potential CLPS Contractors in support of its respective collaboration approaches but makes no guarantees that identical resources will be provided. Specific resources will be narrowly tailored to a Contractor's unique development approach and associated needs and objectives.

- (2) Disclaimer. NASA makes no warranty whatsoever as to the availability or suitability of NASA property, facilities, assets, information and data, services, or FTEs made available under this clause. The Contractor assumes all responsibility for determining the suitability for use of all NASA resources, including technical suitability, schedule availability, and cost. NASA provides all resources as-is. The Contractor uses all NASA resources at its own risk.
- (3) Authority to commit the Government. The Contracting Officer retains sole authority to commit the Government in matters which would change contract price, quantity, delivery schedule, or any other requirement of this contract, including interpretation of technical requirements. The Contracting Officer may designate a representative (COR) to assist with contract administration within the limitations of authority as specified in its COR appointment letter. Individuals performing collaboration and/or insight have no authority to commit the Government, and nothing in this clause shall be construed to confer authority, actual or apparent, to these individuals. Such individuals may offer its opinions, advice, knowledge, or expertise to the Contractor during performance, but the Contractor is not bound to comply with this input and does so on its own accord and at its own risk.
- (4) Impermissible use of NASA as a subcontractor or supplier. The Contractor shall not use the NASA resources made available pursuant to

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paragraphs (b)(1)(i) or (ii) of this clause to solely provide any end-item deliverable, including spacecraft components, subsystems, or elements, nor any ground or flight hardware or software, that is the responsibility of the Contractor under the terms of this contract. The Contractor shall not rely solely on NASA for the provision of complete flight or ground operations in support of this effort. This paragraph does not prohibit the Contractor's use of GFE, GFP, or any other Government Furnished item provided by the Government pursuant to another term of this contract.

- (5) Contractor Waiver of Claims. By choosing to use NASA in support of contract performance, Contractor hereby waives any claims against NASA, its employees, its related entities, (including, but not limited to, Contractors and subcontractors at any tier, grantees, investigators, customers, users, and its Contractors and subcontractors at any tier) and employees of NASA's related entities for any injury to, or death of, Contractor's employees or the employees of Contractor's related entities, or for damage to, or loss of, Contractor's property or the property of its related entities arising from or related to activities conducted pursuant to this Clause, whether such injury, death, damage, or loss arises through negligence or otherwise, except in the case of willful misconduct. The Contractor further agrees to extend this waiver to its related entities by requiring them, by contract or otherwise, to waive all claims against NASA, its related entities, and employees of NASA and employees of NASA's related entities for injury, death, damage, delay, or loss arising from or related to activities conducted pursuant to this clause.
- (c) Use of resources from a Government Agency other than NASA. The Contractor shall obtain and maintain any necessary contracts or agreements between the Contractor and any Government Agency authorizing the use of Government property, facilities, assets, or services in performance of this contract (except as may be expressly stated in this contract as furnished by the Government). The Contractor shall be responsible to arrange any contracts or agreements outside of this contract as it deems appropriate. The terms and conditions of such contracts or agreements will govern the use of those Government resources. Any costs associated with such contracts or agreements shall result in no increase in the price of this contract. All remedies to disputes or performance issues shall be resolved in accordance with the terms and conditions of those contracts or agreements. The Contractor shall notify the Contracting Officer, COR, or designee of any contracts or agreements between the Contractor and any Government Agency under this paragraph. NASA makes no warranty whatsoever as to the availability or suitability for use of Government property, facilities, assets, or services made available by another Government Agency under the terms and conditions of other contracts or agreements. The Contractor assumes all responsibility for determining the suitability for use of all property, facilities, assets, or services acquired or made available to the Contractor by a Government

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Agency under other contracts or agreements. The Contractor further acknowledges and agrees that any use of such Government property, facilities, assets, or services shall not relieve the Contractor of full performance responsibility under the contract.

- (d) Safeguarding of confidential or proprietary information. The Trade Secrets Act (18 U.S.C. § 1905) prohibits NASA personnel from disclosing the Contractor's proprietary information unless authorized by law to do so. NASA will undertake all necessary precautions in order to ensure that Contractor confidential or proprietary information is protected throughout contract performance.
- (e) Contractor responsibility. Notwithstanding the Contractor's use of Government resources, the Contractor remains fully responsible for the performance of all requirements as set forth in this contract. The Government's provision of the resources described in this clause shall not be construed as: authorization; endorsement or approval of milestones; certification or final acceptance or rejection of certification success; or as a defense to any finding of mission failure or final acceptance or rejection of contract deliverables.
- (f) Use of Government Data or Information provided in accordance with this clause. The Contractor may use the data and information provided under this clause and related data, and any modified or enhanced versions thereof, only for performing work under this contract unless otherwise provided for in this contract, on the markings of the data and information provided under this clause or approved in writing by the Contracting Officer.
 - (1) For data and information provided under this clause that display a copyright notice belonging to a third party, the Contractor shall not, without the express written permission of the Contracting Officer, reproduce, distribute copies, prepare derivative works, perform publicly, display publicly, release, or disclose the data and information provided under this clause or related data to any person except for the performance of work under this contract.
 - (2) Allocation of rights associated with any data and information provided under this clause or related data modified or enhanced under this contract shall be defined by clause I.10, Rights in Data – General (Deviation), in this contract (as modified by any applicable NASA FAR Supplement clauses).
 - (3) The Contractor may provide the data and information provided under this clause, and any modified or enhanced versions thereof, to subcontractors as necessary for the performance of work under this contract. Before release of the data and information provided under this clause, and any modified or enhanced versions thereof, to such subcontractors (at any tier), the Contractor shall insert, or require the insertion of, this clause, including this paragraph (c)(4), suitably modified to identify the parties as follows:

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references to the Government are not changed, and in all references to the Contractor the subcontractor is substituted for the Contractor so that the subcontractor has all rights and obligations of the Contractor in the clause.

- (4) The Government provides the data and information provided under this clause in an “AS-IS” condition. The Government makes no warranty with respect to the serviceability and/or suitability of the data and information provided under this clause for contract performance.
- (5) Title to or license rights. The Government shall retain title to or license rights in all data and information provided under this clause. Title to or license rights in data or information provided under this clause shall not be affected by its incorporation into or attachment to any data not owned by or licensed to the Government.
- (6) Waiver of Claims and Indemnification. The Contractor agrees to waive any and all claims against the Government and shall indemnify and release the Government, its agents, and employees from every claim or liability, including attorney’s fees, court costs, and expenses, arising out of, or in any way related to, the misuse or unauthorized modification, reproduction, release, performance, display, or disclosure of the data and information provided under this clause and related data by the Contractor, a subcontractor, or by any person to whom the Contractor has released or disclosed such data and information provided under this clause or related data.
- (7) Flow-down of Waiver of Claims and Indemnification. The Contractor shall include this clause, suitably modified to identify the parties, in all subcontracts, regardless of tier, which involve use of the data and information provided under this clause and/or related data in any way. At all tiers, the clause shall be modified to define data and information provided under this clause as it is defined herein and to identify the parties as follows: references to the Government are not changed, and in all references to the Contractor the subcontractor is substituted for the Contractor so that the subcontractor has all rights and obligations of the Contractor in the clause. In subcontracts, at any tier, the Government, the subcontractor, and the Contractor agree that the mutual obligations of the parties created by this clause constitute a contract between the subcontractor and the Government with respect to the matters covered by the clause.

(End of Clause)

PART I – THE SCHEDULE**H.21 JSC 52.219-90 SMALL BUSINESS SUBCONTRACTING GOALS (JUN 2022)**

For purposes of this clause, the terms, “HUBZone Small Business Concern,” “Small Disadvantaged Business Concern,” “Service-Disabled, Veteran-Owned Small Business Concern,” “Veteran-Owned Small Business Concern,” “Women-Owned Small Business Concern,” and “Historically Black College or University (HBCU)” are defined in paragraph 2.101 of the Revolutionary FAR Overhaul.

The total small business goal, expressed as a percent of total contract value including options, is [REDACTED] percent. The small business percentage goal, includes the following goals expressed as a percent of total contract value:

Small Disadvantaged Business Concerns [REDACTED] percent

Woman-Owned Small Business Concerns [REDACTED] percent

HUBZone Small Business Concerns [REDACTED] percent

Veteran-Owned Small Business Concern [REDACTED] percent

Service-Disabled, Veteran-Owned Small Business Concern [REDACTED] percent

HBCU’s (includes other minority institutions) [REDACTED] percent

(End of Clause)

(End of section)

PART I – THE SCHEDULE**SECTION I – CONTRACT CLAUSES****I.1 LISTING OF CLAUSES INCORPORATED BY REFERENCE****I. FAR Clauses Incorporated by Reference**

Number	Title	Date
52.203-6 Alternate I	Restrictions on Subcontractor Sales to the Government. Alternate I	Nov 2021
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-13 Deviation	System for Award Management - Maintenance Deviation	Nov 2025
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment.	Jan 2025
52.209-10 Deviation	Prohibition on Contracting with Inverted Domestic Corporations Deviation	Nov 2025
52.215-8 Deviation	Order of Precedence – Uniform Contract Format	Nov 2025
52.217-2	Cancellation Under Multi-year Contracts.	Oct 1997
52.217-8	Option to Extend Services.	Nov 1999
52.219-8 Deviation	Utilization of Small Business Concerns Deviation	Nov 2025
52.219-9 Alternate II Deviation	Small Business Subcontracting Plan Alternate II Deviation	Nov 2025
52.219-16	Liquidated Damages-Subcontracting Plan	Sep 2021
52.222-3 Deviation	Convict Labor	Dec 2025
52.222-35	Equal Opportunity for Veterans	Jun 2020
52.222-37	Employment Reports on Veterans	Jun 2020
52.222-40	Notification of Employee Rights under the National Labor Relations Act	Dec 2010
52.222-41	Service Contract Labor Standards	Aug 2018
52.222-42	Statement of Equivalent Rates for Federal Hires	May 2014
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts)	Aug 2018
52.222-50 Alternate I	Combating Trafficking in Persons. Alternate I (Mar 2015)	Oct 2025
52.222-54 Deviation	Employment Eligibility Verification	Jan 2025

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52.224-3	Privacy Training	Jan 2017
52.225-1 Alternate I	Buy American-Supplies	Oct 2022
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.227-16	Additional Data Requirements	Jun 1987
52.227-17	Rights in Data – Special Works Fill-in: (f) Whenever the words “establish” and “establishment” are used in this clause, with reference to a claim to copyright, they shall be construed to mean “assert” and “assertion”, respectively.	Dec 2007
52.222-19	Child Labor-Cooperation with Authorities and Remedies	Mar 2026
52.229-11	Tax on Certain Foreign Procurements—Notice and Representation.	Jun 2020
52.232-30	Installment Payments for Commercial Products and Commercial Services.	Nov 2021
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	Oct 201
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023
52.233-3 Deviation	Protest after Award	Nov 2025
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024
52.240-91	Security Prohibitions and Exclusions	Nov 2025
52.240-92	Security Requirements	Nov 2025
52.240-93	Basic Safeguarding of Covered Contractor Information Systems	Nov 2025
52.243-1	Changes-Fixed-Price with Alternate I	Apr 1984
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Oct 2025
52.245-1	Government Property	Sep 2021

I. NFS Clauses Incorporated by Reference

Number	Title	Date
52.244-6 (Deviation)	Requirement to inform employees of whistleblower rights	(Sep 2025)
1852.215-84	Ombudsman.	Nov 2023
1852.237-72 (Deviation)	Access to Sensitive Information	Dec 2025

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1852.237-73 (Deviation)	Release of Sensitive Information	Dec 2025
1852.240-76 (Deviation)	Security Requirements for Unclassified Information Technology Resources	Jan 2026
1852.246-74 (Deviation)	Contractor Counterfeit Electronic Part Detection and Avoidance	Sep 2025

FAR Clauses Incorporated by Full Text**I.2 52.212-4 TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (Deviation Date) (Nov 2025)**

- (a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.
- (b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—
 - (1) Within a reasonable time after the defect was discovered or should have been discovered; and
 - (2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.
- (c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.
- (d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.
- (e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR

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52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

- (f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—
 - (1) Notify the Contracting Officer in writing as soon as possible;
 - (2) Remedy the delay as quickly as possible; and
 - (3) Notify the Contracting Officer when the occurrence is over.
- (g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).
- (h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.
- (i) Payment—
 - (1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.
 - (2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.
 - (3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.
 - (4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise

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overpaid on a contract financing or invoice payment, the Contractor shall—

- (i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—
 - (A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);
 - (B) Affected contract number and delivery order number, if applicable;
 - (C) Affected line item or subline item, if applicable;
 - (D) Contractor point of contact; and
 - (ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.
- (5) Interest.
- (i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.
 - (ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.
 - (iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if—
 - (A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;
 - (B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

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- (C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).
- (iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.
- (v) Amounts shall be due at the earliest of the following dates:
 - (A) The date fixed under this contract.
 - (B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.
- (vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—
 - (A) The date on which the designated office receives payment from the Contractor;
 - (B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or
 - (C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.
- (vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.
- (j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—
 - (1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or
 - (2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.
- (k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.
- (l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the

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event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

- (m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.
- (n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.
- (o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.
- (p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.
- (q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.
- (r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:
 - (1) The schedule of supplies/services;

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- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
 - (3) Other contract clauses incorporated in the solicitation or contract;
 - (4) Addenda to this solicitation or contract;
 - (5) Solicitation provisions incorporated in the solicitation;
 - (6) Other paragraphs of this clause;
 - (7) Other documents, exhibits, and attachments; and
 - (8) The specification.
- (s) Unauthorized obligations.
- (1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:
 - (i) Any such clause is unenforceable against the Government.
 - (ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.
 - (iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.
 - (2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.
- (t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

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- (1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.
- (2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.
- (3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.
- (u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

I.3 52.216-18 ORDERING (AUG 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from *October 1, 2026* through *September 30, 2036*.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered "issued" when—
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

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- (3) If sent electronically, the Government either—
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I.4 52.216-22 INDEFINITE QUANTITY (NOV 2025) (Deviation) Alternate I (Deviation)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after *5 years from the last date of the contract ordering period*.
- (e) Either party may cancel this contract in whole or in part by providing written notice. The cancellation will take effect 30 calendar days after the other party receives the notice of cancellation. If either party makes such notification, no further orders may be issued against the contract, but orders already awarded will be completed unless a termination action is taken against the order. If the

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Contractor elects to cancel this contract, the Government will not reimburse the minimum guarantee.

(End of clause)

**I.5 52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (NOV 2025)
(DEVIATION)**

(a) Definitions. As used in this contract—

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) and the System for Award Management (SAM).

Service-disabled veteran-owned small business (SDVOSB) concern means an SDVOSB concern that meets the requirements described in 13 CFR 128.300, is certified by SBA, and is designated by SBA as an SDVOSB concern in SBS and SAM.

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation and qualified as a small business under the criteria and size standards in 13 CFR part 121, including the size standard that corresponds to the NAICS code assigned to the contract or subcontract.

Small disadvantaged business (SDB) concern means a small business concern under the size standard applicable to the acquisition, that-

- (8) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-
- One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and
 - Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and
- (2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business (VOSB) concern means a small business concern-

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- (c) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (d) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business (WOSB) concern means a small business concern-

- 1. That is at least 51 percent owned by one or more women, or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women.
 - 2. Whose management and daily business operations are controlled by one or more women; and
 - 3. That is certified by SBA or an approved third- party certifier in accordance with 13 CFR 127.300 and is designated by SBA as a WOSB concern in SBS and SAM.
- (b) It is the policy of the United States that small business concerns, VOSB concerns, SDVOSB concerns, HUBZone small business concerns, SDB concerns, and WOSB concerns shall have the maximum practicable opportunity to participate in performing contracts let by any Federal agency, including contracts and subcontracts for subsystems, assemblies, components, and related services for major systems. It is further the policy of the United States that its prime contractors establish procedures to ensure the timely payment of amounts due pursuant to the terms of their subcontracts with small business concerns, VOSB concerns, SDVOSB concerns, HUBZone small business concerns, SDB concerns, and WOSB concerns.
 - (c)
 - (1) A joint venture qualifies as a small business concern if—
 - (i) Each party to the joint venture qualifies as small under the size standard for the solicitation; or
 - (ii) The protégé is small under the size standard for the solicitation in a joint venture comprised of a mentor and protégé with an approved mentor-protégé agreement under an SBA mentor- protégé program. (See 13 CFR 125.9(d).)
 - (2) A joint venture qualifies as a HUBZone small business concern if it complies with the requirements in 13 CFR 126.616(a) through (c).

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- (d) The Contractor hereby agrees to carry out this policy in the awarding of subcontracts to the fullest extent consistent with efficient contract performance. The Contractor further agrees to cooperate in any studies or surveys as may be conducted by the Small Business Administration or the awarding agency of the as may be necessary to determine the extent of the Contractor's compliance with this clause.
- (e)
 - (1) Unless the Contractor has reason to question the representation, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business or SDB, if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.
 - (2) Unless the Contractor has reason to question the representation, it may accept a subcontractor's representations of its size and socioeconomic status as a small business or SDB in the System for Award Management (SAM) if the subcontractor—
 - (i) Is registered in SAM; and
 - (ii) Represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.
 - (3) The Contractor may not require that the subcontractor register in SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.
 - (4) A contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or socioeconomic status.
 - (5) The Contractor shall confirm that a subcontractor representing itself as a HUBZone small business concern, VOSB, SDVOSB, or WOSB concern is certified by SBA by checking SAM or SBS at <https://search.certifications.sba.gov/>.

(End of clause)

**I.6 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN (NOV 2025)
(DEVIATION)**

- (a) This clause does not apply to small business concerns.
- (b) *Definitions.* As used in this clause—

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Alaska Native Corporation (ANC) means any Regional Corporation, Village Corporation, Urban Corporation, or Group Corporation organized under the laws of the State of Alaska in accordance with the Alaska Native Claims Settlement Act (43 U.S.C. 1601, *et seq.*) and which is considered a minority and economically disadvantaged concern under the criteria at 43 U.S.C. 1626(e)(1). This definition also includes ANC direct and indirect subsidiary corporations, joint ventures, and partnerships that meet the requirements of 43 U.S.C.

1626(e)(2).

Commercial plan means a subcontracting plan (including goals) that covers the offeror's fiscal year and that applies to the entire production of commercial products and commercial services sold by either the entire company or a portion thereof (*e.g.*, division, plant, or product line).

Commercial product means a product that satisfies the definition of "commercial product" in Federal Acquisition Regulation (RFO) 2.101.

Commercial service means a service that satisfies the definition of "commercial service" in RFO 2.101.

Subcontracting Plan Reporting (SPR) Subcontracting Plan Reporting (SPR) means the electronic subcontracting reporting system at SAM.gov for small business subcontracting program reporting.

Indian tribe means any Indian tribe, band, group, pueblo, or community, including native villages and native groups (including corporations organized by Kenai, Juneau, Sitka, and Kodiak) as defined in the Alaska Native Claims Settlement Act (43 U.S.C. 1601 *et seq.*), that is recognized by the Federal Government as eligible for services from the Bureau of Indian Affairs in accordance with 25 U.S.C. 1452(c). This definition also includes Indian-owned economic enterprises that meet the requirements of 25 U.S.C. 1452(e).

Individual subcontracting plan means a subcontracting plan that covers the entire contract period (including option periods), applies to a specific contract, and has goals that are based on the offeror's planned subcontracting in support of the specific contract, except that indirect costs incurred for common or joint purposes may be allocated on a prorated basis to the contract.

Master subcontracting plan means a subcontracting plan that contains all the required elements of an individual subcontracting plan, except goals, and may be incorporated into individual subcontracting plans, provided the master subcontracting plan has been approved.

Reduced payment means a payment for less than the amount agreed upon in a subcontract in accordance with its terms and conditions, for supplies and services for which the Government has paid the prime contractor.

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Subcontract means any agreement (other than one involving an employer-employee relationship) entered into by a Federal Government prime contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract.

Total contract dollars mean the final anticipated dollar value, including the dollar value of all options.

Untimely payment means a payment to a subcontractor that is more than 90 days past due under the terms and conditions of a subcontract for supplies and services for which the Government has paid the prime contractor.

(c)

(1) The Offeror, upon request by the Contracting Officer, shall submit and negotiate a subcontracting plan, where applicable, that separately addresses subcontracting with small business, veteran-owned small business (VOSB), service-disabled veteran-owned small business (SDVOSB), HUBZone small business, small disadvantaged business (SDB), and women-owned small business (WOSB) concerns. If the Offeror is submitting an individual subcontracting plan, the plan must separately address subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns, with a separate part for the basic contract and separate parts for each option (if any). The Contracting Officer will include the subcontracting plan in and make it a part of the resultant contract. The Offeror shall negotiate the subcontracting plan within the timeframe specified by the Contracting Officer. If the Offeror fails to submit and negotiate the subcontracting plan, then the Offeror will not be eligible for award of a contract.

(2)

(i) Unless the Contractor has reason to question the representations, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business or SDB, if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.

(ii) Unless the Contractor has reason to question the representations, it may accept a subcontractor's representations of its size and socioeconomic status as a small business or SDB in the System for Award Management (SAM) if—

(A) The subcontractor is registered in SAM; and

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- (B) The subcontractor represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.
- (iii) The Contractor may not require that the subcontractor register in SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.
 - (iv) A contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or SDB status.
 - (v) In order to be eligible as a VOSB, SDVOSB, HUBZone small business, or WOSB concern, subcontractor under a subcontracting plan, the small business must be certified by the Small Business Administration (SBA) as that socioeconomic status. SBA certifications are in the Small Business Search (SBS) website at <https://search.certifications.sba.gov/>.
- (d) The Offeror's subcontracting plan shall include the following:
- (1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns as subcontractors. For individual subcontracting plans, and if required by the Contracting Officer, goals shall also be expressed in terms of percentage of total contract dollars, in addition to the goals expressed as a percentage of total subcontract dollars. The Offeror shall include all subcontracts that contribute to contract performance and may include a proportionate share of products and services that are normally allocated as indirect costs. In accordance with 15 U.S.C. 657r(a), an Offeror that is a mentor with an SBA- approved mentor-protégé agreement (see 13 CFR 125.9) and awards a subcontract to its protégé may apply the costs incurred for training it provides to its protégé toward its subcontracting plan goals, if the protégé is a covered territory business or the protégé's principal office is located in the Commonwealth of Puerto Rico. In accordance with 43 U.S.C. 1626—
 - (i) Count subcontracts awarded to an ANC or Indian tribe toward the subcontracting goals for small business and small disadvantaged business concerns, regardless of the size or SBA certification status of the ANC or Indian tribe; and
 - (ii) If one or more subcontractors are in the subcontract tier between the prime Contractor and the ANC or Indian tribe, then the ANC

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or Indian tribe shall designate the appropriate Contractor(s) to count the subcontract towards its small business and small disadvantaged business subcontracting goals.

- (A) In most cases, the appropriate Contractor is the Contractor that awarded the subcontract to the ANC or Indian tribe.
- (B) If the ANC or Indian tribe designates more than one Contractor to count the subcontract toward its goals, the ANC or Indian tribe shall designate only a portion of the total subcontract award to each Contractor. The sum of the amounts designated to various Contractors cannot exceed the total value of the subcontract.
- (C) The ANC or Indian tribe shall give a copy of the written designation to the Contracting Officer, the prime Contractor, and the subcontractors between the prime Contractor and the ANC or Indian tribe within 30 days of the date of the subcontract award.
- (D) If the Contracting Officer does not receive a copy of the ANC's or the Indian tribe's written designation within 30 days of the subcontract award, the Contracting Officer will consider the Contractor that awarded the subcontract to the ANC or Indian tribe the designated Contractor.

(2) A statement of–

- (i) Total dollars planned to be subcontracted for an individual subcontracting plan; or the Offeror's total projected sales, expressed in dollars, and the total value of projected subcontracts, including all indirect costs except as described in paragraph (g) of this clause, to support the sales for a commercial plan.
- (ii) Total dollars planned to be subcontracted to small business concerns (including ANC and Indian tribes).
- (iii) Total dollars planned to be subcontracted to veteran-owned small business concerns.
- (iv) Total dollars planned to be subcontracted to service-disabled veteran-owned small business.
- (v) Total dollars planned to be subcontracted to HUBZone small business concerns.

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- (vi) Total dollars planned to be subcontracted to small disadvantaged business concerns (including ANCs and Indian tribes); and
 - (vii) Total dollars planned to be subcontracted to women-owned small business concerns.
- (3) A description of the principal types of supplies and services to be subcontracted, and an identification of the types planned for subcontracting to-
- (i) Small business concerns.
 - (ii) Veteran-owned small business concerns.
 - (iii) Service-disabled veteran-owned small business concerns.
 - (iv) HUBZone small business concerns.
 - (v) Small disadvantaged business concerns; and (vi) Women-owned small business concerns.
- (4) A description of the method used to develop the subcontracting goals in paragraph (d)(1) of this clause.
- (5) A description of the method used to identify potential sources for solicitation purposes (*e.g.*, existing company source lists, SAM, veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned small, service-disabled veteran-owned small, HUBZone small, small disadvantaged, and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities (*e.g.*, outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.
- (6) A statement as to whether the Offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with–
- (i) Small business concerns (including ANC and Indian tribes);
 - (ii) Veteran-owned small business concerns.
 - (iii) Service-disabled veteran-owned small business concerns.

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- (iv) HUBZone small business concerns.
 - (v) Small disadvantaged business concerns (including ANC and Indian tribes); and (vi) Women-owned small business concerns.
- (7) The name of the individual employed by the Offeror who will administer the Offeror's subcontracting program, and a description of the duties of the individual.
- (8) A description of the efforts the Offeror will make to assure that small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns have an equitable opportunity to compete for subcontracts.
- (9) Assurances that the Offeror will include the clause of this contract entitled “Utilization of Small Business Concerns” in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (*e.g.*, ANCs, see 13 CFR 125.3(b)(2))) that receive subcontracts in excess of the applicable threshold specified in RFO 19.109(a) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.
- (10) Assurances that the Offeror will–
- (i) Cooperate in any studies or surveys as may be required.
 - (ii) Submit periodic reports so the Government can determine the extent of compliance by the Contractor with the subcontracting plan.
 - (iii) Include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts with individual subcontracting plans where the contract is intended for use by multiple agencies.
 - (iv) Submit the Individual Subcontract Report (ISR) and/or the Summary Subcontract Report (SSR), in accordance with paragraph (l) of this clause using the Subcontracting Plan Reporting (SPR) at <http://www.sam.gov>. The reports shall provide information on subcontract awards to small business concerns (including ANCs and Indian tribes that are not small businesses), veteran- owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns (including ANCs and Indian tribes that have not been certified by SBA as small disadvantaged businesses), women-owned small business concerns, and for NASA only, Historically Black Colleges and

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Universities and Minority Institutions. Reporting shall be in accordance with this clause, or as provided in agency regulations.

- (v) Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using SPR;
 - (vi) Provide its prime contract number, its unique entity identifier, and the e-mail address of the Offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first- tier subcontractors with subcontracting plans so they can enter this information into the SPR when submitting their ISRs; and
 - (vii) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.
- (11) A description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the Offeror's efforts to locate small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):
- (i) Source lists (*e.g.*, SAM), guides, and other data that identify small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns.
 - (ii) Organizations contacted in an attempt to locate sources that are small business, veteran- owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concerns.
 - (iii) Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold, as defined in RFO 2.101 on the date of subcontract award, indicating-
 - (A) Whether small business concerns were solicited and, if not, why not.
 - (B) Whether veteran-owned small business concerns were solicited and, if not, why not.

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- (C) Whether service-disabled veteran-owned small business concerns were solicited and, if not, why not.
 - (D) Whether HUBZone small business concerns were solicited and, if not, why not.
 - (E) Whether small disadvantaged business concerns were solicited and, if not, why not;
 - (F) Whether women-owned small business concerns were solicited and, if not, why not; and
 - (G) If applicable, the reason award was not made to a small business concern.
- (iv) Records of any outreach efforts to contact-
 - I Trade associations.
 - II Business development organizations.
 - III Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service-disabled veteran-owned, and women-owned small business sources; and
 - IV Veterans service organizations.
 - (v) Records of internal guidance and encouragement provided to buyers through-
 - (A) Workshops, seminars, training, etc.; and
 - (B) Monitoring performance to evaluate compliance with the program's requirements.
 - (vi) On a contract-by-contract basis, records to support award data submitted by the offeror to the Government, including the name, address, and business size of each subcontractor.

Contractors having commercial plans need not comply with this requirement.

- (12) Assurances that the Offeror will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a

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bid or proposal. The Offeror used a small business concern in preparing the bid or proposal if–

- (i) The Offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the subcontract; or
 - (ii) The Offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the Offeror is awarded the contract.
- (13) Assurances that the Contractor will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services, or materials or obtain the performance of construction work as described in paragraph (d)(12) of this clause. The Contractor shall submit the written explanation to the Contracting Officer within 30 days of contract completion.
- (14) Assurances that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor.
- (15) Assurances that the Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract and notify the Contracting Officer when the prime contractor makes either a reduced or an untimely payment to a small business subcontractor (see 52.242-5).
- (e) In order to effectively implement this plan to the extent consistent with efficient contract performance, the Contractor shall perform the following functions:
 - (1) Assist small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns by arranging solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules to facilitate the participation by such concerns. Where the Contractor's lists of potential small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.
 - (2) Provide adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned

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small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all "make-or-buy" decisions.

- (3) Counsel and discuss subcontracting opportunities with representatives of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business firms.
 - (4) Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing the Small Business Search (SBS) at <https://search.certifications.sba.gov/>.
 - (5) Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor's subcontracting plan.
 - (6) For all competitive subcontracts over the simplified acquisition threshold, as defined in RFO 2.101 on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern.
 - (7) Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.
- (f) A master subcontracting plan on a plant or division-wide basis that contains all the elements required by paragraph (d) of this clause, except goals, may be incorporated by reference as a part of the subcontracting plan required of the Offeror by this clause; provided-
- (1) The master subcontracting plan has been approved.
 - (2) The Offeror ensures that the master subcontracting plan is updated as necessary and provides copies of the approved master subcontracting plan, including evidence of its approval, to the Contracting Officer; and
 - (3) Goals and any deviations from the master subcontracting plan deemed necessary by the Contracting Officer to satisfy the requirements of this contract are set forth in the individual subcontracting plan.

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- (g) A commercial plan is the preferred type of subcontracting plan for contractors furnishing commercial products and commercial services. The commercial plan shall relate to the offeror's planned subcontracting generally, for both commercial and Government business, rather than solely to the Government contract. Once the Contractor's commercial plan has been approved, the Government will not require another subcontracting plan from the same Contractor while the plan remains in effect, as long as the product or service being provided by the Contractor continues to meet the definition of a commercial product or commercial service. A Contractor with a commercial plan shall comply with the reporting requirements stated in paragraph (d)(10) of this clause by submitting one SSR in SPR for all contracts covered by its commercial plan. A Contractor authorized to use a commercial subcontracting plan shall include in its subcontracting goals and in its SSR all indirect costs, with the exception of those such as the following: Employee salaries and benefits; payments for petty cash; depreciation; interest; income taxes; property taxes; lease payments; bank fees; fines, claims, and dues; original equipment manufacturer relationships during warranty periods (negotiated up front with the product); utilities and other services purchased from a municipality or an entity solely authorized by the municipality to provide those services in a particular geographical region; and philanthropic contributions. This report shall be acknowledged or rejected in SPR by the Contracting Officer who approved the plan. This report shall be submitted within 30 days after the end of the Government's fiscal year.
- (h) The Contracting Officer will consider prior compliance of the Offeror with other such subcontracting plans under previous contracts in determining the responsibility of the Offeror for award of the contract.
- (i) A contract may have no more than one subcontracting plan. When a contract modification exceeds the subcontracting plan threshold in RFO 19.109(a), or an option is exercised, the goals of the existing subcontracting plan shall be amended to reflect any new subcontracting opportunities. When the goals in a subcontracting plan are amended, these goal changes do not apply retroactively.
- (j) Subcontracting plans are not required from subcontractors when the prime contract is awarded under RFO part 12, Acquisition of Commercial Products and Commercial Services, or when the subcontractor provides a commercial product or commercial service subject to the clause at RFO 52.244-6, Subcontracts for Commercial Products and Commercial Services, under a prime contract.
- (k) The Contracting Officer will consider failure of the Contractor or subcontractor to comply in good faith with the clause of this contract entitled "Utilization Of Small Business Concerns," or an approved plan required by this clause, a material breach of the contract and may consider the failure in any past performance evaluation of the Contractor.
- (l) The Contractor shall submit ISRs and SSRs using the web-based SPR at <https://www.sam.gov>. Do not include purchases from a corporation, company, or

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subdivision that is an affiliate of the Contractor or subcontractor in these reports. Treat subcontract awards by affiliates as subcontract awards by the Contractor. Limit subcontract award data reported by the Contractor and subcontractors to awards made to their immediate next-tier subcontractors. The Contractor and its subcontractors cannot take credit for awards made to lower tier subcontractors, unless the Contractor or subcontractor has been designated to receive a small business or SDB credit from an ANC or Indian tribe. Include in these reports only subcontracts involving performance in the United States or its outlying areas, with the exception of subcontracts under a contract awarded by the State Department or any other agency that has statutory or regulatory authority to require subcontracting plans for subcontracts performed outside the United States and its outlying areas

- (1) *ISR*. This report is not required for commercial plans. The report is required for each contract containing an individual subcontracting plan.
 - (i) The report shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. A report is also required for each contract within 30 days of contract completion. Reports are due 30 days after the close of each reporting period, unless otherwise directed by the Contracting Officer. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When the Contracting Officer rejects an ISR, the Contractor shall submit a corrected report within 30 days of receiving the notice of ISR rejection.
 - (ii)
 - (A) When a subcontracting plan contains separate goals for the base period of the contract and each option, the dollar goal inserted on this report shall be the sum of the base period through the current option: for example, for a report submitted after the second option is exercised, the dollar goal would be the sum of the goals for the basic contract, the first option, and the second option.
 - (B) If a subcontracting plan has been added to the contract pursuant to 19.302-1 or 19.301(e), the Contractor shall report its achievements on a cumulative basis from the date of incorporation of the subcontracting plan into the contract.
 - (iii) When a subcontracting plan includes indirect costs in the goals, include these costs in this report.
 - (iv) The authority to acknowledge receipt or reject the ISR resides–

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- (A) In the case of the prime Contractor, with the Contracting Officer; and
 - (B) In the case of a subcontract with a subcontracting plan, with the entity that awarded the subcontract.
- (2) *SSR.*
- (i) Reports submitted under individual subcontracting plans–
 - (A) This report encompasses all subcontracting under prime contracts and subcontracts with an executive agency, regardless of the dollar value of the subcontracts. This report also includes indirect costs on a prorated basis when the indirect costs are excluded from the subcontracting goals.
 - (B) The report may be submitted on a corporate, company or subdivision (*e.g.* plant or division operating as a separate profit center) basis, unless otherwise directed by the agency.
 - (C) If the Contractor or a subcontractor is performing work for more than one executive agency, a separate report shall be submitted to each executive agency covering only that agency's contracts, provided at least one of that agency's contracts is over the applicable threshold specified in RFO 19.109(a), and the contract contains a subcontracting plan. For DoD, a consolidated report shall be submitted for all contracts awarded by military departments/agencies and/or subcontracts awarded by DoD prime contractors.
 - (D) The report shall be submitted annually by October 30 for the twelve-month period ending September 30. When a Contracting Officer rejects an SSR, the Contractor shall submit a revised report within 30 days of receiving the notice of SSR rejection.
 - (E) Subcontract awards that are related to work for more than one executive agency shall be appropriately allocated.
 - (F) The authority to acknowledge or reject SSRs in SPR, including SSRs submitted by subcontractors with subcontracting plans, resides with the Government agency awarding the prime contracts unless stated otherwise in the contract.
 - (ii) *Reports submitted under a commercial plan-*

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- (A) The report shall include all subcontract awards under the commercial plan in effect during the Government's fiscal year and all indirect costs.
- (B) The report shall be submitted annually, within thirty days after the end of the Government's fiscal year.
- (C) If a Contractor has a commercial plan and is performing work for more than one executive agency, the Contractor shall specify the percentage of dollars attributable to each agency.
- (D) The authority to acknowledge or reject SSRs for commercial plans resides with the Contracting Officer who approved the commercial plan.

(End of clause)

I.7 52.227-11 PATENT RIGHTS – OWNERSHIP BY THE CONTRACTOR (MAY 2014) AS MODIFIED BY NFS 1852.227-11 (APR 2015) (*Applies to small businesses or non-profit organizations only*)

- (a) As used in this clause-

Invention means any invention or discovery that is or may be patentable or otherwise protectable under title 35 of the U.S. Code, or any variety of plant that is or may be protectable under the Plant Variety Protection Act (7 U.S.C. 2321, *et seq.*)

Made means-

- (1) When used in relation to any invention other than a plant variety, the conception or first actual reduction to practice of the invention; or
- (2) When used in relation to a plant variety, that the Contractor has at least tentatively determined that the variety has been reproduced with recognized characteristics.

Nonprofit organization means a university or other institution of higher education or an organization of the type described in section 501(c)(3) of the Internal Revenue Code of 1954 (26 U.S.C. 501(c)) and exempt from taxation under section 501(a) of the Internal Revenue Code (26 U.S.C. 501(a)), or any nonprofit scientific or educational organization qualified under a State nonprofit organization statute.

Practical application means to manufacture, in the case of a composition of product; to practice, in the case of a process or method; or to operate, in the case of a machine or system; and, in each case, under such conditions as to establish

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that the invention is being utilized and that its benefits are, to the extent permitted by law or Government regulations, available to the public on reasonable terms.

Subject invention means any invention of the Contractor made in the performance of work under this contract.

(b) *Contractor's rights.*

(1) *Ownership.* The Contractor may retain ownership of each subject invention throughout the world in accordance with the provisions of this clause.

(2) *License.*

(i) The Contractor shall retain a nonexclusive royalty-free license throughout the world in each subject invention to which the Government obtains title, unless the Contractor fails to disclose the invention within the times specified in paragraph (c) of this clause. The Contractor's license extends to any domestic subsidiaries and affiliates within the corporate structure of which the Contractor is a part, and includes the right to grant sublicenses to the extent the Contractor was legally obligated to do so at contract award. The license is transferable only with the written approval of the agency, except when transferred to the successor of that part of the Contractor's business to which the invention pertains.

(ii) The Contractor's license may be revoked or modified by the agency to the extent necessary to achieve expeditious practical application of the subject invention in a particular country in accordance with the procedures in FAR 27.302(i)(2) and 27.304-1(f).

(c) *Contractor's obligations.*

(1) The Contractor shall disclose in writing each subject invention to the Contracting Officer within 2 months after the inventor discloses it in writing to Contractor personnel responsible for patent matters. The disclosure shall identify the inventor(s) and this contract under which the subject invention was made. It shall be sufficiently complete in technical detail to convey a clear understanding of the subject invention. The disclosure shall also identify any publication, on sale (*i.e.*, sale or offer for sale), or public use of the subject invention, or whether a manuscript describing the subject invention has been submitted for publication and, if so, whether it has been accepted for publication. In addition, after disclosure to the agency, the Contractor shall promptly notify the Contracting Officer of the acceptance of any manuscript describing the subject invention for publication and any on sale or public

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use.

- (2) The Contractor shall elect in writing whether or not to retain ownership of any subject invention by notifying the Contracting Officer within 2 years of disclosure to the agency. However, in any case where publication, on sale, or public use has initiated the 1-year statutory period during which valid patent protection can be obtained in the United States, the period for election of title may be shortened by the agency to a date that is no more than 60 days prior to the end of the statutory period.
- (3) The Contractor shall file either a provisional or a nonprovisional patent application or a Plant Variety Protection Application on an elected subject invention within 1 year after election. However, in any case where a publication, on sale, or public use has initiated the 1-year statutory period during which valid patent protection can be obtained in the United States, the Contractor shall file the application prior to the end of that statutory period. If the Contractor files a provisional application, it shall file a nonprovisional application within 10 months of the filing of the provisional application. The Contractor shall file patent applications in additional countries or international patent offices within either 10 months of the first filed patent application (whether provisional or nonprovisional) or 6 months from the date permission is granted by the Commissioner of Patents to file foreign patent applications where such filing has been prohibited by a Secrecy Order.
- (4) The Contractor may request extensions of time for disclosure, election, or filing under paragraphs (c)(1), (c)(2), and (c)(3) of this clause.
- (5) The Contractor may use whatever format is convenient to disclose subject inventions required in subparagraph (c)(1). NASA prefers that the contractor use either the electronic or paper version of NASA Form 1679, Disclosure of Invention and New Technology (Including Software) to disclose subject inventions. Both the electronic and paper versions of NASA Form 1679 may be accessed at the electronic New Technology Reporting Web site <http://invention.nasa.gov>.
- (6) In addition to the above, the Contractor shall provide the New Technology Representative identified in this contract at 1852.227-72 the following:
 - (i) An interim new technology summary report every 12 months (or such longer period as the Contracting Officer may specify) from the date of the contract, listing all subject inventions required to be disclosed during the period or certifying that there were none.
 - (ii) A final new technology summary report, within 3 months after completion of the contracted work, listing all subject inventions or certifying that there were none.

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- (iii) Upon request, the filing date, serial number and title, a copy of the patent application, and patent number and issue date for any subject invention in any country in which the contractor has applied for patents.
 - (iv) An irrevocable power to inspect and make copies of the patent application file, by the Government, when a Federal Government employee is a coinventor.
- (d) *Government's rights-*
 - (1) *Ownership.* The Contractor shall assign to the agency, on written request, title to any subject invention-
 - (i) If the Contractor fails to disclose or elect ownership to the subject invention within the times specified in paragraph (c) of this clause, or elects not to retain ownership; provided, that the agency may request title only within 60 days after learning of the Contractor's failure to disclose or elect within the specified times.
 - (ii) In those countries in which the Contractor fails to file patent applications within the times specified in paragraph (c) of this clause; provided, however, that if the Contractor has filed a patent application in a country after the times specified in paragraph (c) of this clause, but prior to its receipt of the written request of the agency, the Contractor shall continue to retain ownership in that country.
 - (iii) In any country in which the Contractor decides not to continue the prosecution of any application for, to pay the maintenance fees on, or defend in reexamination or opposition proceeding on, a patent on a subject invention.
 - (2) *License.* If the Contractor retains ownership of any subject invention, the Government shall have a nonexclusive, nontransferable, irrevocable, paid-up license to practice, or have practiced for or on its behalf, the subject invention throughout the world.
- (e) *Contractor action to protect the Government's interest.*
 - (1) The Contractor shall execute or have executed and promptly deliver to the agency all instruments necessary to-
 - (i) Establish or confirm the rights the Government has throughout the world in those subject inventions in which the Contractor elects to retain ownership; and
 - (ii) Assign title to the agency when requested under paragraph (d) of

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this clause and to enable the Government to obtain patent protection and plant variety protection for that subject invention in any country.

- (iii) The Contractor shall, through employee agreements or other suitable Contractor policy, require that its employees “will assign and do hereby assign” to the Contractor all right, title, and interest in any subject invention under this Contract.
- (2) The Contractor shall require, by written agreement, its employees, other than clerical and nontechnical employees, to disclose promptly in writing to personnel identified as responsible for the administration of patent matters and in the Contractor's format, each subject invention in order that the Contractor can comply with the disclosure provisions of paragraph (c) of this clause, and to execute all papers necessary to file patent applications on subject inventions and to establish the Government's rights in the subject inventions. The disclosure format should require, as a minimum, the information required by paragraph (c)(1) of this clause. The Contractor shall instruct such employees, through employee agreements or other suitable educational programs, as to the importance of reporting inventions in sufficient time to permit the filing of patent applications prior to U.S. or foreign statutory bars.
- (3) The Contractor shall notify the Contracting Officer of any decisions not to file a nonprovisional patent application, continue the prosecution of a patent application, pay maintenance fees, or defend in a reexamination or opposition proceeding on a patent, in any country, not less than 30 days before the expiration of the response or filing period required by the relevant patent office.
- (4) The Contractor shall include, within the specification of any United States nonprovisional patent or plant variety protection application and any patent or plant variety protection certificate issuing thereon covering a subject invention, the following statement, "This invention was made with Government support under (identify the contract) awarded by (identify the agency). The Government has certain rights in the invention."
- (f) *Reporting on utilization of subject inventions.* The Contractor shall submit, on request, periodic reports no more frequently than annually on the utilization of a subject invention or on efforts at obtaining utilization of the subject invention that are being made by the Contractor or its licensees or assignees. The reports shall include information regarding the status of development, date of first commercial sale or use, gross royalties received by the Contractor, and other data and information as the agency may reasonably specify. The Contractor also shall provide additional reports as may be requested by the agency in

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connection with any march-in proceeding undertaken by the agency in accordance with paragraph (h) of this clause. The Contractor also shall mark any utilization report as confidential/proprietary to help prevent inadvertent release outside the Government. As required by 35 U.S.C. 202(c)(5), the agency will not disclose that information to persons outside the Government without the Contractor's permission.

- (g) *Preference for United States industry.* Notwithstanding any other provision of this clause, neither the Contractor nor any assignee shall grant to any person the exclusive right to use or sell any subject invention in the United States unless the person agrees that any products embodying the subject invention or produced through the use of the subject invention will be manufactured substantially in the United States. However, in individual cases, the requirement for an agreement may be waived by the agency upon a showing by the Contractor or its assignee that reasonable but unsuccessful efforts have been made to grant licenses on similar terms to potential licensees that would be likely to manufacture substantially in the United States, or that under the circumstances domestic manufacture is not commercially feasible.
- (h) *March-in rights.* The Contractor acknowledges that, with respect to any subject invention in which it has retained ownership, the agency has the right to require licensing pursuant to 35 U.S.C. 203 and 210(c), and in accordance with the procedures in 37 CFR 401.6 and any supplemental regulations of the agency in effect on the date of contract award.
- (i) Special provisions for contracts with nonprofit organizations. If the Contractor is a nonprofit organization, it shall-
 - (1) Not assign rights to a subject invention in the United States without the written approval of the agency, except where an assignment is made to an organization that has as one of its primary functions the management of inventions, *provided*, that the assignee shall be subject to the same provisions as the Contractor;
 - (2) Share royalties collected on a subject invention with the inventor, including Federal employee co-inventors (but through their agency if the agency deems it appropriate) when the subject invention is assigned in accordance with 35U.S.C.202(e) and 37 CFR 401.10;
 - (3) Use the balance of any royalties or income earned by the Contractor with respect to subject inventions, after payment of expenses (including payments to inventors) incidental to the administration of subject inventions for the support of scientific research or education; and
 - (4) Make efforts that are reasonable under the circumstances to attract licensees of subject inventions that are small business concerns, and give a preference to a small business concern when licensing a subject

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invention if the Contractor determines that the small business concern has a plan or proposal for marketing the invention which, if executed, is equally as likely to bring the invention to practical application as any plans or proposals from applicants that are not small business concerns; *provided*, that the Contractor is also satisfied that the small business concern has the capability and resources to carry out its plan or proposal. The decision whether to give a preference in any specific case will be at the discretion of the Contractor.

- (5) Allow the Secretary of Commerce to review the Contractor's licensing program and decisions regarding small business applicants, and negotiate changes to its licensing policies, procedures, or practices with the Secretary of Commerce when the Secretary's review discloses that the Contractor could take reasonable steps to more effectively implement the requirements of paragraph (i)(4) of this clause.
- (j) *Communications.* For the purposes of this clause, communications between the Contractor and the Government shall be as specified in the NASA FAR Supplement at 1852.227-72, *Designation of New Technology Representative and Patent Representative*.
- (k) *Subcontracts.*
 - (1) The Contractor shall include the substance of this clause, including this paragraph (k), in all subcontracts for experimental, developmental, or research work to be performed by a small business concern or nonprofit organization.
 - (2) The Contractor shall include the clause in the NASA FAR Supplement at 1852.227- 70, New Technology-Other than a Small Business Firm or Nonprofit Organization, suitably modified to identify the parties, in all subcontracts, regardless of tier, for experimental, developmental, research, design, or engineering work to be performed by other than a small business firm or nonprofit organization. At all tiers, the New Technology-Other than a Small Business Firm or Nonprofit Organization clause shall be modified to identify the parties as follows: references to the Government are not changed, and in all references to the Contractor the subcontractor is substituted for the Contractor so that the subcontractor has all rights and obligations of the Contractor in the clause.
 - (3) At all tiers, the patent rights clause must be modified to identify the parties as follows: references to the Government are not changed, and the subcontractor has all rights and obligations of the Contractor in the clause. The Contractor shall not, as part of the consideration for awarding the subcontract, obtain rights in the subcontractor's subject inventions.
 - (4) In subcontracts, at any tier, the agency, the subcontractor, and the

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Contractor agree that the mutual obligations of the parties created by this clause constitute a contract between the subcontractor and the agency with respect to the matters covered by the clause; provided, however, that nothing in this paragraph is intended to confer any jurisdiction under the Contract Disputes statute in connection with proceedings under paragraph (h) of this clause.

(End of clause)

I.8 52.227-14 RIGHTS IN DATA – GENERAL (MAY 2014) (DEVIATION) (ALT I) (DEC 2007) (ALT II) (DEC 2007) (ALT III) AS MODIFIED BY NFS 1852.227-14 (APR 2015)

(a) *Definitions.* As used in this clause-

Computer database or "database means" a collection of recorded information in a form capable of, and for the purpose of, being stored in, processed, and operated on by a computer. The term does not include computer software.

Computer software-

(1) Means

- (i) Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and
- (ii) Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

(2) Does not include computer databases or computer software documentation.

Computer software documentation means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

Data means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data and computer software. The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

Form, fit, and function data means data relating to items, components, or processes that are sufficient to enable physical and functional interchangeability,

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and data identifying source, size, configuration, mating and attachment characteristics, functional characteristics, and performance requirements. For computer software it means data identifying source, functional characteristics, and performance requirements but specifically excludes the source code, algorithms, processes, formulas, and flow charts of the software.

Government purpose means any activity in which the U. S. Government is a party, including, but not limited to, cooperative activities with international or multi-national organizations, or sales, barter, or transfers by the U. S. Government to foreign governments or international organizations. Government purpose includes competitive procurement.

Government purpose rights means the rights to (i) Use, modify, reproduce, manufacture, release, perform, display, or disclose data within the Government without restriction; and (ii) Release or disclose data outside the Government and authorize persons to whom release, or disclosure has been made to use, modify, reproduce, manufacture, release, perform, display, or disclose that data for U.S. Government purposes.

Limited rights means the rights of the Government in limited rights data as set forth in the Limited Rights Notice of paragraph (g)(3) if included in this clause.

Limited rights data means data, other than computer software, that embody trade secrets or are commercial or financial and confidential or privileged, to the extent that such data pertain to items, components, or processes developed at private expense, including minor modifications.

Minor modification means a modification that does not significantly alter the nongovernmental function or essential physical characteristics of an item or component or change the purpose of a process or software.

Restricted computer software means computer software developed at private expense and that is a trade secret, is commercial or financial and confidential or privileged, or is copyrighted computer software, including minor modifications of the computer software.

Restricted rights, as used in this clause, means the rights of the Government in restricted computer software, as set forth in a Restricted Rights Notice of paragraph (g) if included in this clause, or as otherwise may be provided in a collateral agreement incorporated in and made part of this contract, including minor modifications of such computer software.

Technical data means recorded information (regardless of the form or method of the recording) of a scientific or technical nature (including computer databases and computer software documentation). This term does not include computer software or financial, administrative, cost or pricing, or management data or other information incidental to contract administration. The term includes recorded information of a scientific or technical nature that is included in computer databases (See 41 U.S.C. 116).

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Unlimited rights means the rights of the Government to use, disclose, reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so.

(b) Allocation of rights.

(1) *Unlimited rights in data.* Except as provided in paragraph (c) of this clause, the Government shall have unlimited rights in-

- (i) Data first produced in the performance of this contract exclusively at Government expense, except to the extent such data constitutes minor modifications to data that are limited rights data or restricted computer software;
- (ii) Form, fit, and function data delivered under this contract;
- (iii) Data delivered under this contract (except for restricted computer software) that constitute manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use under this contract; and
- (iv) All other data delivered under this contract unless provided otherwise for limited rights data or restricted computer software in accordance with paragraph (g) of this clause.
- (v) Data furnished to the Government, under this or any other Government contract or subcontract thereunder, with -
 - (A) Government purpose rights or limited rights and the restrictive period or condition(s) has/have expired; or
 - (B) Government purpose rights and the Contractor's exclusive right to use such data for commercial purposes has expired.

(2) Government Purpose Rights in Data.

- (i) Except when the Government is entitled to unlimited rights in data as provided in section (b)(1) of this clause, the Government shall have government purpose rights for the duration of this contract, or such other period as may be negotiated, in—
 - (A) Data that are developed with mixed funding in the performance of this contract; and
 - (B) Data that are corrections or changes to data furnished to the Contractor by the Government.

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- (ii) The Government shall not release or disclose data in which it has government purpose rights unless—
 - (A) Prior to release or disclosure, the intended recipient is subject to a nondisclosure agreement; or
 - (B) The recipient is a Government Contractor, recipient, grantee, or partner receiving access to the data under suitable protective conditions for the performance of a Government contract, cooperative agreement, grant, or other transaction of the Government.
 - (iii) The Contractor has the exclusive right, including the right to license others, to use for any commercial purpose data in which the Government has obtained government purpose rights under this contract during the time-period specified in the Government purpose rights legend prescribed in paragraph (g)(5) of this clause.
 - (3) The Contractor shall have the right to—
 - (i) Assert copyright in data first produced in the performance of this contract to the extent provided in paragraph (c)(1) of this clause;
 - (ii) Use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, unless provided otherwise in paragraph (d) of this clause;
 - (iii) Substantiate the use of, add, or correct limited rights, restricted rights, or copyright notices and to take other appropriate action, in accordance with paragraphs (e) and (f) of this clause; and
 - (iv) Protect from unauthorized disclosure and use those data that are limited rights data or restricted computer software to the extent provided in paragraph (g) of this clause.
 - (4) There shall be a presumption that minor modifications to data identified as Limited Rights Data or Restricted Computer Software pursuant to clause H.25, *Identification and Representation of Data with Restrictive or Limiting Markings*, comprise limited rights data or restricted computer software.
 - (5) Data delivered under this contract, in which the Government previously obtained less than limited rights or restricted rights, of another contract or agreement, comprises limited rights data or restricted computer software under this contract.
- (c) Copyright-

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- (1) Data first produced in the performance of this contract.
 - (i) Unless provided otherwise in paragraph (d) of this clause, the Contractor may, without prior approval of the Contracting Officer, assert copyright in scientific and technical articles based on or containing data first produced in the performance of this contract and published in academic, technical, or professional journals, symposia proceedings, or similar works. The prior, express written permission of the Contracting Officer is required to assert copyright in all other data first produced in the performance of this contract.
 - (ii) When authorized to assert copyright to the data, the Contractor shall affix the applicable copyright notices of 17 U.S.C. 401 or 402, and an acknowledgment of Government sponsorship (including contract number).
 - (iii) For data other than computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted data to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly by or on behalf of the Government. For computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted computer software to reproduce, prepare derivative works, and perform publicly and display publicly (but not to distribute copies to the public) by or on behalf of the Government.
 - (iv) The Contractor shall mark each scientific and technical article based on or containing data first produced in the performance of this contract and submitted for publication in academic, technical, or professional journals, symposia proceedings or similar works with a notice, similar in all material respects to the following, on the cover or first page of the article, reflecting the Government's non-exclusive worldwide license in the copyright.

GOVERNMENT RIGHTS NOTICE

This work was authored by employees of [insert the name of the Contractor] under Contract No. [insert contract number] with the National Aeronautics and Space Administration. The United States Government retains and the publisher, by accepting the article for publication, acknowledges that the United States Government retains a non-exclusive, paid-up, irrevocable, worldwide license to reproduce, prepare derivative works, distribute copies to the

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public, and perform publicly and display publicly, or allow others to do so, for United States Government purposes. All other rights are reserved by the copyright owner.

(End of Notice)

- (2) *Data not first produced in the performance of this contract.* The Contractor shall not, without the prior written permission of the Contracting Officer, incorporate in data delivered under this contract any data not first produced in the performance of this contract unless the Contractor-
 - (i) Identifies the data; and
 - (ii) Grants to the Government, or acquires on its behalf, a license of the same scope as set forth in paragraph (c)(1) of this clause or, if such data are restricted computer software, the Government shall acquire a copyright license as set forth in paragraph (g)(4) of this clause (if included in this contract) or as otherwise provided in a collateral agreement incorporated in or made part of this contract.
- (3) *Removal of copyright notices.* The Government will not remove any authorized copyright notices placed on data pursuant to this paragraph (c) and will include such notices on all reproductions of the data.
- (d) *Release, publication, and use of data.* The Contractor shall have the right to use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, except-
 - (1) As prohibited by Federal law or regulation (*e.g.*, export control or national security laws or regulations);
 - (2) As expressly set forth in this contract; or
 - (3) If the Contractor receives or is given access to data necessary for the performance of this contract that contain restrictive markings, the Contractor shall treat the data in accordance with such markings unless specifically authorized otherwise in writing by the Contracting Officer.
 - (4)
 - (i) The Contractor agrees not to assert claim to copyright, publish or release to others any computer software first produced in the performance of this contract unless the Contracting Officer authorizes through a contract modification.

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- (ii) The prohibition on "release to others", as set forth in (d)(4)(i), does not prohibit release to another Federal Agency for its use or its contractors' use, as long as any such release is consistent with any restrictive markings on the software. Any restrictive markings on the software shall take precedence over the aforementioned release. Any release to a Federal Agency shall limit use to the Federal Agency or its contractors for Government purposes only. Any other release shall require the Contracting Officer's prior written permission.
 - (iii) If the Government desires to obtain copyright in computer software first produced in the performance of this contract and permission has not been granted as set forth in paragraph (d)(4)(i) of this clause, the Contracting Officer may direct the contractor to assert, or authorize the assertion of, a claim to copyright in such data and to assign, or obtain the assignment of, such copyright to the Government or its designated assignee.
- (e) Unauthorized marking of data.
 - (1) Notwithstanding any other provisions of this contract concerning inspection or acceptance, if any data delivered under this contract are marked with the notices specified in paragraph (g)(3) or (g)(4) if included in this clause, and use of the notices is not authorized by this clause, or if the data bears any other restrictive or limiting markings not authorized by this contract, the Contracting Officer may at any time either return the data to the Contractor, or cancel or ignore the markings. However, pursuant to 41 U.S.C. 4703, the following procedures shall apply prior to canceling or ignoring the markings.
 - (i) The Contracting Officer will make written inquiry to the Contractor affording the Contractor 60 days from receipt of the inquiry to provide written justification to substantiate the propriety of the markings;
 - (ii) If the Contractor fails to respond or fails to provide written justification to substantiate the propriety of the markings within the 60-day period (or a longer time approved in writing by the Contracting Officer for good cause shown), the Government shall have the right to cancel or ignore the markings at any time after said period and the data will no longer be made subject to any disclosure prohibitions.
 - (iii) If the Contractor provides written justification to substantiate the propriety of the markings within the period set in paragraph (e)(1)(i) of this clause, the Contracting Officer will consider such written justification and determine whether or not the markings are

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to be cancelled or ignored. If the Contracting Officer determines that the markings are authorized, the Contractor will be so notified in writing. If the Contracting Officer determines, with concurrence of the head of the contracting activity, that the markings are not authorized, the Contracting Officer will furnish the Contractor a written determination, which determination will become the final agency decision regarding the appropriateness of the markings unless the Contractor files suit in a court of competent jurisdiction within 90 days of receipt of the Contracting Officer's decision. The Government will continue to abide by the markings under this paragraph (e)(1)(iii) until final resolution of the matter either by the Contracting Officer's determination becoming final (in which instance the Government will thereafter have the right to cancel or ignore the markings at any time and the data will no longer be made subject to any disclosure prohibitions), or by final disposition of the matter by court decision if suit is filed.

- (2) The time limits in the procedures set forth in paragraph (e)(1) of this clause may be modified in accordance with agency regulations implementing the Freedom of Information Act (5 U.S.C. 552) if necessary to respond to a request thereunder.
 - (3) Except to the extent the Government's action occurs as the result of final disposition of the matter by a court of competent jurisdiction, the Contractor is not precluded by paragraph (e) of the clause from bringing a claim, in accordance with the Disputes clause of this contract, that may arise as the result of the Government removing or ignoring authorized markings on data delivered under this contract.
- (f) Omitted or incorrect markings.
- (1) Data delivered to the Government without any restrictive markings shall be deemed to have been furnished with unlimited rights. The Government is not liable for the disclosure, use, or reproduction of such data.
 - (2) If the unmarked data has not been disclosed without restriction outside the Government, the Contractor may request, within 6 months (or a longer time approved by the Contracting Officer in writing for good cause shown) after delivery of the data, permission to have authorized notices placed on the data at the Contractor's expense. The Contracting Officer may agree to do so if the Contractor-
 - (i) Identifies the data to which the omitted notice is to be applied;
 - (ii) Demonstrates that the omission of the notice was inadvertent;

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- (iii) Establishes that the proposed notice is authorized; and
 - (iv) Acknowledges that the Government has no liability for the disclosure, use, or reproduction of any data made prior to the addition of the notice or resulting from the omission of the notice.
- (3) If data has been marked with an incorrect notice, the Contracting Officer may-
 - (i) Permit correction of the notice at the Contractor's expense if the Contractor identifies the data and demonstrates that the correct notice is authorized; or
 - (ii) Correct any incorrect notices.
- (g) Protection of limited rights data and restricted computer software.
 - (1) The Contractor may withhold from delivery qualifying limited rights data or restricted computer software that are not data identified in paragraphs (b)(1)(i), (ii), and (iii) of this clause. As a condition to this withholding, the Contractor shall-
 - (i) Identify the data being withheld; and
 - (ii) Furnish form, fit, and function data instead.
 - (2) Limited rights data that are formatted as a computer database for delivery to the Government shall be treated as limited rights data and not restricted computer software.
 - (3) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of limited rights data, or the Contracting Officer may require by written request the delivery of limited rights data that has been withheld or would otherwise be entitled to be withheld. If delivery of that data is required, the Contractor shall affix the following "Limited Rights Notice" to the data and the Government will treat the data, subject to the provisions of paragraphs (e) and (f) of this clause, in accordance with the notice:

LIMITED RIGHTS NOTICE (DEC 2007)

- (a) These data are submitted with limited rights under Government Contract No. _____ (and subcontract _____, if appropriate). These data may be reproduced and used by the Government with the express limitation that they will not, without written permission of the Contractor, be used for purposes of manufacture nor disclosed outside the Government; except that the Government may disclose these data outside the Government to

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support service contractors and/or pursuant to agreements and contracts related to human exploration such as the ISS, Commercial LEO, Gateway, or Artemis programs for the following purposes, if any; provided that the Government makes such disclosure subject to prohibition against further use and disclosure:

- (i) Use (except for manufacture) by support service contractors.
 - (ii) Evaluation by nongovernment evaluators.
 - (iii) Use (except for manufacture) by other contractors participating in the Government's program of which the specific contract is a part.
 - (iv) Emergency repair or overhaul work.
 - (v) Release to a foreign government, or its instrumentalities, if required to serve the interests of the U.S. Government, for information or evaluation, or for emergency repair or overhaul work by the foreign government.
- (b) This notice shall be marked on any reproduction of these data, in whole or in part.

(End of notice)

(4)

- (i) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of restricted computer software, or the Contracting Officer may require by written request the delivery of restricted computer software that has been withheld or would otherwise be entitled to be withheld. If delivery of that computer software is required, the Contractor shall affix the following "Restricted Rights Notice" to the computer software and the Government will treat the computer software, subject to paragraphs (e) and (f) of this clause, in accordance with the notice:

Restricted Rights Notice (DEC 2007)

- (a) This computer software is submitted with restricted rights under Government Contract No. _____ (and subcontract _____, if appropriate). It may not be used, reproduced, or disclosed by the Government except as

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provided in paragraph (b) of this notice or as otherwise expressly stated in the contract.

- (b) This computer software may be-
 - (1) Used or copied for use with the computer(s) for which it was acquired, including use at any Government installation to which the computer(s) may be transferred;
 - (2) Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;
 - (3) Reproduced for safekeeping (archives) or backup purposes;
 - (4) Modified, adapted, or combined with other computer software, *provided* that the modified, adapted, or combined portions of the derivative software incorporating any of the delivered, restricted computer software shall be subject to the same restricted rights;
 - (5) Disclosed to and reproduced for use by support service Contractors or their subcontractors in accordance with paragraphs (b)(1) through (4) of this notice; and
 - (6) Used or copied for use with a replacement computer.
- (c) Notwithstanding the foregoing, if this computer software is copyrighted computer software, it is licensed to the Government with the minimum rights set forth in paragraph (b) of this notice.
- (d) Any other rights or limitations regarding the use, duplication, or disclosure of this computer software are to be expressly stated in, or incorporated in, the contract.
- (e) This notice shall be marked on any reproduction of this computer software, in whole or in part.

(End of notice)

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- (ii) Where it is impractical to include the Restricted Rights Notice on restricted computer software, the following short-form notice may be used instead:

Restricted Rights Notice Short Form (JUN 1987)

Use, reproduction, or disclosure is subject to restrictions set forth in Contract No. _____ (and subcontract, if appropriate) with _____ (name of Contractor and subcontractor).

(End of notice)

- (iii) If restricted computer software is delivered with the copyright notice of 17 U.S.C. 401, it will be presumed to be licensed to the Government without disclosure prohibitions, with the minimum rights set forth in paragraph (b) of this clause.
- (5) The Contractor is authorized to identify data developed with mixed funding as data with Government Purpose Rights. If delivery of data with Government Purpose Rights is required, the Contractor shall affix the following “Government Purpose Rights” Notice to the data and the Government will treat the data, subject to the provisions of paragraphs (e) and (f) of this clause, in accordance with the notice:

Government Purpose Rights Notice (Deviation)

(a) The Government's rights in this data include the rights to use, modify, reproduce, manufacture, release, perform, display, or disclose technical data, computer software, or computer software documentation within the Government without restriction; and release or disclose technical data, computer software, or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, manufacture, release, perform, display, or disclose that data for United States government purposes. The Government's rights in this data shall become unlimited rights on the expiration date in paragraph (b).

(b) Expiration Date: 5 years after final services have been completed as part of the CLPS Contract

(c) This notice shall be marked on any reproduction of these data, in whole or in part.

(End of Notice)

- (h) *Subcontracting.* The Contractor shall obtain from its subcontractors all data and rights therein necessary to fulfill the Contractor's obligations to the Government under this contract. If a subcontractor refuses to accept terms affording the

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Government those rights, the Contractor shall promptly notify the Contracting Officer of the refusal and shall not proceed with the subcontract award without authorization in writing from the Contracting Officer.

- (i) *Relationship to patents or other rights.* Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government.

(End of clause)

I.9 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Revolutionary FAR Overhaul (RFO) clauses:

<https://www.acquisition.gov/>

NASA FAR Supplement (NFS) clauses:

<https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

Code of Federal Regulations:

<https://www.ecfr.gov/>

(End of clause)

I.10 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the clause.

The use in this solicitation or contract of any NASA FAR Supplement Regulation (48 CFR Chapter 18) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of clause)

NFS Clauses Incorporated by Full Text

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**I.11 1852.216-80 TASK ORDERING PROCEDURE (DEC 2025) (DEVIATION)
ALTERNATE I (APR 2018)**

- (a) Only the contracting officer may issue delivery/task orders to the contractor, providing specific authorization or direction to perform work within the scope of the contract and as specified in the schedule. The contractor may incur costs under this contract in performance of delivery/task orders and order modifications issued in accordance with this clause. No other costs are authorized unless otherwise specified in the contract or expressly authorized by the contracting officer.
- (b) Prior to issuing a delivery/task order, the contracting officer shall provide the contractor with the following data:
 - (1) A functional description of the work identifying the objectives or results desired from the contemplated delivery/task order.
 - (2) Proposed performance standards are to be used as criteria for determining whether the work requirements have been met.
 - (3) A request for a task plan from the contractor to include the technical approach, period of performance, appropriate cost information, and any other information required to determine the reasonableness of the contractor's proposal.
- (c) Within *(to be specified in Request for Task Plan, but no less than 7)* calendar days after receipt of the contracting officer's request, the contractor shall submit a task plan conforming to the request.
- (d) After review and any necessary discussions, the contracting officer may issue a delivery/task order to the contractor containing, as a minimum, the following:
 - (1) Date of the order.
 - (2) Contract number and order number.
 - (3) Functional description of the work identifying the objectives or results desired from the delivery/task order, including special instructions or other information necessary for performance of the task.
 - (4) Performance standards, and where appropriate, quality assurance standards.
 - (5) Maximum dollar amount authorized (cost and fee or price). This includes allocation of award fee among award fee periods, if applicable.
 - (6) Any other resources (travel, materials, equipment, facilities, etc.) authorized.
 - (7) Delivery/performance schedule including start and end dates.
 - (8) If contract funding is by individual order, accounting and appropriation data.
- (e) The contractor shall provide acknowledgment of receipt to the contracting officer within 3 calendar days after receipt of the order.

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- (f) If time constraints do not permit issuance of a fully defined order in accordance with the procedures described in paragraphs (a) through (d), an order which includes a ceiling price may be issued.
- (g) The contracting officer may amend tasks in the same manner in which they were issued.
- (h) In the event of a conflict between the requirements of the order and the contractor's approved task plan, the delivery/task order shall prevail.
- (i) Contractor shall submit progress reports, as required. When required, the reports shall contain, at a minimum, the following information:
 - (1) Contract number, delivery/task order number, and date of the order.
 - (2) Total estimated dollar amount of delivery/task order(s).
 - (3) Cost and hours incurred to date for each issued order.
 - (4) Costs and hours estimated to complete each issued order.
 - (5) Significant issues/problems associated with an order.
 - (6) Cost summary of the status of all orders issued under the contract.
 - (7) Invoice number.

(End of clause)

I.12 1852.219-75 INDIVIDUAL SUBCONTRACTING REPORTS (APR 2015)

When submitting Individual Subcontracting Reports in SPR in accordance with RFO 52.219-9(d) (1), the contractor shall enter goals as a percentage of total contract value as well as a percentage of total subcontract dollars.

(End of clause)

I.13 1852.227-70 NEW TECHNOLOGY-OTHER THAN A SMALL BUSINESS FIRM OR NONPROFIT ORGANIZATION (JAN 2026) (DEVIATION)

- (a) Definitions. As used in this clause—

"Administrator" means the Administrator or Deputy Administrator of the National Aeronautics and Space Administration (NASA) "Contract" has the meaning provided in the Federal Acquisition Regulation (FAR), Subpart 2.1-Definitions.

"Made" means—

- (1) When used in relation to any invention other than a plant variety, the conception or first actual reduction to practice of the invention; or
- (2) When used in relation to a plant variety, that the Contractor has at least tentatively determined that the variety has been reproduced with

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recognized characteristics. "Nonprofit organization" means a domestic university or other institution of higher education or an organization of the type described in section 501(c)(3) of the Internal Revenue Code of 1954 (26 U.S.C. 501(c)) and exempt from taxation under section 501(a) of the Internal Revenue Code (26 U.S.C. 501(a)), or any domestic nonprofit scientific or educational organization qualified under a State nonprofit organization statute.

"Practical application" means to manufacture, in the case of a composition or product; to practice, in the case of a process or method; or to operate, in the case of a machine or system; and, in each case, under such conditions as to establish that the invention is being utilized and that its benefits are, to the extent permitted by law or Government regulations, available to the public on reasonable terms.

"Reportable item" means any invention, discovery, improvement, or innovation of the contractor, whether or not patentable or otherwise protectable under Title 35 of the United States Code, made in the performance of any work under any NASA contract or in the performance of any work that is reimbursable under any clause in any NASA contract providing for reimbursement of costs incurred before the effective date of the contract. Reportable items include, but are not limited to, new processes, machines, manufactures, and compositions of matter, and improvements to, or new applications of, existing processes, machines, manufactures, and compositions of matter. Reportable items also include new computer programs, and improvements to, or new applications of, existing computer programs, whether or not copyrightable or otherwise protectable under Title 17 of the United States Code.

"Small business firm" means a domestic small business concern as defined at 15 U.S.C. 632 and implementing regulations of the Administrator of the Small Business Administration. (For the purpose of this definition, the criteria and size standard adopted in the FAR Subpart 2.1 definitions for "small business concern" and for "small business subcontractor" will be used.)

"Subject invention" means any reportable item which is or may be patentable or otherwise protectable under Title 35 of the United States Code, or any novel variety of plant that is or may be protectable under the Plant Variety Protection Act (7 U.S.C. 2321, et seq.)

(b) Allocation of principal rights.

(1) Presumption of title.

- (i) Any reportable item that the Administrator considers to be a subject invention shall be presumed to have been made in the manner specified in paragraph (1)(A) or (1)(B) of Section 20135(b) of the National Aeronautics and Space Act (51 U.S.C. 20135(b)) (hereinafter "the Act"), and the above presumption shall

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be conclusive unless at the time of reporting the reportable item in accordance with paragraph (e)(2) of this clause the Contractor submits to the Contracting Officer a written statement, containing supporting details, demonstrating that the reportable item was not made in the manner specified in the Act.

- (ii) Regardless of whether title to a given subject invention would otherwise be subject to an advance waiver or is the subject of a petition for waiver as described in paragraph (b)(3) of this clause, the Contractor may nevertheless file the statement described in paragraph (b)(1)(i) of this clause. The Administrator will review the information furnished by the Contractor in any such statement and any other available information relating to the circumstances surrounding the making of the subject invention and will notify the Contractor whether the Administrator has determined that the subject invention was made in the manner specified in paragraph (1)(A) or (1)(B) of Section 20135(b) of the Act.
- (2) Property rights in subject inventions. Each subject invention for which the presumption of paragraph (b)(1)(i) of this clause is conclusive or for which there has been a determination that it was made in the manner specified in paragraph (1)(A) or (1)(B) of Section 20135(b) of the Act shall be the exclusive property of the United States as represented by NASA unless the Administrator waives all or any part of the rights of the United States, as provided in paragraph (b)(3) of this clause.
- (3) Waiver of rights.
 - (i) Section 20135(g) of the Act provides for the promulgation of regulations by which the Administrator may waive all or any part of the rights of the United States with respect to any invention or class of inventions made or that may be made under conditions specified in paragraph (1)(A) or (1)(B) of Section 20135(b) of the Act. The promulgated NASA Patent Waiver Regulations, 14 CFR Part 1245, Subpart 1, provide procedures for the Contractor to submit petitions (requests) for waiver of rights and guidance for NASA in acting on petitions for such waiver of rights.
 - (ii) As provided in 14 CFR 1245, Subpart 1, the Contractor may petition, either prior to execution of the contract or within 30 days after execution of the contract, for advance waiver of rights to any invention or class of inventions that may be made under a contract. If such a petition is not submitted, or if after submission it is denied, the Contractor (or an employee inventor of the Contractor) may petition for waiver of rights to an identified subject invention within eight months of first disclosure of invention in accordance with paragraph (e)(2) of this clause, or within such longer period

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as may be authorized in accordance with 14 CFR 1245.105.

- (c) Minimum rights reserved by the Government.
 - (1) With respect to each subject invention for which a waiver of rights has been granted, the Government reserves—
 - (i) An irrevocable, nonexclusive, nontransferable, royalty-free license for the practice of such invention throughout the world by or on behalf of the United States or any foreign government in accordance with any treaty or agreement with the United States; and
 - (ii) Such other rights as stated in 14 CFR 1245.107.
 - (2) Nothing contained in this paragraph (c) shall be considered to grant to the Government any rights with respect to any invention other than a subject invention.
- (d) Minimum rights to the Contractor.
 - (1) The Contractor is hereby granted a revocable, nonexclusive, royalty-free license in each patent application filed in any country on a subject invention in which the Government has title and in any resulting patent, unless the Contractor fails to disclose the subject invention within the times specified in paragraph (e)(2) of this clause. The Contractor's license extends to its domestic subsidiaries and affiliates, if any, within the corporate structure of which the Contractor is a party and includes the right to grant sublicenses of the same scope to the extent the Contractor was legally obligated to do so at the time the contract was awarded. The license is transferable only with the approval of the Administrator except when transferred to the successor of that part of the Contractor's business to which the invention pertains.
 - (2) The Contractor's domestic license may be revoked or modified by the Administrator to the extent necessary to achieve expeditious practical application of the subject invention pursuant to an application for an exclusive license submitted in accordance with 37 CFR Part 404, Licensing of Government Owned Inventions. The Contractor's license will not be revoked in that field of use or the geographical areas in which the Contractor has achieved practical application and continues to make the benefits of the invention reasonably accessible to the public. The license in any foreign country may be revoked or modified at the discretion of the Administrator to the extent the Contractor, its licensees, or its domestic subsidiaries or affiliates have failed to achieve practical application in that foreign country.
 - (3) Before revoking or modifying the Contractor's license, the Contractor will

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be provided a written notice of the Administrator's intention to revoke or modify the license, and the Contractor will be allowed 30 days (or such other time as may be authorized by the Administrator for good cause shown) after the notice to show cause why the license should not be revoked or modified. The Contractor has the right to appeal to the Administrator any decision concerning the revocation or modification of its license.

(e) Contractor's obligations.

- (1) The Contractor shall establish and maintain active and effective procedures to assure that reportable items are promptly identified and disclosed to Contractor personnel responsible for the administration of this New Technology-Other than a Small Business Firm or Nonprofit Organization clause within six months of conception and/or first actual reduction to practice, whichever occurs first in the performance of work under this contract. These procedures shall include the maintenance of laboratory notebooks or equivalent records and other records as are reasonably necessary to document the conception and/or the first actual reduction to practice of the reportable items, and records that show that the procedures for identifying and disclosing reportable items are followed. Upon request, the Contractor shall furnish the Contracting Officer a description of such procedures for evaluation and for determination as to their effectiveness.
- (2) The Contractor shall disclose in writing each reportable item to the Contracting Officer within two months after the inventor discloses it in writing to Contractor personnel responsible for the administration of this New Technology-Other than a Small Business Firm or Nonprofit Organization clause or within six months after the Contractor becomes aware that a reportable item has been made, whichever is earlier, but in any event for subject inventions before any on sale, public use, or publication of such invention known to the Contractor. The disclosure to the agency shall identify the inventor(s) or innovator(s) and this contract under which the reportable item was made. It shall be sufficiently complete in technical detail to convey a clear understanding, to the extent known at the time of the disclosure, of the nature, purpose, operation, and physical, chemical, biological, or electrical characteristics of the reportable item. The disclosure shall also identify any publication, sale or offer for sale, or public use of any subject invention and whether a manuscript describing such invention has been submitted for publication and, if so, whether it has been accepted for publication at the time of disclosure. In addition, after disclosure to the agency, the Contractor will promptly notify the agency of the acceptance of any manuscript describing a subject invention for publication or of any sale, offer for sale, or public use planned by the Contractor for such invention.

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- (3) Per Executive Order 14104, Federal Research and Development in Support of Domestic Manufacturing and United States Jobs (dated July 28, 2023), paragraphs 4(e) and (4)(f), the contractor shall report all subject inventions required in 52.227-11(c)(1) to NASA by:
 - (i) First, completing input of all such subject inventions into the National Institute of Standards and Technology (NIST) iEdison website at <https://www.nist.gov/iedison>. No such input shall be considered to be complete until the iEdison system assigns the inputted report an Invention Report Number.
 - (ii) Next, to complete the process of disclosing the invention to NASA, the contractor shall report the resulting number to:
 - (A) The Contracting Officer's Representative (COR);
 - (B) The New Technology Representative (identified in this contract at 1852.227.72);
 - (C) The Patent Representative (identified in this contract at 1852.227.72); and
 - (D) The Contracting Officer (CO).
 - (iii) The contractor shall complete the disclosure by the deadline stated in 52.227- 11(c)(1).
- (4) The Contractor agrees, upon written request of the Contracting Officer, to furnish additional technical and other information available to the Contractor as is necessary for the preparation of a patent application on a subject invention and for the prosecution of the patent application, and to execute all papers necessary to file patent applications on subject inventions and to establish the Government's rights in the subject inventions.
- (5) The Contractor agrees, subject to paragraph 27.302(j) of the Federal Acquisition Regulation (FAR), that the Government may duplicate and disclose subject invention disclosures and all other reports and papers furnished or required to be furnished pursuant to this clause.
- (f) Examination of records relating to inventions.
 - (1) The Contracting Officer or any authorized representative shall, until 3 years after final payment under this contract, have the right to examine any books (including laboratory notebooks), records, and documents of the Contractor relating to the conception or first actual reduction to practice of inventions in the same field of technology as the work under this contract to determine whether—

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- (i) Any such inventions are subject inventions;
 - (ii) The Contractor has established and maintained the procedures required by paragraph (e)(1) of this clause; and
 - (iii) The Contractor and its inventors have complied with the procedures.
 - (2) If the Contracting Officer learns of an unreported Contractor invention that the Contracting Officer believes may be a subject invention, the Contracting Officer may require the Contractor to disclose the invention to the agency for a determination of ownership rights.
 - (3) Any examination of records under this paragraph will be subject to appropriate conditions to protect the confidentiality of the information involved.
- (g) Withholding of payment (this paragraph does not apply to subcontracts).
- (1) Any time before final payment under this contract, the Contracting Officer may, in the Government's interest, withhold payment until a reserve not exceeding \$50,000 or 5 percent of the amount of this contract, whichever is less, shall have been set aside if, in the Contracting Officer's opinion, the Contractor fails to—
 - (i) Establish, maintain, and follow effective procedures for identifying and disclosing reportable items pursuant to paragraph (e)(1) of this clause;
 - (ii) Disclose any reportable items pursuant to paragraph (e)(2) of this clause;
 - (iii) Provide the information regarding subcontracts pursuant to paragraph (h)(4) of this clause.
 - (2) Such reserve or balance shall be withheld until the Contracting Officer has determined that the Contractor has rectified whatever deficiencies exist and has delivered all reports, disclosures, and other information required by this clause.
 - (3) Final payment under this contract shall not be made before the Contractor delivers to the Contracting Officer all disclosures of reportable items required by paragraph (e)(2) of this clause;
 - (4) The Contracting Officer may decrease or increase the sums withheld up to the maximum authorized above. No amount shall be withheld under this paragraph while the amount specified by this paragraph is being withheld under other provisions of the contract. The withholding of any amount or

PART I – THE SCHEDULE

the subsequent payment thereof shall not be construed as a waiver of any Government rights.

(h) Subcontracts.

- (1) Unless otherwise authorized or directed by the Contracting Officer, the Contractor shall—
 - (i) Include this clause (suitably modified to identify the parties) in any subcontract hereunder (regardless of tier) with other than a small business firm or nonprofit organization for the performance of experimental, developmental, or research work; or
 - (ii) Include the clause at FAR 52.227-11, as modified by 1852.277-11, (suitably modified to identify the parties) in any subcontract hereunder (regardless of tier) with a small business firm or nonprofit organization for the performance of experimental, developmental, or research work; and
 - (iii) Modify the applicable clause in any subcontract hereunder (regardless of tier) to identify the parties as follows: references to the Government are not changed, and in all references to the Contractor, the subcontractor is substituted for the Contractor so that the subcontractor has all rights and obligations of the Contractor in the clause.
- (2) In the event of a refusal by a prospective subcontractor to accept such a clause the Contractor:
 - (i) Shall promptly submit a written notice to the Contracting Officer setting forth the subcontractor's reasons for such refusal and other pertinent information that may expedite disposition of the matter; and
 - (ii) Shall not proceed with such subcontract without the written authorization of the Contracting Officer.
- (3) In the case of subcontracts at any tier, the agency, subcontractor, and Contractor agree that the mutual obligations of the parties created by this clause constitute a contract between the subcontractor and NASA with respect to those matters covered by this clause.
- (4) The Contractor shall promptly notify the Contracting Officer in writing upon the award of any subcontract hereunder (regardless of tier) by identifying the subcontractor, the applicable patent rights clause in the subcontract, the work to be performed under the subcontract, and the dates of award and estimated completion. Upon request of the Contracting Officer, the Contractor shall furnish a copy of such subcontract, and, no

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more frequently than annually, a listing of the subcontracts that have been awarded.

- (5) The subcontractor will retain all rights provided for the Contractor in the clause of subparagraph (h)(1)(i) or (ii) of this clause, whichever is included in the subcontract, and the Contractor will not, as part of the consideration for awarding the subcontract, obtain rights in the subcontractor's subject inventions.
- (i) Preference for United States industry. Unless provided otherwise, no Contractor that receives title to any subject invention and no assignee of any such Contractor shall grant to any person the exclusive right to use or sell any subject invention in the United States unless such person agrees that any products embodying the subject invention will be manufactured substantially in the United States. However, in individual cases, the requirement may be waived by the Administrator upon a showing by the Contractor or assignee that reasonable but unsuccessful efforts have been made to grant licenses on similar terms to potential licensees that would be likely to manufacture substantially in the United States or that under the circumstances domestic manufacture is not commercially feasible.

(End of clause)

I.14 1852.227-72 DESIGNATION OF NEW TECHNOLOGY REPRESENTATIVE AND PATENT REPRESENTATIVE (JAN 2026) (DEVIATION)

- (a) For purposes of administration of the clause of in this contract entitled either “New Technology-Other than a Small Business Firm or Nonprofit Organization” or “Patent Rights—Ownership by the Contractor,” the cognizant center New Technology Representatives and Patent Representatives identified at https://prod.nais.nasa.gov/pub/pub_library/techrep.html are hereby designated by the Contracting Officer to administer such clause for the installation(s) involved.
- (b) Disclosures of reportable items and of subject inventions, utilization reports, and other reports required by the applicable “New Technology” or “Patent Rights-Ownership by the Contractor” clause, as well as any correspondence with respect to such matters, shall be directed to the New Technology Representative unless transmitted in response to correspondence or request from the Patent Representative. Inquiries or requests regarding disposition of rights, election of rights, or related matters shall be directed to the Patent Representative. This clause shall be included in any subcontract hereunder requiring a “New Technology-Other than a Small Business Firm or Nonprofit Organization” clause or “Patent Rights—Ownership by the Contractor” clause, unless otherwise authorized or directed by the Contracting Officer. Additional responsibilities and authorities of the aforementioned representatives are set forth in 1827.303(b)(2) of the NASA FAR Supplement.

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(End of clause)

I.15 1852.232-80 SUBMISSION OF VOUCHERS/INVOICES FOR PAYMENT (APR 2018)

- (a) The designated payment office is the NASA Shared Services Center (NSSC) located at FMD Accounts Payable, Bldg. 1111, Jerry Hlass Road, Stennis Space Center, MS 39529.
- (b) Except for classified vouchers, the Contractor shall submit all vouchers and invoices using the steps described at NSSC's Vendor Payment information web site at: <https://www.nssc.nasa.gov/vendorpayment>. Please contact the NSSC Customer Contact Center at 1-877-NSSC123 (1-877-677-2123) with any additional questions or comments.
- (c) Payment requests.
 - (1) The payment periods are stipulated in the payment clause(s) contained in this contract.
 - (2) Vouchers submitted under cost-type contracts and invoices submitted under fixed-price contracts shall include the items delineated in FAR 32.905(b) supported by relevant back-up documentation. Back-up documentation shall include at a minimum, the following information:
 - (i) Vouchers.
 - (A) Breakdown of billed labor costs and associated contractor generated supporting documentation for billed direct labor costs to include rates used and number of hours incurred.
 - (B) Breakdown of billed other direct costs (ODCs) and associated contractor generated supporting documentation for billed ODCs.
 - (C) Indirect rate(s) used to calculate the amount of billed indirect expenses.
 - (D) Progress reports, as required.
 - (ii) Invoices.
 - (A) Description of goods and services delivered as part of the contract's terms and conditions, including the dates of delivery/performance.
 - (B) Progress reports, as required.

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- (C) Date goods and services were performed.
- (iii) Fee vouchers.
 - (A) Listing of all provisionally-billed fee by period or date earned since contract award.
 - (B) A reconciliation of all billed and earned fee.
 - (C) A clear explanation of the fee calculations.
- (d) Non-electronic payment requests. The Contractor may submit a non-electronic voucher/invoice using the steps for non-electronic payment requests described at <https://www.nssc.nasa.gov/vendorpayment>, when any of the following conditions are met:
 - (1) The Contracting Officer administering the contract for payment has determined, in writing, that electronic submission would be unduly burdensome to the Contractor.
 - (2) The contract includes provisions allowing the contractor to submit vouchers or invoices using the steps for non-electronic payment requests. In such instances the Contractor agrees to submit non-electronic payment requests using the method or methods specified in Section G of the contract.
- (e) Improper vouchers/invoices. The NSSC Payment Office will notify the contractor of any apparent error, defect, or impropriety in a voucher/invoices within seven calendar days of receipt by the NSSC Payment Office. Inquiries regarding requests for payment should be directed to the NSSC as specified in paragraph (b) of this section.
- (f) Other payment clauses. In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.
- (g) In the event that amounts are withheld from payment in accordance with provisions of this contract, a separate payment request for the amount withheld will be required before payment for that amount may be made.

(End of clause)

**I.16 1852.240-75 SECURITY CLASSIFICATION REQUIREMENTS (AUG 2025)
(DEVIATION)**

Performance under this contract will involve access to and/or generation of classified information, work in a security area, or both, up to the level of **TBD** [insert the applicable security clearance level]. See Federal Acquisition Regulation

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clause 52.240-90 in this contract and DD Form 254, Contract Security Classification Specification, Attachment J-5.

I.17 FOR UNCLASSIFIED INFORMATION TECHNOLOGY RESOURCES (JAN 2026) (DEVIATION)

- (a) The contractor must protect the confidentiality, integrity, and availability of NASA Electronic Information and IT resources and protect NASA Electronic Information from unauthorized disclosure.
- (b) This clause is applicable to all NASA contractors and sub-contractors that process, manage, access, or store unclassified electronic information, to include Sensitive but Unclassified (SBU) information or Controlled Unclassified Information (CUI), for NASA in support of NASA's missions, programs, projects and/or institutional requirements. Applicable requirements, regulations, policies, and guidelines are identified in the contract. Specific implementation requirements will be addressed in the contract data requirements description. For policy information considered sensitive, the documents will be identified as such in the contract and made available through the Contracting Officer.
- (c) Definitions.
 - (1) IT resources means any hardware or software or interconnected system or subsystem of equipment, that is used to process, manage, access, or store electronic information.
 - (2) NASA Electronic Information is any data (as defined in the Rights in Data clause of this contract) or information (including information incidental to contract administration, such as financial, administrative, cost or pricing, or management information) that is processed, managed, accessed or stored on an IT system(s) in the performance of a NASA contract.
 - (3) Federal Information System (FIS). The term “Federal information system” means an information system used or operated by an executive agency, by a contractor of an executive agency, or by another organization on behalf of an executive agency (40 U.S.C. 11331).
 - (4) Information System Security Plan (i.e., System Security Plan, IT Security Plan, or Security Plan) means a formal document that provides an overview of the security requirements for an information system and describes the security controls in place or planned for meeting those requirements.
- (d) Contractors that process, store, or transmit federal information or operate information systems on behalf of the federal government must meet the same security and privacy requirements as federal agencies. The contractor must develop and submit an Information Security Plan when operating a FIS or maintaining or collecting information for the purpose of processing, storing, or transmitting federal information, and those activities are not incidental to providing a service or product

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to the Government. Such FIS plans are to be accomplished in accordance with the current version of NASA Procedural Requirements (NPR) 2810.1 Security of Information and Information Systems. The security plan and Authorization to Operate (ATO) must be in place before any system may operate in the NASA environment. When the contractor does not operate a FIS but receives, process, transmits, or stores NASA information in performance of the contract, the contractor must attest to the ability to secure NASA information within its own IT/information system.

- (e) The contractor must afford Government access to the Contractor's and subcontractors' facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. Access must be provided to the extent required to carry out a program of IT inspection (to include vulnerability testing), investigation and audit to safeguard against threats Page 113 of 148 and hazards to the integrity, availability, and confidentiality of NASA Electronic Information or to the function of IT systems operated on behalf of NASA, and to preserve evidence of computer crime. The contractor must report immediately upon notification any incident involving NASA information on non-federal (contractor) systems.
- (f) The contractor must provide the name and contact information for the contractor's IT Security point of contact during phase in of the contract. Contractor employees requiring physical access to NASA facilities or electronic access to NASA systems must complete the NASA Cybersecurity and Privacy Awareness Training.
- (g) The contractor must insert this clause, including this paragraph in all subcontracts that process, manage, access or store NASA Electronic Information in support of the mission of the Agency.

(End of clause)

I.18 CONTRACT FUNDING AT AWARD (applies at the contract-level only)

- (a) An initial obligation of \$25,000 will be provided at the time of award to fund the minimum ordering requirement under this contract.
- (b) Upon award of the awardee's first order, the initial funding amount provided at award will be subsequently de-obligated from the contract, and an obligation of equal or greater amount will be provided under the order in accordance with NFS 1852.232-77 LIMITATION OF FUNDS (FIXED-PRICE CONTRACT).

(End of clause)

(End of section)

PART II – CONTRACT CLAUSES**SECTION J – LIST OF ATTACHMENTS**

List of Contract Attachments

This attachment contains the list of applicable documents for the contract effort. The latest revision of each document is the applicable document, and the contractor is responsible for ensuring application of the latest revision. The contractor shall comply with these requirements in performing the SoW activities. Requirements written in these documents shall have full force and effect as if their text were written in this contract to the extent that the requirements relate to context of the work to be performed within the scope of this contract.

ATTACHMENT	TITLE
J-1	<i>Organizational Conflicts of Interest (OCI) Plan</i>
J-2	<i>Authorized Limited Rights and Restricted Rights Data</i>
J-3	<i>Government Task Agreements</i>
J-4	<i>Government Furnished Property and Data/Information</i>
J-5	<i>DD Form 254</i>
J-6	<i>Anomaly, Mishap, Mission Failure Preparedness and Contingency Reporting</i>
J-7	<i>Authorized Limited Rights and Restricted Rights Data</i>

(End of section)

PART III – LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS**SECTION K – REPRESENTATIONS, CERTIFICATION, AND OTHER STATEMENTS OF OFFERORS****K.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Revolutionary FAR Overhaul (RFO) clauses:

<https://www.acquisition.gov/>

NASA FAR Supplement (NFS) clauses:

<https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

Code of Federal Regulations:

<https://www.ecfr.gov/>

RFO Provisions Incorporated by Reference**K.2 LISTING OF CLAUSES INCORPORATED BY REFERENCE****I. FAR Clauses Incorporated by Reference**

Number	Title	Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017
52.204-5	Women-Owned Business (Other Than Small Business)	Oct 2014
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations	Nov 2025 (Deviation)
52.209-5	Certification Regarding Responsibility Matters	Nov 2025 (Deviation)
52.209-7	Information Regarding Responsibility Matters	Nov 2025 (Deviation)
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	Nov 2025 (Deviation)

PART III – LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

52.209-12	Certification Regarding Tax Matters	Oct 2025 (Deviation)
52.209-13	Violation of Arms Control Treaties or Agreements-Certification	Nov 2025 (Deviation)
52.222-18	Certification Regarding Knowledge of Child Labor for Listed End Products.	Feb 2021
52.225-2	Buy American Certificate	Oct 2022
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certifications.	Jun 2020
52.240-90	Security Prohibitions and Exclusions Representation and Certifications	Nov 2025

II. NFS Clauses Incorporated by Reference

None Incorporated by Reference

FAR Provisions Incorporated by Full Text**K.3 52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – REPRESENTATION AND DISCLOSURES (Dec 2023)**

- (a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.
- (b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.
- (c) *Procedures.*
 - (1) The Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.
 - (2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

PART III – LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

- (3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.
- (d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).
- (e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:
 - (1) Name of the product or service provided to the Government;
 - (2) Name of the covered article or source subject to a FASCSA order;
 - (3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;
 - (4) Brand;
 - (5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
 - (6) Item description;
 - (7) Reason why the applicable covered article or the product or service is being provided or used;
- (f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

(End of section)

PART IV – REPRESENTATIONS AND INSTRUCTIONS**SECTION L – INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS****L.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Revolutionary FAR Overhaul (RFO) clauses:

<https://www.acquisition.gov/>

NASA FAR Supplement (NFS) clauses:

<https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

Code of Federal Regulations:

<https://www.ecfr.gov/>

L.2 LISTING OF CLAUSES INCORPORATED BY REFERENCE**I. RFO Clauses Incorporated by Reference**

Number	Title	Date
52.204-7 Deviation	System for Award Management - Registration Deviation	Nov 2025
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts)	Aug 2024
52.215-1 Deviation	<i>Instructions to Offerors—Competitive Acquisition</i>	Nov 2025
52.216-27	Single or Multiple Awards	Oct 1995
52.229-11	Tax on Certain Foreign Procurements—Notice and Representation	Jul 2025 (Deviation)

II. NFS Clauses Incorporated by Reference

None Incorporated by Reference

PART IV – REPRESENTATIONS AND INSTRUCTIONS

FAR Provisions Incorporated by Full Text

L.3 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

- (a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—
 - (1) The solicitation number;
 - (2) The name, address, telephone number of the Offeror;
 - (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
 - (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
 - (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
 - (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.
- (b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.
- (c) *Late submissions, modifications, revisions, and withdrawals of offers.*
 - (1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.
 - (2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.
 - (3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the

PART IV – REPRESENTATIONS AND INSTRUCTIONS

solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

- (4) Offerors may withdraw their offers by written notice to the Government received at any time before award.
- (d) *Contract award (not applicable to Invitation for Bids).* The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, except other than the lowest offer, and waive informalities and minor irregularities in offers received.
- (e) *Debriefings.* If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:
 - (1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.
 - (2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.
 - (3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.
 - (4) A summary of the rationale for award.
 - (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.
 - (6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

L.4 52.207-6 SOLICITATION OF OFFERS FROM SMALL BUSINESS CONCERNS AND SMALL BUSINESS TEAMING ARRANGEMENTS OR JOINT VENTURES (Multiple-Award Contracts) (AUG 2024)

- (a) Definition. "Small Business Teaming Arrangement," as used in this provision-
 - (1) Means an arrangement where—

PART IV – REPRESENTATIONS AND INSTRUCTIONS

- (i) Two or more small business concerns have formed a joint venture; or
 - (ii) A small business offeror agrees with one or more other small business concerns to have them act as its subcontractors under a specified Government contract. A Small Business Teaming Arrangement between the offeror and its small business subcontractor(s) exists through a written agreement between the parties that–
 - (A) Is specifically referred to as a "Small Business Teaming Arrangement"; and
 - (B) Sets forth the different responsibilities, roles, and percentages (or other allocations) of work as it relates to the acquisition;
- (2)
- (i) For civilian agencies, may include two business concerns in a mentor-protégé relationship when both the mentor and the protégé are small or the protégé is small and the concerns have received an exception to affiliation pursuant to 13 CFR 121.103(h)(3)(ii) or (iii).
 - (ii) For DoD, may include two business concerns in a mentor-protégé relationship in the Department of Defense Mentor-Protégé Program (see 10 U.S.C. 4902) when both the mentor and the protégé are small. There is no exception to joint venture size affiliation for offers received from teaming arrangements under the DoD Mentor-Protégé Program; and
- (3) See 13 CFR 121.103(b)(9) regarding the exception to affiliation for offers received from Small Business Teaming Arrangements in the case of a solicitation of offers for a bundled contract with a reserve.
- (b) The Government is soliciting and will consider offers from any responsible source, including responsible small business concerns and offers from Small Business Teaming Arrangements or joint ventures of small business concerns.

(End of provision)

L.5 52.216-1 TYPE OF CONTRACT (NOV 2025) (Deviation)

The Government contemplates award of *firm-fixed price indefinite delivery indefinite quantity* contracts resulting from this solicitation.

(End of provision)

PART IV – REPRESENTATIONS AND INSTRUCTIONS**L.6 52.233-2 SERVICE OF PROTEST (NOV 2025) (Deviation)**

- (a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.
- (b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

L.7 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Revolutionary FAR Overhaul (RFO) clauses:

<https://www.acquisition.gov/>

NASA FAR Supplement (NFS) clauses:

<https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

(End of provision)

L.8 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

- (a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.
- (b) The use in this solicitation of any NASA FAR Supplement Regulation (48 CFR Chapter 18) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

NFS Clauses Incorporated by Full Text**L.9 1852.215-77 PREPROPOSAL/PRE-BID CONFERENCE (APR 2015)**

- (a) A preproposal/pre-bid conference will be held as indicated below:

Date: TBD

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Time: TBD

Location: TBD

Other Information, as applicable:

- (b) Attendance at the preproposal/pre-bid conference is recommended; however, attendance is neither required nor a prerequisite for proposal/bid submission and will not be considered in the evaluation.
- (c) Offerors, individuals, or interested parties who plan to attend the pre-proposal/pre-bid conference must provide the Contracting Officer in writing, at a minimum, full name of the attendee(s), identification of nationality (U.S. or specify other nation citizenship), Lawful Permanent Resident Numbers in the case of foreign nationals, affiliation and full office address/phone number. Center-specific security requirements for this pre-proposal/pre-bid conference will be given to a company representative prior to the conference or will be identified in this solicitation as follows: (fill-in). Examples of specific identification information which may be required include state driver's license and social security number. Except for foreign nationals, the identification information must be provided at least (fill-in) working days in advance of the conference. This information shall be provided at least (fill-in) working days in advance of the conference for foreign nationals due to the longer badging and clearance processing time required. However, the Center reserves the right to determine foreign nationals may not be allowed on the Government site. The Government is not responsible for offerors' inability to obtain clearance within sufficient time to attend the conference. Due to space limitations, representation of any potential Offeror may not exceed three (3) company representatives/persons per Offeror. Any "lobbying firm or lobbyist" as defined in 2 U.S.C. 1602(9) and (10), or any Offeror represented by a lobbyist under the Lobbying Disclosure Act of 1995 shall be specifically identified.
- (d) Visitors on NASA Centers are allowed to possess and use photographic equipment (including camera cell phones) and related materials EXCEPT IN CONTROLLED AREAS. Anyone desiring to use camera equipment during the conference should contact the Contracting Officer to determine if the site(s) to be visited is a controlled area.
- (e) The Government will respond to questions regarding this procurement provided such questions have been received at least five (5) working days prior to the conference. Other questions will be answered at the conference or in writing at a later time. All questions, together with the Government's response, will be transmitted to all solicitation recipients via the government-wide point of entry (GPE). In addition, conference materials distributed at the preproposal/pre-bid conference will be made available to all potential offerors via the GPE.

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Due to the scheduling of this Preproposal/Bid Conference, the Government cannot guarantee that security processing for non-U.S. citizens will be completed prior to the commencement of the event. Participation is subject to the timely completion of all required security procedures.

(End of provision)

L.10 1852.227-71 REQUEST FOR WAIVER OF RIGHTS TO INVENTIONS (DEVIATION JAN 2026)

- (a) In accordance with Section 20135(g) of the National Aeronautics and Space Act (51 U.S.C. 20135(g)) (hereinafter “the Act”) and the NASA Patent Waiver Regulations, 14 CFR Part 1245, Subpart 1, NASA may waive all or any part of the rights of the United States with respect to any invention or class of inventions made or that may be made under a NASA contract or subcontract with other than a small business firm or a domestic nonprofit organization if the Administrator determines that the interests of the United States will be served thereby. Waiver of rights in inventions made or that may be made under such NASA contract or subcontract may be requested at different time periods. Advance waiver of rights to any invention or class of inventions that may be made under a contract or subcontract may be requested prior to the execution of the contract or subcontract, or within 30 days after execution by the selected contractor (or such longer period as may be specified by the Contracting Officer). In addition, waiver of rights to an individually identified invention or to a class of inventions made and reported under a contract or subcontract may be requested, even though a request for an advance waiver was not made or, if made, was not granted.
- (b) Each request for waiver of rights shall be by petition to the Administrator. No specific forms need be used, but the request should contain a positive statement that waiver of rights is being requested under the NASA Patent Waiver Regulations; a clear indication of whether the request is for an advance waiver or for a waiver of rights for an individually identified invention or class of inventions; whether foreign rights are also requested and, if so, the countries, and a citation of the specific section or sections of the regulations under which such rights are requested. For individually identified inventions or a class of inventions, the petition shall identify each invention with particularity (e.g., by NASA’s assigned number to the Disclosure of Invention and New Technology report or by title and inventorship). For advance waivers, the petition shall identify the invention or class of inventions that the Contractor believes will be made under the contract and for which waiver is being requested. To meet the statutory standard of “any invention or class of inventions,” the petition shall be directed to a single invention or to inventions directed to a particular process, machine, manufacture, or composition of matter, or to a narrowly-drawn, focused area of technology. Additionally, each petition shall include an identification of the petitioner; place of business and address; if petitioner is represented by counsel, the name, address and telephone number of the counsel; the name, address, and telephone number of the party with whom to communicate when the

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request is acted upon; the signature of the petitioner or authorized representative; and the date of signature. In general, waivers are granted in order to provide for the widest practicable dissemination of new technology resulting from NASA programs, and to promote early utilization, expeditious development, and continued availability of this new technology for commercial purposes and the public benefit. Thus, it is preferable that the petition also include a description of the Contractor's plan for commercializing the invention or class of inventions for which waiver is being requested (e.g., identify specific fields of use).

- (c) Petitions for advance waiver of rights should, preferably, be included with the proposal, or at least in advance of contract negotiations. Petitions for advance waiver, prior to contract execution, shall be submitted to the Contracting Officer. All other petitions shall be submitted to the Patent Representative designated in the contract.
- (d) Petitions submitted with proposals selected for negotiation of a contract will be forwarded by the Contracting Officer to the installation Patent Counsel for processing and then to the Inventions and Contributions Board. Whenever the Board notifies a petitioner of a recommendation adverse to, or different from, the waiver requested, the petitioner may request reconsideration under procedures set forth in the Regulations.

(End of provision)

L.11 1852.233-70 PROTESTS TO NASA (SEP 2025) (DEVIATION)

- (a) In lieu of a protest to the United States Government Accountability Office (GAO), bidders or offerors may submit a protest under 48 CFR Part 33 (FAR Part 33) directly to the contracting officer for consideration by the Agency. Alternatively, bidders or offerors may request an independent review by the Assistant Administrator for Procurement, who will serve as or designate the official responsible for conducting an independent review. Such reviews are separate and distinct from the Ombudsman Program described at 1815.7001.
- (b) Bidders or offerors must specify whether they are submitting a protest to the contracting officer or requesting an independent review by the Assistant Administrator for Procurement.
- (c) Protests to the contracting officer must be submitted to the address or email specified in the solicitation (email is an acceptable means for submitting a protest to the contracting officer). Alternatively, requests for independent review by the Assistant Administrator for Procurement shall be addressed to the Assistant Administrator for Procurement, NASA Headquarters, Washington, D.C. 20546-0001.

(End of provision)

PART IV – REPRESENTATIONS AND INSTRUCTIONS**L.12 COMMUNICATION REGARDING THIS SOLICITATION (JSC 52.215-124) (MAR 2023)**

- (a) Any communications in reference to this solicitation shall cite the solicitation number and be directed to the Contracting Officer:

Name: **Aubrie Henspeter**

Email: JSC-CLPS2@nasa.gov

- (b) QUESTIONS REGARDING THIS SOLICITATION MUST BE PRESENTED IN WRITING and shall be submitted electronically to the above e-mail address by April 17, 2026, in order that answers may be obtained and disseminated in a timely manner, since it is not expected that the proposal submission date will be extended. Oral communications are not acceptable in response to this solicitation. Questions shall not be directed to the technical activity personnel.

(End of provision)

L.13 OFFEROR ACCEPTANCE PERIOD (JSC 52.215-125) (MAY 2023)

Proposals submitted in response to this solicitation will remain firm for at least **180** calendar days after the date specified for receipt by the Government unless a different period is proposed by the Offeror and shall contain a statement to this effect. Offerors shall insert 180 or the Offeror's period into Block 17 of Standard Form 1442, Solicitation, Offer, and Award.

(End of provision)

L.14 PERIOD COVERED BY PROCUREMENT (JSC 52.215-126) (AUG 2018)

This solicitation covers a period of a 10-year base ordering period, and one (1) 5-year option period. For contracting purposes:

<u>Anticipated Dates</u>	<u>Duration</u>	<u>Contractual Coverage</u>
10/01/2026- 9/30/2036	10 years	Base
10/01/2036- 9/30/2041	5 years	Option 1

(End of provision)

L.15 REQUIRED PROPOSAL CONTENT

Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation factors. Incomplete proposals may be a basis for determination of unacceptability of the proposal and removal of the proposal from consideration.

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(End of provision)

L.16 INSTRUCTIONS TO OFFERORS

This section provides detailed instructions to Offerors to be used in the preparation of proposals. It is organized as follows:

Paragraph	Paragraph Title
L.16.1	Proposal Arrangement, Page Limitations, Copies, and Due Dates
L.16.2	Proposal Formatting Instructions (JSC 52.215-113) (NOV 2023)
L.16.3	Electronic Submission of Proposals – Proposal Marking and Delivery Through NASA’s EFSS Box
L.16.4	Technical (Volume I)
L.16.5	Responsibility Considerations (Volume II)
L.16.6	Model Contract (Volume III)

Table L-1 Cross Reference from Section L to Section M

Title	Section ID	Title	Section ID
Technical Acceptability Factor - Volume I	L	Technical Acceptability Factor	M.1
TA1(a), Qualification	L	Demonstration of lunar lander qualification soft landed or test campaign	M.1
TA1(b), Risk Mitigation	L	Identify anomalies associated with qualification and mitigations	M.1
Responsibility Considerations – Offeror Volume II	L	Responsibility Considerations	M.3
Model Contract - Volume III	L	Model Contract	M.4

It is NASA's intent, by providing the instructions set forth below, to solicit information that will demonstrate the Offeror's competence to successfully complete the requirements specified in the Statement of Work (SoW).

In the event that other organizations are proposed as being involved in conducting this work, their relationships during the effort shall be explained and their proposed contributions shall be identified and integrated into each part of the proposal, as appropriate.

As part of their proposal, the offer shall demonstrate their capability to build and test a lunar lander with acceptance test campaign successfully completed no later than 6 months from the submission of proposals. Any action taken by a company in an attempt to be

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considered a qualifying offeror under CLPS 2.0 in accordance with 10 U.S.C. 3206 is at the discretion and risk of the company based on their investment.

L.16.1 Proposal Arrangement, Page Limitations, Copies, and Due Dates

- (a) For initial award, proposals are due by 06/09/2026 at 1:00 p.m. Central Time. The delivery location is specified in L.16.3, *Electronic Submission of Proposals – Proposal Marking and Delivery Through NASA’s EFSS Box*.
- (b) Proposal Arrangement:

Offerors shall arrange their proposals as set forth below in Table L-2. Proposal sections excluded from the page limit shall be placed at the end of each volume.

Table L-2: Overview of Proposal Volumes, Page Limitations, Copies, and Format

Volume No.	Title	Page Limit	Format
I	Technical Volume	50 pages	PDF
II	Offer Volume	No page limit	PDF
III	Model Contract*	No page Limit	MS Word
	Standard Form 33 and Sections A-K, with all fill-ins completed.	No page limit	MS Word

* All Offerors are required to submit the entire Model Contract inclusive of every Section A-J also to include all requested fill-ins. Offerors shall also submit Section K, Representations and Certifications, with all fill-ins completed.

L.16.2 Proposal Formatting Instructions (JSC 52.215-113) (NOV 2023)

- (a)
- (1) **The following requirements apply to all sections of the proposal:** The proposal text shall be submitted on 8 ½ x 11-inch electronic paper. The metric standard format most closely approximating the described standard 8 ½ x 11-inch size may also be used. Information shall not be incorporated by reference. A suitable table of contents shall be provided with each volume for ready reference to sections, tables, and figures. Pages shall be formatted in a standard page style, without the use of numerous columns.
- (2) **The following requirements apply to the sections of the proposal which are page limited:** Sections of the proposal which are page limited shall be prepared and submitted using non-compressed [Arial/Calibri/Times New Roman] font with single-spaced 12-point text with a one-inch margin on all sides in accordance with Microsoft Word default settings. Character spacing shall be “Normal” per Microsoft Word

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settings. Text in diagrams, charts, tables, artwork, and photographs shall be no smaller than 12- point text size. Diagrams, charts, tables, artwork and photographs shall not be used to circumvent the text size limitations of the proposal. The margins may contain headers and footers but shall not contain any proposal content to be evaluated.

- (3) All pages in each volume shall be numbered sequentially with Arabic numerals (1, 2, 3, etc.) for contents subject to page limitations. Each side of the sheet, tab, or divider containing proposal material will be counted as part of the appropriate volume's page limitations. Information that can be construed as belonging in another volume of the proposal will be so construed and counted against the appropriate volume's page limitation.
- (4) Title pages, table of contents, cross-reference matrices, glossaries, acronym lists, page tabs, and section dividers that do not contain information that can be construed as proposal information will not be counted as part of the page limitations. However, these pages shall be numbered with lower case Roman numerals (i, ii, iii, etc.) in order to provide ease of reference for the Government.
- (5) Large tables, charts, graphs, plans, figures, diagrams, and schematics (not text) may be inserted in 11 x 17-inch pages. These 11 x 17-inch pages shall be counted as two pages against the page limitations and shall have one-inch margin on all sides.
- (6) Pages submitted in excess of the limitations specified in this provision will not be evaluated by the Government and will be returned to the offeror in accordance with NFS 1815.204-70(b). Minor informalities or irregularities in a proposal that can be adjusted, corrected, or waived without being prejudicial to other offeror(s) may be accepted if it is immaterial to the acquisition. However, any pages contained in a page-limited section of your proposal which do not comply with the RFP requirements may be returned by the Government and not evaluated.

(b)

- (1) **The following requirements apply to the sections of the proposal which are not subject to page limitations:** Sections of the proposal which are not page limited do not need to abide by the font type or size, page size, or margin requirements of the page limited sections, though the offeror should ensure readability. All pages in each section shall be numbered sequentially with Arabic numerals (1, 2, 3, etc.) Title pages, table of contents, cross-reference matrices, glossaries, acronym lists, etc. shall be numbered with lower case Roman numerals (i, ii, iii, etc.) in order to provide ease of reference for the Government. Headers, footers, and corporate logos are not subject to the font type and size limitations.

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- (2) The electronic proposal shall be prepared and submitted in Microsoft Office® 365 applications (Word and Excel). Further, the Microsoft Excel spreadsheets shall be submitted in Microsoft Excel format, not in a scanned Microsoft Word or Adobe PDF file. Microsoft Word documents shall be submitted in Microsoft Word format, not in an Adobe PDF file.
- (3) Each volume of the proposal should be submitted as a separate electronic file. The offeror shall not embed sound or video files into the proposal files. Minimize the use of scanned images and keep embedded graphics as simple as possible.
- (4) A electronic cover sheet should be contained as the first page of each document clearly marked with volume number, title, solicitation identification, and the offeror's name. Be sure to apply all appropriate markings, including those prescribed in accordance with FAR 52.215-1(e), Restriction on Disclosure and Use of Data, and FAR 3.104-4, Disclosure, Protection, and Marking of Contractor Bid or Proposal Information and Source Selection Information.
- (6) Provide a Cross Reference List that tracks the page and paragraph numbers of the Offer's proposal to the page and paragraph numbers in the Government's instructions. A Cross Reference List shall be submitted in each Volume for that particular volume.
- (7) If final proposal revisions are requested, separate page limitations will be specified in the Government's request for that submission.

(End of provision)

L.16.3 Electronic Submission of Proposals – Proposal Marking and Delivery Through NASA's EFSS Box (OCT 2023)

- (a) The offeror shall submit its proposal via NASA's Enterprise File Sharing and Sync Box (EFSS Box), a FedRAMP Moderate certified platform. Electronic submissions shall not contain hidden formulas, tables, be locked, be password protected, or contain links to data not included in the electronic copy. All electronic submissions should be searchable and should not contain scanned documents, except those documents that must be provided in their native format (e.g., signature pages, prior award fee letters for past performance, DCAA/DCMA approval letters, as applicable). The offeror shall ensure documents are free from viruses and malware, as documents determined by NASA to contain a virus or malware will not be opened or evaluated. Subcontractors may submit their required proposal information separately using the instructions in this provision. The offeror shall ensure subcontractor submissions are made no later than the date and time specified for proposal submission and comply with all solicitation instructions.
- (b) Prior to the submission of proposal files, offerors interested in submitting a

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proposal in response to this solicitation should notify Contracting Officer, Aubrie Henspeter of their intent to submit a proposal at least 48 hours prior to the intended submission date, at the following email address: JSC-CLPS2@nasa.gov. The offeror shall courtesy copy (cc) (Insert secondary point of contact name TBD) at (Insert secondary point of contact email address TBD) on this communication. Offerors, especially those that have not previously submitted a proposal utilizing NASA's EFSS Box, should coordinate the submission of a test file with (Aubrie Henspeter) no less than 5 days in advance of the proposal due date specified in the solicitation to allow time to work through any submission issues.

- (c) The offeror shall submit all proposal files to: (TBD). The Offeror shall follow instructions regarding proposal submission found at <https://www.hq.nasa.gov/office/procurement/other/EFSS-Box-Offeror-Proposal-Submission-Instructions.pdf>.
- (d) Offerors should electronically submit their proposals not later than 1:00 p.m. (Insert time zone) one working day prior to the date specified for receipt of proposals, if offerors seek to coordinate with the Contracting Officer regarding the proposal's receipt. NASA is not required to verify proposal receipt prior to the submission deadline.
- (e) Offerors are encouraged to include all individual proposal files within a single .zip file. Electronic file names shall be limited to letters, numbers, dashes, and single spaces, except for the period that is required before the file extension (e.g., .zip, .pdf), in order to successfully upload and download files from the EFSS Box system. The offeror shall not use special characters "/" or "\" in file names. The offeror shall sequentially number each file and clearly label the contents of the file and include the name of the offeror and subcontractor name (if applicable) in the individual file name. Examples of acceptable individual file names are as follows (not specific to this solicitation):

For Prime Offeror Submissions:

1 - Prime Offeror name - solicitation number-MS Volume.docx

2 - Prime Offeror name - solicitation number - Responsibility Considerations Volume.docx

3 - Prime Offeror name - solicitation number - Model Contract.docx

Individual files cannot exceed 150GB per file. Submitted files shall not include password protection. Unless specifically authorized by the solicitation instructions, alternate proposal submissions shall not be submitted.

- (f) Immediately after all files have been uploaded and the proposal has been submitted in its entirety, the offeror is requested to notify (Aubrie Henspeter) at the following email address: (JSC-CLPS2@nasa.gov) with a listing of all

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documents by filename that were submitted via EFSS Box. If any problems are experienced with the EFSS Box system (e.g., login, file transfer), please send an email to JSC-CLPS2@nasa.gov as soon as possible.

- (g) The offeror is responsible for ensuring its proposal reaches the Government office designated in the solicitation by the date and time specified in the solicitation. The Government is not responsible for any failure attributable to the transmission or receipt of documents. Please note that uploading documents via EFSS Box and the transmission of the files from the offeror to the Government may not be instantaneous. To ensure timely delivery, the offeror is encouraged to submit its proposal at least 24 hours prior to the due date specified in the solicitation. The electronic submission of the proposal shall contain all information required by the solicitation to be determined responsive.

(End of provision)

L.16.4 TECHNICAL VOLUME

- (a) *General Instructions.* The Technical proposal should be specific, detailed, credible and provide all the information requested by these instructions. The Technical Volume must demonstrate that the offeror understands the requirements and has the ability to meet the requirements. General statements such as the "requirements are understood" or "standard procedures will be employed" are not adequate. In addition, restatement or paraphrasing of the requirements should be avoided. Information previously submitted, if any, will not be considered unless it is resubmitted as part of the proposal. It shall not be incorporated by reference.

- (b) Technical Proposal Instructions

The Technical Acceptability Factor evaluates whether the lunar payload delivery service meets or exceeds all technical requirements. The Offeror shall respond to 1a and 1b below using a lunar lander to demonstrate a qualification testing campaign completed no later than 6 months from the proposal submission date. The testing campaign may be reflective of a future campaign or reflective of events that have already occurred.

- (1) This evaluation Technical Acceptability Factor demonstrates that the offeror has developed a lunar lander capable of withstanding mission-specific environmental conditions, thereby increasing the likelihood of successful delivery.
 - (a) The Contractor must demonstrate that the proposed lander is designed to touch down at a location on the lunar surface, has been fully assembled (including all spacecraft components), and integrated into a launch vehicle and operated in cis-lunar space. – OR-- The Contractor must demonstrate that the proposed lander is being designed to softly touch down at a location on the lunar surface, has been fully assembled (including all spacecraft

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components), and subjected to a full acceptance test campaign including structural testing, thermal vacuum testing, shock testing, and Military Standard Electromagnetic Interference/Electromagnetic Compatibility (EMI/EMC) testing. If testing is not complete the offeror must identify remaining testing required and schedule to complete the remaining testing.

- (b) The Contractor shall describe any test, flight, and test-campaign anomalies, and detail the corrective actions that will be implemented in future lunar lander designs to reliably address these issues and mitigate associated risks to ensure successful lunar payload delivery.

(End of text)

L.16.5 RESPONSIBILITY CONSIDERATIONS – VOLUME III

Additional information is required to determine responsibility in accordance with FAR 9.104-1, General Standards as stated below.

- (a) Organizational Conflicts of Interest (OCI) information: In accordance with FAR Subpart 9.5, Organizational and Consultant Conflicts of Interest, the offeror and proposal will be reviewed for existing and potential OCI issues in relation to this procurement. Offerors shall provide for NASA approval a comprehensive Organizational Conflicts of Interest (OCI) Avoidance Plan, which will be incorporated into the contract. his comprehensive plan shall incorporate any previous studies performed; thoroughly analyze all organizational conflicts of interest that might arise because the Contractor has access to other companies' sensitive information; and establish specific methods to control, mitigate, or eliminate all problems identified. The Contracting Officer will review the plan for completeness and identify to the Offeror substantive weaknesses and omissions for necessary correction. Once the Contractor has corrected the substantive weaknesses and omissions, the Contracting Officer shall incorporate the approved plan into any resultant contract as a compliance document.
- (b) Responsibility Determination Disclosures (Financial Capability): To determine if an Offeror is in accordance with FAR 9.104-1(a), Offeror is instructed to submit information which demonstrates its financial capability to perform the contract. Acceptable information includes letters from certified United States banks indicating the available amount of credit for the business and the company's annual report. If a teaming arrangement, joint venture, or other business combination is contemplated, disclose each participant's responsibility for financial management of the venture, funding requirements, limitation of liabilities, and any other information which describes the financial arrangement.

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- (c) Prime/Subcontractor Identification and SoW Division of Work Listing (Attachment L-2): The offeror shall provide a summary listing (by name and address) of all subcontractors (regardless of dollar value) that have been identified throughout the offeror's proposal, the subcontract value associated with each entity, and the SoW sections that each subcontractor proposes to support by filling out Attachment L-2. This listing shall also include the subcontractors size classification (i.e., Small Business (SB), Woman Owned Small Business (WOSB), etc.) and cage code. Fill in so all SoW sections have a Prime and/or subcontractor associated with accomplishing that requirement.
- (d) Subcontracting Arrangement Information [*for small business offerors only*]: If a subcontracting arrangement is proposed, offerors shall include the following specific detail in the following areas so that the Government can determine that the prime contractor making the offer will be performing the primary and vital requirements for the contract.
- Who will manage the contract?
 - Which party possesses the background and expertise necessary for contract performance?
 - Which party pursued the contract?
 - The degree of collaboration in preparation and submission of competitive proposal.
 - Whether there are discreet tasks to be performed by each of the teaming partners, or whether there is, instead, commingling of personnel and resources.
 - The relative amount of work to be performed by each teaming partner or subcontractor.
 - Which party will perform the more complex and costly contract functions?
 - The business size of each of the other parties.
 - Which of the parties possess the qualifications relevant to the contract requirements?
 - Describe how the offeror will ensure compliance with FAR 52.219-14, *Limitations on Subcontracting*. For the purposes of this RFP, JSC defines "costs of contract performance incurred for personnel" to mean direct labor, labor overhead (including payroll taxes and benefits), and G&A. "Employees of the concern" means actual direct employees identified on the Offeror's payroll records for which social security taxes are matched. JSC considers "cost of contract performance" to include all

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costs throughout contract completion (the full contract period of performance).

- (e) **Company Information:** Provide the following information for the prime/joint venture partner, and each subcontractor with a value of \$10 million and over:
- The company point of contact’s name, job title, phone number, email address, and physical address.
 - The company business size, type, UEI number, and cage code.
- (f) **Taxpayer Identification Number:** Prime offerors shall provide their Taxpayer Identification Number (TIN) (the number required by the Internal Revenue Service (IRS) to be used by the Offeror in reporting income tax and other returns).
- (g) **Waiver of Rights to Inventions:** This solicitation contains NASA FAR Supplement (NFS) Clause 1852.227-70, “New Technology” and NFS provision 1852.227-71, “Request for Waiver to Rights to Inventions”. Any petitions for advance (prior to contract execution) waiver of rights to inventions should be included in this volume.

(End of provision)

L.16.6 MODEL CONTRACT AND ADDITIONAL REQUIREMENTS – VOLUME IV

Instructions for Preparation of the Model Contract. Offerors shall submit with its proposal, in Volume IV, the Model Contract in its entirety (basic and any amendments) per the instructions below.

Contract Section	Areas of Model Contract Offerors are Required to Complete
Section A	Complete blocks 12 through 18, provide an original signature on each copy, and date the SF 33 Offerors shall indicate, in Block 12 of the SF 33, a proposal validity period of 365 days (see 52.212-1, “Instructions to Offerors—Commercial Products and Commercial Services,” a different validity period may be proposed by the Offeror).
Section B	None
Section C	None
Section D	None
Section E	None
Section F	None
Section G	None
Section H	None
Section I	None
Section J	Offerors shall submit the required documents.

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Contract Section	Areas of Model Contract Offerors are Required to Complete
Section K	Annual representations and certifications shall be completed electronically and submitted with this volume in accordance with provision K.2, Annual Representations and Certifications (FAR 52.204-8). All fill-ins in Section K are to be completed. Reference L.27 for instructions on identification and representation of limited rights data and restricted computer software.

Table Model Task Order

Sections Task Order Section	Areas of Model Task Order Offerors are Required to Complete
SF 1442 (TBD)	Offerors shall appropriately complete blocks 14 through 20c, provide an original signature, and date the SF 1442.
Task Order 1 Requirements	None

(End of provision)

Section L Attachments

List of Contract Attachments (Provided Electronically via Box) [TBD] ATTACHMENT	TITLE
L-1	Task Order 1 – Standard Interface Report
L-2	Prime/Subcontractor Identification and SoW Division of Work Listing

(End of section)

PART IV – REPRESENTATIONS AND INSTRUCTIONS

SECTION M – EVALUATION FACTORS FOR AWARD

M.1 STREAMLINED PROCUREMENT EVALUATION FACTORS FOR AWARD

- (a) An initial review of proposals will be conducted to determine acceptability of the proposals in accordance with NFS 1815.305-70, Identification of Unacceptable Proposals. If the Contracting Officer determines an Offeror's proposal does not represent a reasonable effort to address the essential requirements of the Request for Proposal (RFP), the proposal will be determined to be unacceptable with no further consideration for contract award. **All unacceptable proposals will be eliminated from further evaluation.**
- (b) The remaining proposals will be evaluated for an adequate response to Volume I "Technical Volume". Technical acceptability will be rated as either "Acceptable", "Potentially Acceptable", or "Unacceptable." All Technical Acceptability criteria must be rated "Acceptable" to be eligible for contract award. A proposal is rated "Potentially Acceptable" when after the initial evaluation, the evaluation team anticipates additional information could be provided by an Offeror during discussions (if utilized) that may result in a proposal rating of acceptable. If the Government enters into discussions, offerors will be provided with the opportunity to submit a revised proposal. Although an Offeror may receive a rating of "Potentially Acceptable" upon initial evaluations, it does not guarantee that discussions will be held or that the Offeror will automatically be included in discussions. Award will only be made to Offeror(s) with an "Acceptable" rating, either upon initial proposal evaluations or after discussions and final evaluation. The Government may elect to award a contract without negotiations to the technically "Acceptable" responsible offeror(s), who represents the best value as described below. A failure to meet the Technical Acceptability factor and subfactors will result in an Unacceptable rating.
- (c) After negotiations close (if held) and Proposal Revisions are received, all proposals remaining in the competitive range will receive a final rating against the Technical Acceptability Factor as either "Acceptable" or "Unacceptable" only.

Ratings of "**Acceptable**", "**Potentially Acceptable**", and "**Unacceptable**" are defined below:

"Acceptable" Rating – A proposal will be rated "Acceptable" under the Technical Acceptability Factor, where each area of the proposal shows a demonstration of understanding, and level of reasonableness, feasibility, and completeness such that associated risks do not jeopardize an acceptable level of contract performance.

"Potentially Acceptable" Rating – A proposal will be rated "Potentially Acceptable" when, after the initial evaluation, the proposal does not fully meet the definition for an "Acceptable" or "Unacceptable" rating, and the Government

PART IV – REPRESENTATIONS AND INSTRUCTIONS

anticipates that additional information obtained during discussions could result in a proposal rating of “Acceptable”.

“Unacceptable” Rating – A proposal will be rated “Unacceptable” under the Technical Acceptability Factor, **where ANY area of the proposal is unacceptable** based on the demonstration of understanding, and level of reasonableness, feasibility, and completeness such that associated risks do jeopardize an acceptable level of contract performance.

Any proposals determined to be technically unacceptable will not be further evaluated.

- (d) If negotiations are held, offeror(s) will be provided with an opportunity to submit a Proposal Revision (PR) for the Government’s final evaluation. For the final evaluation, proposals will be rated as “Acceptable” or “Unacceptable”, and there will be no “Potentially Acceptable” ratings. A consistency evaluation will be performed as stated in paragraph (d) above. Therefore, it is possible to receive an “Unacceptable” rating for the Technical Acceptability factor if the Technical Acceptability volume is not consistent with the Price volume of the proposal. The Technical Acceptability volume will also be evaluated for consistency with other volumes of the proposal. Therefore, it is possible to receive an “Unacceptable” rating for the Technical Acceptability factor if the Technical Acceptability volume is not consistent with other volumes of the proposal.
- (e) The evaluation team will carry out the evaluation activities and report to the Source Selection Authority (SSA), who is responsible for making the source selection decision. **For those Offeror(s) who are determined to be “Acceptable” under the Technical Acceptability Factor.**

The SSA may award one, none, or many IDIQ contracts if it is in the Government’s best interest.

Initial Task Order Award will be issued to CLPS 2.0 IDIQ awardees (Attachment L-1):

1. Only IDIQ awardees are eligible.
 2. Awarded to the IDIQ holder(s) who represents the Best Value to the Government.
 3. Subject to RFO 52.232-18 – Availability of Funds.
- (g) The Government will award to the offerors whose proposals offer the best overall value to the Government that meets all solicitation requirements and is determined responsible in accordance with RFO 9.104, Standards. Best Value is defined in RFO 2.101 as, “Best value means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement.”.

PART IV – REPRESENTATIONS AND INSTRUCTIONS

(End of provision)

M.2 TECHNICAL ACCEPTABILITY FACTOR (Volume I)

The Technical Acceptability Factor will be evaluated for overall demonstrated understanding for reasonableness, feasibility, and completeness, and any ensuing associated impact and risk to the Government.

(End of Text)

M.3 RESPONSIBILITY CONSIDERATIONS (Volume II) PROSPECTIVE CONTRACTOR RESPONSIBILITY AND ELIGIBILITY STANDARDS

The procedures for determining whether prospective contractors and subcontractors are responsible are set forth in Revolutionary FAR Overhaul (RFO) Subpart 9.1 and NASA FAR Subpart 1809.1. Failure by the offeror to affirmatively demonstrate adequate compliance with the general standards of prospective contractor responsibility at RFO 9.104-1, and any special standards established for this acquisition under RFO 9.104-2 will result in a determination of non-responsibility. As with all aspects of prospective contractor responsibility, a finding of non-responsibility can be made at any time prior to contract award. Per RFO 9.103(b), if the prospective contractor is a small business concern, responsibility will be determined in accordance with Subpart 19.6, Certificates of Competency and Determinations of Responsibility. If the prospective contractor is a Section 8(a) participant, see Subpart 19.8.

Additional information is required to determine responsibility in accordance with RFO 9.104-1, General Standards. Other Proposal Information required for determining responsibility include the following:

- (a) Submission of a Small Business Subcontracting Plan (large businesses Only). This procurement is open to all offerors. Only offerors other than small businesses must submit a Small Business Subcontracting Plan as required under RFO 52.219-9.
- (b) Submission of a Capabilities Document. That will provide a general understanding of the offeror's organizational capacity.

The Capabilities Document shall include, but is not limited to: A brief corporate overview. A description of in-house resources and capacity.

Responsibility Information

Offerors may provide any additional information, not already addressed under another proposal Section that is necessary to demonstrate status as a responsible offeror under RFO 9.104, Standards.

The Contracting Officer will evaluate this information for the Offerors as a part of the CO's affirmative determination of responsibility.

PART IV – REPRESENTATIONS AND INSTRUCTIONS

(End of Text)

M.4 MODEL CONTRACT - (Volume V)

The model contract will be reviewed to ensure that it was signed by a person authorized to commit the Offeror, that there is completion of all fill-ins, all pages of the contract are submitted in their entirety, and that it accurately captures the content as set forth in the Offeror's proposal. Errors or inconsistencies in the Model Contract may result in an Offeror being removed from consideration for award.

The Government reserves the right to incorporate the Offeror's documentation (e.g. plans) submitted in response to information in a clause fill-in prior to execution of the contract. This may result in the renumbering of contract pages. The Government may also make other minor clerical and purely administrative changes to the Offeror's model contract (e.g. insert the contract number, insert the value of obligated funding at contract award), prior to executing the contract. The contractor agrees that such changes shall be construed as administrative and that they will not be construed as a counteroffer.

(End of Text)

(End of section)

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART III-LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

ATTACHMENT J-1

ORGANIZATIONAL CONFLICTS OF INTEREST (OCI) PLAN

(As proposed by Offeror)

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART IV - REPRESENTATIONS AND INSTRUCTIONS

ATTACHMENT J-2

AUTHORIZED LIMITED RIGHTS AND RESTRICTED RIGHTS DATA

TBD

(End of Attachment)

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART IV - REPRESENTATIONS AND INSTRUCTIONS

ATTACHMENT J-3

GOVERNMENT TASK AGREEMENTS

TBD

(End of Attachment)

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART III-LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

ATTACHMENT J-4

GOVERNMENT FURNISHED PROPERTY AND DATA/INFORMATION

TBD

(End of Attachment)

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART III-LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS**GOVERNMENT FURNISHED PROPERTY, SERVICES AND FACILITIES**

The Government Furnished Property, Services and Facilities requested by the CLPS 2.0 Contractor for use in the performance of this Contract.

Due to the commercial approach for this contract, the Government does not intend to provide NASA IT assets (laptops/desktops, mobile devices, printers) during contract performance.

TABLE J-4-1: GOVERNMENT FURNISHED EQUIPMENT, MATERIALS AND SOFTWARE REQUESTED

Item No.	Item Description	Part Number	Model	Serial number	Quantity /Unit of Measure	Unit Acquisition Cost	Total Acquisition Cost	Acquisition Date	Return Date	Return Document Tracking Number (e.g., DD-1149 number)
1	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART III-LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

TABLE J-4-2: GOVERNMENT SERVICES PROVIDED

Item No.	Service Requested	Purpose	Location of Service	Expected Need Date	Duration of Request	Govt. POC and Phone Number	Is this "Rent Free?" (Yes/No)	Govt. Price if "Rent" were charged	Basis for Estimated "Rent" Price	Type of Agreement
TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD

TABLE J-4-3: GOVERNMENT FACILITIES PROVIDED

Item No.	Facility Requested	Purpose	Location of Facility	Expected Need Date	Duration of Request	Govt. POC and Phone Number	Is this "Rent Free?" (Yes/No)	Govt. Price if "Rent" were charged	Basis for Estimated "Rent" Price	Type of Agreement
TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD

TABLE J-4-4: GOVERNMENT DATA OR INFORMATION PROVIDED

Item No.	Description or Nomenclature	Need Date	Applicable CLIN(s) or Task Order	Rationale	Notes
1	TBD	TBD	TBD	TBD	TBD

(End of Item Lists)

End of Attachment)

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART IV - REPRESENTATIONS AND INSTRUCTIONS

ATTACHMENT J-5

DD FORM 254

Contractor to deliver DD Form 254

(End of Attachment)

Exploration Integration and Science Directorate

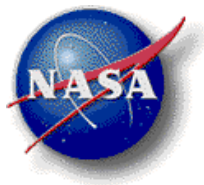
Commercial Lunar Payload Services (CLPS) 2.0

ATTACHMENT J-6

**Anomaly, Mishap, Mission Failure Preparedness and
Contingency Reporting**

VERSION 1.0

3/24/2026



National Aeronautics and Space Administration Lyndon
B. Johnson Space Center
Houston, Texas 77058

Attachment J-6 DATA REQUIREMENTS DESCRIPTIONS (DRD)

1a. DRD Title: Anomaly, Mishap, Mission Failure Preparedness and Contingency Reporting	2. Date of Current Version: 3/24/2026	3a. DRD No. J-6	3b. RFTP/ Task Order No. TBD
4. Use (Define need for, intended use of, and/or anticipated results of data) See description/purpose. Type: 2 For NASA's review and approval			5. DRD Category ☒ Technical ☐ Administrative
6. References (SOW, Clause, etc.) SOW CLINs 1, 2 and 3		7. Interrelationships (e.g., with other DRDs) N/A	

8. PREPARATION INFORMATION: This DRD describes requirements for reports the Contractor must submit when anomaly, mishap, or mission failure occurs.

DESCRIPTION/PURPOSE:

This document defines conditions that require a report, requirements for notification to NASA, and documents NASA's requirements for the Contractor to investigate and establish corrective action plans that occur while performing the work required in support of this task order.

Anomaly, mishap reporting, investigation, and corrective action requirements occurring on third-party property will be handled in the same manner as those occurring on Contractor property.

DATA REQUIREMENTS:

DEFINITIONS:

Anomaly: is an unexpected or out-of-spec event that can either happen to the NASA property (i.e., a procedural deviation such as mishandling or exposure to an out-of-spec condition) or happen from the NASA property (i.e., a performance deviation such as a test failure or unexpected response to a command). An anomaly is also defined as an unexpected or out-of-spec event that occurs with the lander regardless of known or possible solutions or results. If an event is unexpected or out-of-spec, it is an anomaly regardless of known or possible results. An anomaly may or may not be associated with actual damage, the potential of latent damage, or the uncertainty of state. If the results of an event include damage or injury, it is a mishap regardless of whether the precipitating event was anomalous.

Mishap: is any incident, which may occur prior to, during, and post launch, that results in at least one of the following:

- a) Destruction of, or damage to, NASA property or NASA equipment (including flight and non-flight GSE), NASA-sponsored payloads, or any other property provided pursuant to this contract
- b) Injury to NASA personnel
- c) Injury to non-NASA personnel associated with NASA-sponsored payloads
- d) Damage to a NASA facility,
- e) Exposure to chemicals, gas, radiation, or electromagnetic fields involving NASA personnel which could result in fatality; lost-time occupational injury; or occupational disease; or
- f) Exposure to chemicals, gas, radiation, or electromagnetic fields involving NASA property, or NASA equipment, which could result in hardware failure, hardware contamination, systems malfunction, or affect mission success.

Mission failure: is any incident or series of incidents that prevents or interferes with achieving a soft landing on the lunar surface or prevents the Contractor's ability to provide power and communications to at least two NASA payloads.

High Visibility Events: Those particular mishaps, regardless of the amount of property damage or personnel injury, that NASA judges to possess a high degree of programmatic impact, or public, media, or political interest including, but not limited to, mishaps that impact flight hardware, flight software, or completion of critical mission milestones. The Contractor may notify NASA of a high visibility event or NASA may identify to the Contractor if an event arises to the level of a high visibility event and any applicable anomaly or mishap processes to follow.

The following addresses the specific requirements for anomaly, mishap, mission failure, high visibility events, investigation, reports, and corrective actions:

1. ANOMALY:

- 1.1 The Contractor shall notify the CLPS Contracting Officer Representative (COR) and Contracting Officer (CO) as soon as the safety of personnel and hardware permits but no later than 6 hours after any known anomalies associated with the mission including the lander or any of the NASA-sponsored payloads during integration testing, while on the pad, and throughout the mission. Anomalies occurring on third-party property will

be handled in the same manner as those occurring on Contractor property.

- 1.2 Contractor Final Report. After the Contractor completes its investigation of the anomaly and, when appropriate, has developed a plan of corrective action, the Contractor shall deliver this completed report to NASA within 30 days of any anomaly.

2. MISHAPS:

- 1.3 The Contractor shall notify the CLPS CO and COR as soon as the safety of personnel and hardware permits but no later than 6 hours after the mishap occurred while on the Contractor, third-party property, or other non-NASA government property.
- 1.4 In the event needed, the primary purpose for an investigation and corrective action is to prevent similar occurrences and thus improve the safety of operations. The emphasis for an investigation should be on discovering root cause-effect relationships from which remedial and corrective actions can be derived. The intent is not to place blame, but to determine how processes and responsibilities may be clarified or improved to eliminate errors. Additional purposes for investigations are to determine the nature and extent of the events and its impact; to improve standards and risk posture; to satisfy the taxpayer's right to know; and to resolve any questions associated. The investigation process will commence in two phases, an investigative phase and a corrective action phase. Each phase results in a deliverable product as described below.
- 1.5 An initial investigation by the Contractor is required for all mishaps reported to NASA. NASA reserves discretionary authority to investigate mishaps that involve NASA personnel or resources regardless of location. The Contractor has the discretion to perform any collateral investigations. However, investigations implemented by NASA will take priority with regard to access to evidence, data, and witnesses. The proceedings of NASA investigations will remain confidential. The Contractor will have an opportunity to comment on the investigation report in accordance with NASA protocols.

- 1.6 Contractor Final Report. After the Contractor completes its investigation

of the mishap and, when appropriate, has developed a plan of corrective action, the Contractor shall deliver this completed report to NASA within 30 days of any mishap. The report shall describe the mishap, how it occurred, the Contractor's plan to recover from the mishap to include a timeline for resolution, and how the Contractor will ensure the mishap will not reoccur. This plan will also include any verification activities identified by the Contractor to ensure that corrective actions to be implemented by NASA or a third party have been implemented or, if applicable, accomplished.

1.6.1 Corrective Action Plan (CAP) Process

A. The CAP shall include the following:

- a. Corrective actions description and the estimated completion dates for each corrective action.
- b. A matrix or other means of matching corrective actions to all findings and recommendations.

B. Corrective Action Plan Review and Approval

The CLPS Project Management shall review the CAP

- b. Accept or reject the CAP.
- c. Return a rejected CAP with comments to the contractor for revision and resubmission.

C. Contractor Corrective Action Plan Implementation

- a. Implement the corrective actions.
- b. Track the corrective action performance and completion and provide the CLPS Project Management with a status at intervals determined by the CLPS Project Management.

D. Corrective Action Plan Monitoring and Close Out

The Contractor shall:

- a. Update the CLPS Project Management on the status of corrective action activities at least every 30 workdays until the CAP is closed.
- b. Submit changes to the CAP after it has been approved (i.e., actions

considered unwise or not feasible) to the CLPS Project Management for review and approval.

c. Once corrective actions are fulfilled, provide a Corrective Action Plan Closure Statement to the CLPS Project Management advising the CAP has been closed.

The CLPS Project Management shall:

a. Track corrective action activities to verify they are carried out according to plan and report non-compliance to the NASA Mission Directorate.

b. Verify corrective actions activities were implemented, completed, and closed.

c. Notify the NASA Mission Directorate that actions have been implemented, completed, and closed.

1.7 If a mishap occurs prior to launch, regardless of location, NASA will review the Contractor's Final Report to ensure the corrective actions demonstrate an acceptable risk posture to NASA. If acceptable, then NASA will approve the Contractor to proceed with task order performance. As needed, Corrective Actions will be reviewed for applicability and implementation needed for any of the Contractor's other CLPS task orders.

1.8 If a mishap occurs after launch, NASA will review the Contractor's Final Report and any applicable Corrective Actions. Any Corrective Actions will be reviewed to ensure they demonstrate an acceptable risk posture to future NASA payloads and will be applied to the Contractor's other CLPS task orders, as applicable.

3. MISSION FAILURE

3.1 In the event of a mission failure or an event that could lead to mission failure, the contractor shall notify the CO and COR as soon as the safety of personnel and hardware permits but no later than 6 hours after the contractor identifies the mission failure or event.

3.2 Following completion of all mission activities, the contractor shall convene a review board in accordance with contractor defined processes and within 30 days, or such other period as the parties agree to in writing, to

investigate the mission failure. The contractor shall allow at least two NASA employees to participate in the investigation to:

- a) observe,
- b) monitor the progress of the investigation on a non-interference basis,
- c) provide releasable, non-proprietary technical data,
- d) provide subject matter expertise,
- e) provide advice on interpreting data,
- f) provide suggestions on what publicly available or Contractor-owned data would be most helpful to understand the mission failure,
- g) analyze data, and
- h) use NASA tools to produce analysis that advances the board activities.

NASA will not participate in the Contractor's board recommendations or conclusions; advising on solutions or future Contractor actions; or otherwise providing direction to the Contractor.

3.3 The Contractor shall deliver a mission failure investigation report to NASA within 90 days of ending the mission, or such other period as the parties agree to in writing. The mission report shall identify the Contractor's best assessment of what caused the mission to fail, a discussion of how the failure could have been prevented, and how the Contractor will ensure the failure will not reoccur. The report will also include any corrective actions to be implemented for future work by the Contractor or a third party, if applicable. The report and any other results of the board activity should be clearly labeled as a Contractor product (see Section 5 Rights in Data), and not a joint or co-authored report.

3.4 NASA may conduct its own investigation of the mission failure. The Contractor shall provide personnel, resources, and data, as necessary, to support a NASA investigation within 75 workdays, or such other period as the parties agree to in writing.

- a) If there is a Mission Failure and a Mission Failure Investigation Report is required, then Mishap Reports related to the mission failure are not required.

3.5 Within two weeks of submission of the Mission Failure Investigation Report, or such other period as the parties agree to in writing, the

Contractor will hold a Lesson's Learned meeting with NASA stakeholders to out brief the key points of the Mission Failure Investigation Report.

4. High Visibility Events

- 4.1. If NASA determines that an event, either prior to launch or during execution of a contractor mission, should be treated as a high visibility event, NASA will provide to the Contractor written instructions on which of the reporting processes described in sections 1, 2 or 3 shall be used by NASA and the Contractor in response to the high visibility event.

5. CONTRACTOR INVESTIGATIONS

If the Contractor investigates anomalies or mishaps not covered by Sections 1-2 above that could impact the Contractor's CLPS task order(s), the Contractor shall make available to NASA relevant data and resulting reports (e.g., anomalies/mishaps that have the potential to do harm to CLPS payloads or endanger successful lunar delivery).

6. RIGHTS IN DATA APPLICABLE TO DELIVERED REPORTS

The CLPS Master Contract includes 52.227-14 RIGHTS IN DATA-GENERAL (MAY 2014)— ALTERNATE II (DEC 2007) AND ALTERNATE III (DEC 2007) as modified by NASA FAR Supplement 1852.227-14.

For purposes of this DRD, ALT II is updated as follows:

(g)(3) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of limited rights data, or the Contracting Officer may require by written request the delivery of limited rights data that has been withheld or would otherwise be entitled to be withheld. If delivery of that data is required, the Contractor shall affix the following "Limited Rights Notice" to the data and the Government will treat the data, subject to the provisions of paragraphs (e) and (f) of this clause, in accordance with the notice:

LIMITED RIGHTS NOTICE (DEC 2007)

(a) These data are submitted with limited rights under Government Contract No. **TBD** and Task Order **TBD**. These data may be reproduced and used by the Government with the express limitation that they will not,

without written permission of the Contractor, be used for purposes of manufacture nor disclosed outside the Government; except that the Government may disclose these data outside the Government to support service contractors and/or to other contractors participating in the Government's program of which the specific contract is a part, provided that the Government makes such disclosure subject to prohibition against further use and disclosure:

- i. The Government shall not release data to a contractor prior to receiving written permission from the CLPS task order awardee.

(b) This notice shall be marked on any reproduction of these data, in whole or in part.

7. **OFFICE OF PRIMARY RESPONSIBILITY:** CLPS Project Office
8. **FREQUENCY OF SUBMISSION:** Reports are to be delivered as needed based on the circumstances defined in this DRD.
9. **FORMAT:** When generating reports covered by this DRD, the Contractor's format is acceptable.
10. **EFFECTIVITY:** This DRD is effective upon task order award and will remain in effect until the conclusion of the CLPS task order.
11. **CHANGE AND REVISION SIGNATURE AUTHORITY:** This document is revised whenever a change in method of operation or responsibilities is incorporated. The final approval and signature authority for revisions to this document rests with the CLPS Project Manager and COR.
11. **COPIES/DISTRIBUTION:** One copy of any reports created under this DRD are to be emailed to the NASA CO and COR.

COMMERCIAL LUNAR PAYLOAD SERVICES (CLPS) 2.0

PART IV - REPRESENTATIONS AND INSTRUCTIONS

ATTACHMENT J-7

**Prime/Subcontractor Identification and SoW Division of
Work Listing (if applicable)**

(As proposed by Offeror)

(End of Attachment)

CLPS 2.0 Task Order (TO) #1 (CLIN 3) – Standard Interface Report:

Requirement Description:

NASA requires the Contractor to provide a comprehensive report detailing what standard payload and lunar lander interfaces are recommended and what specific benefits these standards would bring to future integration efforts. To support the increased mission cadence mandated by Executive Order 14369, “Ensuring American Space Superiority,” it is necessary to establish a more effective and efficient approach for integrating multiple unique payloads across the various lunar landers being developed by CLPS vendors. Historically, vendors have been required to accommodate a wide range of bespoke payload accommodations, resulting in schedule impacts and increased costs due to the nonrecurring engineering efforts required for each mission. The report may include assessments of mechanical, electrical, thermal, data, and command/telemetry interface standards that could reduce redesign cycles; recommended envelope and mass accommodation ranges; common installation or mounting features; environmental qualification and acceptance test requirements that could be standardized; and any integration workflows, documentation, or verification approaches that could be harmonized across vendors. The Contractor should also identify potential constraints, risks, and cost-benefit considerations associated with adopting standardized interfaces, as well as any lessons learned or benchmarking from industry, commercial space, or international standards that could inform NASA’s approach to reducing complexity while increasing mission throughput.

TO Value:

The total value of this TO is \$25,000.

TO Period of Performance:

The period of performance for this TO shall be from award (NASA to Insert Date of Award) and not to exceed 3 months (NASA to update with POP end date).

Deliverable Criteria:

The Standard Interface Report may be submitted using the Contractor’s preferred format for organizational design, layout, and structure, provided it clearly communicates the information required. The report must fully address all elements outlined in the Requirements Description section and include recommendations supported by adequate rationale to meet the deliverable criteria.

The Contractor is strongly encouraged to submit an updated Standard Interface Report at any time during the period of performance as industry capabilities and services evolve.

Attachment L-1 - Task Order 1 – Standard Interface Report

Milestone and Payment Schedule:

This TO includes one (1) milestone for the delivery and successfully completed Standard Interface Report, valued at \$25,000.

The Contractor may submit the Standard Interface Report at any time prior to the end of the TO period of performance. Upon submission, the report will be reviewed to verify compliance with the established deliverable criteria. Payment will be made within 30 business days of receipt of a properly submitted invoice, following approval of the successfully completed Standard Interface Report.

Special Instructions: N/A

Government furnished equipment: N/A

Government furnished facilities: N/A

Government furnished Subject Matter Expert roles: N/A

(End of Task Order 1)